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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

MAY 20, 2025

>> MAYOR A. ISHII: HELLO, GOOD EVENING, EVERYONE. GOOD EVENING. THANK YOU TO THE PERSON IN THE AUDIENCE. ALL RIGHT, FOLKS. I AM GOING TO CALL TO ORDER THE BERKELEY CITY COUNCIL MEETING. TODAY IS TUESDAY, MAY 20, 2025. I'M GOING TO START WITH THE ROLL, PLEASE.

>> CLERK: COUNCILMEMBER KESARWANI.

>> R. KESARWANI: HERE.

>> CLERK: TAPLIN.

>> T. TAPLIN: HERE.

>> CLERK: BLACKABY.

>> B. BLACKABY: HERE.

>> CLERK: A QUORUM IS PRESENT.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. WE HAVE A FEW CEREMONIAL ITEMS TODAY AND I'LL START WITH OUR PROCLAMATIONS. JUST REALIZED I DON'T HAVE THEM IN FRONT OF ME. THE JEWISH AMERICAN PPROCLAMATION ANDEAST BAY AFFORDABLE HOUSING MONTH AND ASIAN PACIFIC ISLANDER HERITAGE MONTH AND FOLLOWING THAT WILL BE AN

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ENDEARMENT IN MEMORY OF CHRISTINA MURPHY. STARTING WITH JEWISH AMERICAN HERITAGE MONTH AND IF YOU WANT TO COME UP TO THE PODIUM I KNOW YOU HAVE PREPARED REMARKS AS WELL. PERHAPS ONE MORE PERSON. OKAY. SO JEWISH AMERICAN HERITAGE MONTH. WHEREAS CITY OF BERKELEY TAKES PRIDE IN THE HERITAGE MONTH AND 23 REFUGEES SAILED TO MODERN DAY NEW YORK CITY AND WHEREAS OVER 350,000 JEWISH AMERICANS LIVE IN THE BAY AREA AND MAKE INVALUABLE AND SIGNIFICANT CONTRIBUTIONS TO THE FABRIC OF OUR COMMUNITIES, AND WHEREAS THE CITY OF BERKELEY SO HOME TO INSTITUTIONS THAT CULTIVATE SPACE FOR SACRED WORSHIP, STUDY AND COMMUNITY SUCH AS SYNAGOGUES, COMMUNITY CENTERS, PRESCHOOLS, NONPROFITS AND CAMPUS ORGANIZATIONS AND MORE AND WHEREAS JEWISH AMERICAN ARE DIVERSE AND ENCOMPASS A WIDE RANGE OF IDENTITIES, BACKGROUND, LIVED EXPERIENCES AND CULTURE EXPERIENCES WITH CONNECTION TO VIBRANT JEWISH COMMUNITIES WORLDWIDE. WHEREAS PREPARING THE WORLD IS A MEANINGFUL EXPRESSION OF JEWISH VALUES FOR MANY JEWS REFLECTED IN THE REFLECTION OF SOCIAL JUSTICE AND JUSTICE AND EQUITY, FREEDOM AND LIBERATION THROUGHOUT AMERICAN HISTORY AND WHEREAS THE CITY OF BERKELEY HAS MORAL RESPONSIBILITY TO STAND FIRMLY AGAINST ALL FORMS OF ANTI-SEMITISM AND THE CITY OF BERKELEY ACKNOWLEDGE THE IMPORTANCE OF LOCAL GOVERNMENT AND CELEBRATING COMMUNITIES AND ADVOCATING FOR EQUITY AND JUSTICE AND REAFFIRMS JEWS EVERYWHERE DESERVE TO LIVE IN PEACE, DIGNITY AND SAFETY. BE

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IT RESOLVED; I MAYOR ISHII DECLARE IT JEWISH AMERICAN MONTH.

>> I'M HERE TO RECEIVE THIS WITH OTHER MEMBERS OF OUR COMMUNITY. BERKELEY IS A DIVERSE CITY AS WE ALL KNOW. THE JEWISH COMMUNITY I THINK IS EQUALLY DIVERSE WHICH IS FITTING FOR THE JEWISH COMMUNITY OF BERKELEY. WE HAVE IN THE PROCLAMATION JEWS FROM ALL WALKS OF LIFE, ALL POLITICAL PERSPECTIVES, LOTS OF COLORS OF US AND IT'S REALLY A DYNAMIC AND DIVERSE GROUP. I THINK THAT'S WHAT MAKES US STRONG. IN ADDITION TO THIS DIVERSITY, WE SHARE A COMMON HERITAGE AND HISTORY THAT GOES BACK AS EVERYBODY HERE KNOWS PROBABLY AT LEAST 3,000 MAYBE 3500 YEARS. SO WE'VE BEEN AROUND A WHILE. I THINK WHEREVER WE GO WE WHEN WE’RE WELCOME IT'S A BEAUTIFUL THING AND WE TRY TO GIVE BACK TO THE COMMUNITY WHAT WE TAKE FROM IT. IN THIS CASE YOU'RE OFFERING THIS PROCLAMATION AS VERY MEANINGFUL TO ALL OF US AND I WANT TO SAY THANK YOU ONE MORE TIME. I'M JEFF MORGAN AND OWN A WINERY CALLED COVENANT. IT HAPPENS TO BE A KOSHER WINERY AND ALL OF YOU ARE WELCOME TO COME VISIT ANY TIME.

>> MAYOR A. ISHII: AND THEY'RE OF A GREAT COOKBOOK TOO.

>> TEN OF THEM BUT YOU HAVE THE LAST ONE. THANK YOU, MAYOR.

>> MAYOR A. ISHII: AND WERE THERE OTHER COMMENTS?

>> I'M SAM HERSHBERG AND DECIDED FROM U.C. BERKELEY. I'M HONORED TO BE ONE OF FEW PEOPLE ACCEPTING THE PROCLAMATION ESPECIALLY IN A TIME WHERE RECOGNIZING THE JEWISH COMMUNITY WHEN POLITICIANS

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ARE GIVING NAZI SALUTES. I LED SONG CIRCLES AND ORGANIZED. WHILE MANY ASSOCIATE NEW YORK WITH JEWISHNESS THERE'S FEW PLACES WHERE CAN SEE THE DIVERSITY OF THE JEWISH DIASPORA TO BERKELEY AND FROM EXHIBITS ON JEWISH CULTURE AT THE MAGNUS AND THE CIVIL RIGHTS IS INTERTWINED FROM JEWISH FARMING COMMUNITIES IN THE 1920S TO THE WORK OF MELANIE CANTOVITZ AND WE ASSOCIATE WITH LIBERATION AND JEWISH STRUGGLES AND THIS IS THE IMPORTANCE OF FOSTERING A VIBRANT POSITIVE ENFORCEMENT OF JEWISHNESS FOR ALL PEOPLE. SO THANKS AGAIN.

>> MAYOR A. ISHII: THANK YOU.

>> THANK YOU, MAYOR ISHII. I'M HANNAH WISE IN OF THE MAGNUS COLLECTION OF JEWISH ART AND LIGHT. IT'S AN HONOR TO RECEIVE THIS PROCLAMATION. AS A MUSEUM THAT SERVES BOTH OUR CAMPUS AND PUBLIC COMMUNITY HERE IN BERKELEY, WE REALLY STRIVE TO BE A PLACE WHERE OUR JEWISH COMMUNITY HAS A SENSE OF BELONGING IN THE BEAUTIFUL DIVERSE CITY AND WHERE MEMBERS OF THE ENTIRE BERKELEY COMMUNITY CAN COME AND LEARN AND BE IN COMMUNITY TOGETHER. WE APPRECIATE VERY MUCH THE CITY COUNCIL'S RECOGNITION OF JEWISH-AMERICAN HERITAGE MONTH AND THANK YOU FOR THE PROCLAMATION.

>> MAYOR A. ISHII: I ALSO WANT TO SAY A HUGE THANK YOU TO COUNCILMEMBERS LUNAPARRA AND TREGUB AND IF I MISSED ANYONE WHO WORKED ON THE PROCLAMATION. I THINK WE'RE GOING TO TAKE A QUICK PICTURE WITH YOU.

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>> MAYOR A. ISHII: THE SECOND IS FOR THE EAST BAY AFFORDABLE HOUSING MONTH. WHEREAS AFFORDABLE HOMES ARE VITAL FOR JUST COMMUNITIES AND ORGANIZING CHAMPIONS AN ECONOMICALLY JUST COMMUNITY FOR ALL AND WHEREAS EVEN BEFORE CURRENT HIGH INFLATION RATES INCREASING HOUSING COSTS LED LONG TIME RESIDENTS TO BE DISPLACED, LIVE IN OVERCROWDED HOMES OR EXPERIENCE HOMELESSNESS THREATENING OUR RACIAL DIVERSITY AND STABLE HOMES ARE THE SOLUTION TO HOMELESSNESS AND SUPPORT SENIORS, FAMILIES, YOUTH, VETERANS, PEOPLE WITH DISABILITIES OR SPECIAL NEEDS AND OUR WHOLE COMMUNITY. WHEREAS THERE ARE CONCERTED EFFORTS TO DRASTICALLY REDUCE ALL TOGETHER ELIMINATE FEDERAL FUNDING AND LED TO CANCELLATION OF HALF THE GRANTS FAIR HOUSING INITIATION PROGRAMS AND THE CANCELLATION OF TECHNICAL ASSISTANCE AND SMALL GRANTS ACROSS THE COUNTRY AND WHEREAS PROPOSED BUDGETS FOR OUR NATIONAL DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT CAN SEND SHOCK WAVES THROUGH HOMELESSNESS ASSISTANCE PROGRAMS LEAVING COMMUNITIES WITHOUT CRITICAL ROLE AND THE ROLE OF REGIONAL BODIES HAS NEVER BEEN SO CRITICAL FOR PRESERVING AND PROTECTING AFFORDABLE HOUSING OPPORTUNITIES FOR LOW INCOME COMMUNITIES AND WHEREAS LOCAL HOUSING ORGANIZATION CONTINUING TO RECOGNIZE MAY AS BAY AREA AFFORDABLE HOUSING MONTH BECAUSE REGIONAL ACTION TO A GROWING REGIONAL HOUSING CRISIS IS AN ESSENTIAL PART OF RECOVERY FROM THE PANDEMIC AND WORK TO ENSURE EVERYONE HAS AN

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AFFORDABLE AND STABLE HOME AND WHEREAS EAST BAY HOUSING ORGANIZATIONS HAS ORGANIZED AFFORDABLE HOUSING WEEK FOR 29 YEARS ACKNOWLEDGING THE NEED FOR AND BENEFITS OF AFFORDABLE HOMES. NOW, THEREFORE BE IT RESOLVED, I, MAYOR ISHII DECLARE MAY AS AFFORDABLE HOUSING MONTH IN THE EAST BAY. I BELIEVE IT WILL BE RECEIVED BY DANA AND A FORMER CITY OF BERKELEY EMPLOYEE.

>> YOU GOT THAT IN THERE. GOOD EVENING, THANK YOU FOR RECOGNIZING AFFORDABLE HOUSING MONTH AND AFFIRMING YOUR COMMITMENT TO AFFORDABLE HOUSING. THANK YOU MAYOR AND CITY COUNCIL. AS A RESIDENT AND COMMUNITY ORGANIZER MEMBER I'M HAPPY TO RECEIVE THIS PROCLAMATION AND AS WE CELEBRATE AFFORDABLE HOUSING MONTH, MEMBERS AND STAFF HAVE ORGANIZED OVER 30 PUBLIC EVENTS ACROSS THE EAST BAY IN ALMEIDA AND CONTRA COSTA COUNTIES INCLUDING BERKELEY MAY 29. TO SEE MORE GO TO THE APOLD.COM. THANK YOU FOR THE HONOR.

>> MAYOR A. ISHII: OKAY, SO FOR OUR FINAL PROCLAMATION THIS EVENING I'M HONORED TO PRESENT THE PROCLAMATION FOR ASIAN PACIFIC ISLANDER MONTH AND IT'S MY HONOR AND A COUNCILMEMBER ALSO IN THE COMMUNITY. WE'RE PROCLAIMING MAY AS ASIAN AMERICAN PACIFIC ISLANDER HERITAGE MONTH. WHEREAS THE MONTH OF MAY IS RECOGNIZED ACROSS THE UNITED STATES AS ASIAN AMERICAN PACIFIC ISLANDER HERITAGE MONTH TO HONOR THE HISTORY, CULTURES AND CONTRIBUTIONS OF ASIAN AMERICANS, NATIVE HAWAIIANS AND PACIFIC

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ISLANDERS WHO ENRICHED OUR NATION AND LOCAL COMMUNITIES AND WHEREAS THE CITY OF BERKELEY HOME TO A DIVERSE POPULATION WHOSE CULTURAL TRADITION AND ENTREPRENEURIAL SPIRIT AND COMMUNITY ACTIVISM SHAPED THE FABRIC OF OUR CITY AND API INDIVIDUALS CONTRIBUTED AS A CENTER OF INNOVATION AND SOCIAL JUSTICE AND ACTIVISM TO THE ARTS AND SCIENCES AND SMALL BUSINESSES THAT STRENGTHEN OUR LOCAL ECONOMY AND WHEREAS WE ACKNOWLEDGE THE CHALLENGES AND DISCRIMINATION THAT API COMMUNITIES HAVE FACED INCLUDING RACISM, XENOPHOBIA AND RECOMMIT TO STANDING IN SOLIDARITY AGAINST HATE AND INJUSTICE IN ALL FORMS AND IT PROVIDES AN OPPORTUNITY FOR ALL BERKELEY RESIDENTS TO LEARN FROM THE HISTORIES, VOICES AND EXPERIENCES OF AAPI COMMUNITIES AND DEEPEN OUR COMMITMENT TO EQUITY AND INCLUSION. BE IT RESOLVED, I, MAYOR ADENA ISHII PROCLAIM THE MONTH OF MAY 2025 AS ASIAN AMERICAN AND PACIFIC ISLANDER HERITAGE MONTH IN CITY OF BERKELEY AND UPLIFT THE MANY CONTRIBUTIONS OF OUR AAPI NEIGHBORS, LEADERS AND ANCESTORS WHO CONTINUE TO INSPIRE A MORE JUST AND INCLUSIVE BERKELEY. I GUESS YOU AND I ARE RECEIVING THIS ONE. THANK YOU. ALL RIGHT. FINALLY WE HAVE ONE MORE CEREMONIAL MATTER TO ADJOURNMENT IN MEMORY OF CHRISTINA MURPHY THOUGH WE HAVE THIS -- OF COURSE WE DON'T WANT TO MAKE YOU WAIT TO THE END TO READ THIS SO I'LL HAVE COUNCILMEMBER TREGUB SHARE SOME WORDS NOW. THANK YOU TO HER FAMILY WHO IS HERE TODAY.

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>> I. TREGUB: THERE TRULY ARE NO WORDS SO I DIDN'T WRITE ANY. I'M GOING TO SPEAK FROM THE HEART BECAUSE THERE ARE NO WORDS TO DESCRIBE THE FULL DEPTH OF THE AMAZING, AMAZING HUMAN BEING AND PUBLIC SERVANT AND GIVER. AND NOW ANGEL LOOKING DOWN SHINING A BRIGHT LIGHT ON US THAT CHRISTINA MURPHY HAS BEEN AND CONTINUES TO BE. I HAVE THE DEEP LUCK OF BEING INTRODUCED TO CHRISTINA IN 2016 WHEN WE WERE BOTH RUNNING FOR THE BERKELEY RENT BOARD AND WE GOT A CHANCE TO BECOME VERY GOOD FRIENDS ON THE TRAIL AND DEEPER -- A FRIENDSHIP RUNNING DEEPER WHEN WE HAVE AN OPPORTUNITY TO SERVE TOGETHER. IN HER TIME ON THE RENT BOARD, CHRISTINA ADVANCED A NUMBER OF CAUSES THAT REALLY ENSURED THAT WE WERE DOING EVERYTHING WE POSSIBLY COULD BE FOR THE LEAST OF US. IN FACT, CHRISTINA RAN AS A VOICE FOR THE VOICELESS. BUT SHE IS -- EVERYONE CAMPAIGNS, MYSELF INCLUDED, COMES UP WITH SLOGANS. THERE'S VERY FEW PEOPLE I HAVE EVER MET IN MY LIFE THAT DEMONSTRATED A COMMITMENT TO THAT SLOGAN. THAT IS WHO SHE ALWAYS WAS. CHRISTINA WAS AND REMAINS A VOICE FOR THE VOICELESS. FOLLOWING HER SERVICE ON THE RENT BOARD, SHE CONTINUED TO WORK WITH NONPROFITS AND LATER THE CITY OF BERKELEY ON THE HOMELESS RESPONSE TEAM. AND I MET SO MANY PEOPLE THAT FOUGHT MORE MEETING CHRISTINA WOULD NOT HAVE A ROOF OVER THEIR HEAD. WOULD NOT HAVE RESOURCES THAT THEY NOW HAVE. EVEN UPON RECEIVING HER DIAGNOSIS WHICH WAS DEVASTATING AND I CAN'T EVEN IMAGINE WHAT HER FAMILY

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HAS GONE THROUGH BUT EVEN THEN CHRISTINA WAS ALWAYS THINKING ABOUT OTHERS AHEAD OF HER. FROM GIVING AWAY HER SHOE COLLECTION TO THINKING ABOUT HOW TO ENSURE RESOURCES FOR OTHERS AND THAT WHO SHE HAS BEEN CONSISTENTLY. WHEN MY HOMELAND WAS INVADED IT WAS A RESOURCE SOURCE SHE WAS ORGANIZING AT THE ASHBY FLEA MARKET AND EVEN THEN SHE GAVE ME AN OPPORTUNITY TO SAY A FEW WORDS ABOUT THE CAUSE OF UKRAINE AND I JUST -- SOMEONE WHO PUTS CAUSES AND HUMANITY AND THE WELL BEING OF OTHERS AHEAD OF HERSELF, SOMEONE LIKE THAT WE'RE VERY LUCKY IF WE MEET ONE PERSON WHO DEMONSTRATES THAT THROUGHOUT IN A LIFE TIME. AND THOSE OF US WHO GOT TO KNOW CHRISTINA, PARTS OF HER CIRCLE OF THE COMMUNITY BECAUSE CHRISTINA EXPANDED THE COMMUNITY. SHE BROADENED THE COMMUNITY. ALL OF US WERE FORTUNATE TO BE TOUCHED BY HER. AND FOR THOSE OF YOU WHO DID NOT HAVE THE BENEFIT OF KNOWING CHRISTINA, HER LEGACY CONTINUES TODAY. IN THE AFFORDABLE HOUSING ITEMS THAT ARE ON OUR AGENDA TONIGHT, IN THE RESOURCES THAT THE CITY IS WORKING ON, EVEN DESPITE DEEP FINANCIAL CHALLENGES, CHRISTINA'S LIGHT CONTINUES TO SHINE UPON US. WE NOW BEAR THE RESPONSIBILITY TO CONTINUE HER HEAVENLY WORK ON THIS EARTH AND WE WILL DO OUR VERY BEST TO DO SO. CHRISTINA, PRESENTE.

>> MAYOR A. ISHII: THANK YOU SO MUCH. I REALLY APPRECIATE YOU SHARING THOSE WORDS AND A REMEMBER CHRISTINA RUNNING FOR RENT

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BOARD BACK IN THE DAY A WHILE AGO AND GLAD WE'RE ABLE TO ADJOURN IN HER MEMORY. I KNOW HER FAMILY IS HERE AND WONDERED IF ANYONE WANTED TO SAY ANYTHING.

>> FIRST THANK YOU FOR THE KIND WORDS. I CAN TELL MY SISTER MEANT A LOT TO YOU. SHE WAS WORKING IN HER THROUGHOUT AND FOUGHT FOR PEOPLE WHO DIDN'T HAVE VOICES. AND I'M THANKFUL YOU GUYS WILL CONTINUE TO PUSH ON FOR HER BECAUSE SHE'S WITH YOU AN ADVOCATE FOR SO MANY THINGS, HOMELESSNESS, DRUG ABUSE, MENTAL HEALTH AND WE ALL SUFFER FROM A LOT OF THAT AND WITHOUT HER, A LOT OF PEOPLE WOULDN'T SEEK HELP. SHE WAS A WALKING RESOURCE. IF YOU DIDN'T KNOW HOW TO FIND THE HELP, CHRISTINA ALREADY KNEW WHERE IT WAS AT AND MOST THE TIME SHE USED TO HAVE THE PAPERWORK IN HER TRUNK. SHE HAD RESOURCES EVERYWHERE. I'M A STAND UP COMIC AND I NEVER FORGET CHRISTINA GOT ON STAGE AND INSTEAD OF TELLING JOKES SHE STARTED HANDING OUT RESOURCES AND THAT'S THE KIND OF PERSON CHRISTINA WAS. SO I'D LIKE TO THANK YOU GUYS FOR HAVING HER AND BEING BY HER SIDE AND FOR HAVING THE LOVE FOR MY FAMILY.

>> MY NAME IS CHRIS. I'M CHRISTINA MURPHY'S SISTER. THANK YOU IGOR FOR INVITING US AND SHARING THE KIND WORDS AND THANK YOU MAYOR FOR ALLOWING US TO HONOR HER AND HER LEGACY. I'M REALLY GRATEFUL I HAD A SISTER LIKE HERE. SHE WAS ROUGH AND VERY SWEET AND SENTIMENTAL. DURING COVID, WE DEFINITELY BONDED MORE AND SHE INTRODUCED ME TO A LOT OF ORGANIZATIONS THAT SHE WAS A PART OF.

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I DID HELP HER ALSO CANVAS THE AREA FOR RENT BOARD AND THAT WAS TOWN TO HAVE AN OPENING EXPERIENCE IN POLITICS AND ADVOCACY WORK AND I DEFINITELY HAVE A QUIETER VOICE BUT SHE IS THAT VOICE FOR ME AS WELL AND THANK YOU COUNCILMEMBERS FOR SHOWING HER GRACE AND PATIENCE AND ALLOWING HER TO SPEAK FOR PEOPLE AND FOR THE COMMUNITY AND FOR THOSE WHO ARE INSECURE HOUSING AND THINGS LIKE THAT UP OUR HOMETOWN. BORN AND RAISED IN BERKELEY. BERKELEY HIGH, U.C. BERKELEY AND IT'S IN OUR BLOOD AND I APPRECIATE YOU FOR GIVING HER THIS SPACE TO BE WHO SHE WAS AND IS FOR THE COMMUNITY. THANK YOU ALL.

>> MAYOR A. ISHII: THANK YOU.

>> THANK GOD FIRST. MIGHTY GOD, I'M GONNA HONOR YOU. YOU ALL. I APPRECIATE YOU ALL FOR RECOGNIZING, OKAY. MY NAME IS DWAYNE DIXON. BORN AND RAISED IN COMPTON. GREW UP IN WATTS. WATTS IS MY HOMETOWN. I CAME OUT HERE AND SHE SAID COUSIN WILL YOU GO WITH ME AND I SAID WHERE DO YOU GOT TO GO? SHE SAID MY JOB. SO IF I START YOU KNOW WHAT I'M SAYING. ANYWAY, I GO UP WITH HER AND SHE PICKED UP FLYERS AND WE'RE IN A CABIN AND THEN A NOTE AND WE'RE DOING COMMUNITY CLEAN UP. GOT SOME VALUABLES AND EVERYTHING WAS HERE AND EVERYTHING HERE WAS GOING TO GET THROWN AWAY. YOU KNOW WE WENT DOOR TO DOOR TO DOOR EVERYTHING. BECAUSE MYSELF, DO I ENGINE WORK. I'M AN ADVOCATE IN L.A. IDEAL WITH LIFERS COMING HOME FROM PRISON AND I'VE BEEN DOING THIS SINCE 2013. SO I'VE

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DOING THIS SO I'M A GURU ON RESOURCE AND CHRISTINE USED TO COME SAYING WHO DO I TALK TO? I'LL CALL SUCH AND SUCH, RIGHT AND IDEAL WITH MAXINE WATERS AND EVERYBODY ELSE IN L.A. BUT NOW I HAVE TO RESEARCH FOR HER OUT HERE AND WE HAD EACH OTHER'S BACK AND WHAT I FOUND OUT AND DIDN'T KNOW AND MY MAMA AND MY COUSIN, CHRISTINA, WHILE I WAS IN PRISON ALL THIS TIME YOU KNOW WHAT I'M SAYING. I DIDN'T LEARN MY LESSON BECAUSE I'M A SPOILED BRAT. I KNOW. I DIDN'T KNOW. CHRISTINA, MY MOM, POP. YOU KNOW WHAT I MEAN. AND SO WHEN I CAME DOWN AND CHRISTINA TOLD ME THE STORY ABOUT HOW MUCH THE BOND SHE HAD WITH HAD MY MOM I WAS LIKE I DIDN'T KNOW THAT. I DIDN'T KNOW. AND ME AND HER AND SHE STARTED SAYING, ACTING LIKE MY MOM, YOU KNOW WHAT I'M SAYING. TOOK ME UNDER HER WING, YOU KNOW WHAT I MEAN AND I'M THE OLDEST COUSIN AND I'M A WORK IN PROGRESS RIGHT NOW BUT MAYOR, I HAVE A T-SHIRT AND SHOP IN WATTS WE TEACH KIDS HOW TO BECOME ENTREPRENEURS, RIGHT. I GOT A T-SHIRT SHOP. I DO PRINTING AND WE DO TATTOOS AND I WANT TO GIVE THE MAYOR THE SHIRT. I DON'T WANT YOU TO EVER FORGET MY COUSIN EVER. [APPLAUSE] I'M GOING TO DO THAT ON BEHALF OF CHRISTINA, YOU KNOW WHAT I'M SAYING. ON BEHALF OF CHRISTINA. YEAH. MY SHOP ON WATTS AND YEAH, YEAH. LAST MINUTE ORDER, YOU WANT A SHIRT, LET ME KNOW. I GOT YOU. AND COLBY, HER HUSBAND, RIGHT.

>> MAYOR A. ISHII: THANK YOU SO MUCH. THANK YOU.

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>> I WANT TO SAY THANK YOU THOUGH. I WANT TO THANK YOU. I'M NOT TRYING TO PROMOTE ANYTHING JUST MY COUSIN IS LIKE MY MOMS. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> THANK YOU FOR THE OPPORTUNITY.

>> MAYOR A. ISHII: THANK YOU SO MUCH. I APPRECIATE IT. THANK YOU. THANK YOU ALL FOR BEING HERE I KNOW THERE'S QUITE A BIT OF HER FAMILY MEMBERS HERE TODAY SO THANK YOU ALL FOR MAKING THE TIME TO COME OUT AND THANK YOU, COUNCILMEMBER TREGUB FOR THE WORDS AS WELL. DEFINITELY FROM THE HEART. NEXT ON THE AGENDA. I FEEL LIKE WE NEED TO TAKE A MOMENT. LATE JUST TAKE A MOMENT. OKAY. CITY MANAGER, DID YOU HAVE COMMENTS?

>> CITY MANAGER: NO, MADAME MAYOR THANK YOU FOR THE REMARKS ABOUT CHRISTINA MURPHY. SHE STILL HAS AN EMPTY OFFICE SPACE WE ALL WALK BY EVERY DAY AND SHE LIVED HER LIFE FREE AND WITH LOVE AND IS DEEPLY MISSED BY ALL OF US AS WELL. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. THANK YOU VERY MUCH. OKAY. WE ARE MOVING ON TO PUBLIC COMMENT ON NON-AGENDA MATTERS.

>> MAYOR A. ISHII: OKAY. OUR CITY CLERK IS PICKING UP CARDS. THIS IS FOR PUBLIC COMMENT ON NON-AGENDA MATTERS.

>> CLERK: WE HAVE FOUR CARDS. WE HAVE GINA RIGOR, RICHARD WOOD, CHERYL, AND STEVE TRACY.

>> MAYOR A. ISHII: OKAY. IF THOSE FOLKS CAN COME UP, PLEASE.

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>> CLERK: COME UP ALONG THE SIDE. ANN ORDER AND THEN WE HAVE FOUR PEOPLE ONLINE SO ONE MINUTE EACH.

>> MAYOR A. ISHII: OKAY. GO AHEAD AND COME UP.

>> CLERK: ONE MINUTE.

>> MAYOR A. ISHII: IT DEPENDS ON HOW MANY WE HAVE.

>> IT GETS SHORTER EVERY TIME. I'M HERE TO TALK ABOUT ENCAMPMENTS AND CURRENTLY THERE'S A TENT IN THE PARK WHICH HAS BEEN REPORTED TO THE CITY. I REPRESENT, I BELIEVE THE MAJORITY OF STAKEHOLDERS WHO LIVE, VOTE AND PAY TAXES IN BERKELEY AND VALUE DEEPLY OUR BEAUTIFUL PARKS. SOME OF WHICH ARE BESIEGED BY ENCAMPMENTS AND PERMANENT SQUATTERS. OUR PEACEFUL ENJOYMENT IS COMPROMISED WHEN PEOPLE LIVE IN OUR PARKS IN BLATANT VIOLATION OF OUR LAWS. WHEN WE HAVE NO IDEA THOSE INHABITING OUR SPACES WILL ACT UNLAWFULLY FOR WITHOUT CIVILITY IT'S AN AFFRONT TO US TO HAVE TO GUESS WHETHER OUR FAMILIES, CHILDREN, GRANDCHILDREN, FRIENDS, WILL BE CONFRONTED, ACCOSTED VIEW, PUBLIC URINATION. ETCETERA.

>> MAYOR A. ISHII: THANK YOU. SORRY, YOUR TIME IS UP. I KNOW YOU ASKED A QUESTION ABOUT ON THE AGENDA IT SAYS THAT IF MORE THAN FIVE PEOPLE ARE SELECTED THEN THEY'LL EACH BE GIVEN A MINUTE TO JUST TO ANSWER YOU'RE YOUR QUESTION EARLIER.

>> I THOUGHT THERE WERE ONLY FIVE PEOPLE.

>> MAYOR A. ISHII: THERE'S ONLINE AS WELL. NEXT PERSON PLEASE.

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FOR FOLKS WHO HAVEN'T BEEN HERE BEFORE, I'M A STICKLER FOR TIME SO WHEN YOUR MINUTE IS UP, IT'S UP. GO AHEAD.

>> HELLO. I WANTED TO STOP IN AND TELL YOU ABOUT THE STARBUCKS ON CHERRY CREEK BY THE UNIVERSITY GATE. THE CREEK RUNS UNDER THERE AND THE BUILDING IS SCHEDULED TO BE DEMOLISHED AND REPLACED WITH SOMETHING BIGGER, RESIDENTIAL OR BIGGER AND THOUGHT THE STREAM COULD BE CONSIDERED FOR DAYLIGHTING. OTHER THAN THAT, BEFORE I LEFT I FIGURED I WOULD TELL YOU THAT IT IS VERY DISAPPOINTING THAT EVERYBODY LIKES TO COOK THE BOLD SEXY GIRLFRIEND A HAMBURGER AND TURN HER INTO FOOD WHEN SHE WAS A COW AND I'M TELLING YOU A HEN THAT NEVER ATE WORMS NEVER SAID BLOOD AND IF IT NEVER SAID BLOOD, YOU'RE THE BLOOD-SHEDDER AND SHALL NOT KILL A COW THAT NEVER HARMED ANOTHER LIVING CREATURE. YOU DON'T HAVE THE ESTABLISHMENT OF THE LAW IN ANY PLACE.

>> MAYOR A. ISHII: THANK YOU. NEXT SPEAKER.

>> I'M BACK. ONE TENT IN CORDNASES AND I DIDN'T UPDATE THAT BUT I GOT A LETTER. I JUST GOT IT. THEY'RE TOO BUSY. THEY'RE TOO STRETCHED. AND I'M A TEACHER AND IT'S SIMPLE MATH. WHICH IS BIGGER, 31 OR ONE? WE CAN SOLVE THE PROBLEM THERE BY ENFORCING ONE CAMPER OUT FROM IT BECOMES 31 LIKE POOR OHLONE BEFORE LET'S DO EASY MATH AND IT'S A PUBLIC NUISANCE. HE FORWARDED THE ENCAMPMENT POLICY FROM LAST YEAR BUT THERE IS AN EXCEPTION, COUNCIL TAKE ACTION, DECLARE A PUBLIC NUISANCE. CAMPER OUT.

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>> MAYOR A. ISHII: THANK YOU FOR YOUR COMMENT. NEXT SPEAKER.

>> ALL THE PEOPLE IN PALESTINE ARE UNHOUSED AND LIVING IN ENCAMPMENTS OR STARVING AND YOU SHOULD HAVE SOME COMPASSION FOR THOSE LIVING ON THE STREETS WHO CAN'T AFFORD THE EXPENSIVE RENTS IN BERKELEY. BUT 14,000 BABIES ARE GONNA DAY WITHIN 48 HOURS IN PALESTINE. 14,000. THEY'RE STARVING AN 8-MONTH-OLD BABY LOOKS LIKE A NEWBORN BECAUSE IT'S BEEN STARVED. FREE PALESTINE. I KNOW YOU PASS A ZIONIST RESOLUTION BUT NOW YOU CAN STILL DO SOMETHING THAT IS GOING TO CHANGE THE WORLD. YOU CAN STILL. THERE'S STILL TIME. YOU CAN DO AN ARMS EMBARGO. YOU CAN SUPPORT LETTING THE FOOD IN. THERE'S ALL KINDS OF THINGS YOU CAN DO. FREE PALESTINE AND STOP THE ENFORCEMENTS ON AN UNHOUSED COMMUNITY.

>> MAYOR A. ISHII: THANKS FOR YOUR COMMENT.

>> OKAY. GOING TO THE ONLINE COMMENTERS.

>> MAYOR A. ISHII: DO WE WANT TO TAKE THIS LAST PERSON?

>> CLERK: I GUESS WE CAN. WE HAVE THREE ONLINE COMMENTERS.

>> I'M GORDON SPEAKING FOR THE BERKELEY OUTREACH COALITION.

>> MAYOR A. ISHII: SPEAK CLOSER TO THE MIC.

>> NOTICE WAS POSTED NOTIFYING ENCAMPMENT RESIDENTS THEY NEEDED TO VACATE. WHAT MANY DON'T KNOW IS OHLONE WAS FOUNDED AS PEOPLE'S PARK ANNEX, AKA INSURRECTION CITY TO BE HELD IN PUBLIC SPACE FOR ALL AS WE CALL OURSELVES AS SANCTUARY CITY AND WE HAVE PUBLIC SPACE AND RIGHT OF WAY.

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>> MAYOR A. ISHII: THANK YOU FOR YOUR COMMENT. WE CAN GO TO ONLINE NOW.

>> CLERK: FIRST IS EVA. YOU SHOULD BE ABLE TO UNMUTE.

>> THANKS. CAN YOU HEAR ME OKAY.

>> YES.

>> THANK YOU. I WANT TO THANK CHERYL DAVILA FOR TALKING WITH THE BABIES IN GAZA. IT'S A DIRE SITUATION AND UNFORTUNATELY IT'S LINKED TO THE HOMELESSNESS PROBLEM HERE IN CALIFORNIA. WE COULD HAVE SOLVED HOMELESSNESS IF WE WERE NOT SENDING TENS OF BILLIONS OF DOLLARS TO ISRAEL TO COMMIT A GENOCIDE THAT IS DAMAGING U.S. NATIONAL SECURITY ON TOP OF THE MORAL INJURY WE'RE PART OF BECAUSE WE PAY TAX DOLLARS AND I FOLLOWED TO OPPOSE AV715 THAT STORY IS ONLINE AND THE PRIOR ARTICLE PRIOR TO THE 715 ARTICLE HAS VIDEO WITH STATE SENATOR THAT'S OF INTEREST OF PEOPLE TO BERKELEY. THANK YOU FOR YOUR TIME.

>> MAYOR A. ISHII: THANK YOU.

>> CLERK: NEXT SPEAKER IS MADELINE. YOU SHOULD BE ALLOWED TO UNMUTE.

>> I'M MADELINE ROBERTS-RICH. I WAS HELPING OUT TO SAVE THE UNITED ARTIST THEIR TER COALITION AND WANT TO LET THE COMMUNITY KNOW APRIL 22 THE CITY COUNCIL ALLOWED FOR THE DEVELOPER TO MOVE FORWARD WITH AN EXEMPTION TO CEQA WHICH IS VERY MUCH AGAINST THE LAW. THEY'RE AWARE AND IF YOU'RE WONDERING WHY DOWNTOWN BERKELEY

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FLOUNDERS AND THERE'S NO ACTIVITY AT NIGHT, A BIG PART OF IT IS COMMERCIAL THEATRE AND THE INFRASTRUCTURE FOR THOSE THEATRES WAS NOT PROTECTED. I WASN'T CALLING FOR THE PRESERVATION OF THE THEATRE BUT ALLOWING AND MAKING SURE THE DEVELOPER WENT THROUGH THE LEGAL PROCESS OF A MITIGATED DECLARATION OR ENVIRONMENTAL IMPACT REPORT AS REQUIRED BY STATE LAW. YOU CAN LOOKING AT THE APRIL 22 MEETING. LOOK AT COMMISSIONER BARTLETT'S COMMENTS WHICH WERE EXTREMELY DISRESPECTFUL TO THE ARTIST INITIATIVE. I'LL KEEP COMING BACK.

>> MAYOR A. ISHII: YOU'RE TIME IS UP.

>> CLERK: NEXT IS CALLER WITH A NUMBER ENDING IN 191.

>> BEING TREATED AND I THINK HANDED THE PHONE AS WELL. BUT I COMMENTED AND SHOULD CONSIDER HOW DIFFERENT EMPLOYEES IN THE CITY BEHAVE BECAUSE SOME SHOWS. BUT MY CALL IS ABOUT MY GOOD FRIEND. THERE WAS THE SYNAGOGUE AND PASSED AWAY AUGUST 2024. HE WAS A GOOD MAN. AND MUSLIM, CHRISTIANS ARE COUSINS. ZIONISTS IS NOT WHAT WE ARE. IT IS A WAR. AND THE BLOOD IN GAZA, ADULTS AND WOMEN IS IN ALL OF OUR HANDS. THE LACK OF CITY COUNCIL TO VOTE FOR IT AND TRUMP IS A MONSTER DESTROYING OUR COUNTRY. I'VE LIVED HERE 62 YEARS AND PALESTINE I HATE IT.

>> MAYOR A. ISHII: THANK YOU FOR YOUR COMMEND.

>> CLERK: THAT'S THE LAST NON-AGENDA COMMENTER.

>> MAYOR A. ISHII: THANK YOU ALL FOR YOUR PUBLIC COMMENTS. I'LL

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MOVE ON TO THE CONSENT CALENDAR. SO PER GOVERNMENT CODE SECTION 54953 SUBSECTION C3 I'M PROVIDING VERBAL NOTICE THE CITY COUNCIL WILL ADOPT A RESOLUTION CONFIRMING JENELLE RODRIGUEZ AS THE DIRECTOR OF HUMAN RESOURCES TO BE EFFECTIVE JUNE 9, 2025, AT AN ANNUAL SALARY OF $240 ,000. I'D ALSO LIKE TO MOTION TO ADD THE URGENCY ITEM FOR THE EXCUSED ABSENCE FOR COUNCILMEMBER BEN BARTLETT FOR THE AGENDA. I WANT TO MAKE A MOTION. I GOT A SECOND HERE. ANY QUESTIONS ABOUT THAT? CAN WE TAKE THE ROLL, PLEASE? WE NEED TWO-THIRDS TO ADD IT TO THE AGENDA.

>> CLERK: TO ADD THE ITEM TO THE AGENDA, KESARWANI. YES. TREGUB. YES. BLACKABY. YES. LUNAPARRA. YES.

>> MAYOR A. ISHII: IT WILL BE ADDED TO THE CONSENT. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANKS, MADAME MAYOR. I HAVE A FEW COMMENTS ON CONSENT ITEMS. FIRST ON ITEM 1, I APPRECIATE MY COLLEAGUES' SUPPORT OF ADDING ADA COMPLIANCE EXPERTISE TO THE SSCOC WHICH WE'LL BE DISCUSSING LATER TONIGHT. THE COMPOSITION OF THE COMMITTEE AND LOOKING FORWARD TO THE DISCUSSION AND APPRECIATE THE SUPPORT OF GETTING THAT PIECE ADDED. I WANT TO ADD MY WELCOME TO JENELLE RODRIGUEZ AGAIN ADOPTING THE CONSENT CALENDAR AND LOOKING FORWARD TO WORKING WITH HER AND HER EXPERTISE SO WELCOME AND THANK YOU FOR JOINING US. ITEM NUMBER 26, THANK COUNCILMEMBER TAPLIN FOR THE RESOLUTION SUPPORTING SENATOR

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ARREGUIN'S BILL THE BUYBACK PROGRAM. IT'S BEEN SUCCESSFUL AND I APPRECIATE COUNCILMEMBER TAPLIN'S ON THE ITEM AND HOPEFULLY WE CAN DO MORE HERE AND ACROSS THE STATE. ITEM 27, DO YOU HAVE A SPOT AS A CO-SPONSOR?

>> I. TREGUB: I'D BE DELIGHTED.

>> B. BLACKABY: I APPRECIATE YOUR WORK ON THAT. ITEM 28 ON THE ASIAN CULTURAL FESTIVAL. I WOULD LIKE TO ADD $250 FROM THE D6 DISCRETIONARY ACCOUNT AND ONE OF COUNCILMEMBER TREGUB'S ITEM AND ON ITEM 29, JUST WANTED TO THANK COUNCILMEMBER O'KEEFE FOR ALL HER WORK AND THE OTHER CO-SPONSORS, MAYOR ISHII AND LUNAPARRA AS WE'RE SEEKING ADDITIONAL SHORT TERM SOLUTIONS WE HEARD IN PUBLIC COMMENT TONIGHT AND MANY OTHER PUBLIC COMMENTS IN PREVIOUS EVENINGS TRYING TO FIND SHORT TERM SOLUTION TO MOVE PEOPLE OUT OF ENCAMPMENTS AND INTO PLACES WHERE THEY HAVE SAFE HOUSING ON THE WAY TO A MORE LONG-TERM SUSTAINABLE SOLUTION. AND I APPRECIATE THE WORK OF COUNCILMEMBER O'KEEFE AT TRYING TO CRAFT SOMETHING TO CLOSE THE GAP IN THE SHORT TERM AND LOOK FORWARD TO WORKING WITH YOU AND HEARING FROM THE CITY MANAGER IN THE WEEKS AND MONTHS WHAT WE CAN DO THERE. THOSE WHERE MY COMMENTS. MADAME MAYOR.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: THANK YOU, COUNCILMEMBER BARTLETT FOR TEEING ME UP. I'D LIKE TO SPEAK ABOUT 29 ALTERNATIVE HOUSING FOR PEOPLE

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EXPERIENCE HOMELESSNESS. BACK IN FEBRUARY, I ATTENDED THE COMMUNITY MEETING HOSTED BY COUNCILMEMBER TREGUB AND MAYOR ISHII WITH BE THE PARK ENCAMPMENT. WE HEARD FROM OVER 200 MEMBERS OF THE COMMUNITY ABOUT WHAT TO DO IN RESPONSE TO THAT SITUATION. SOME WERE PRIMARILY CONCERNED ABOUT THE AFFECT ON THE STUDENTS OR PUBLIC AND MANY EXPRESSED ANGER AND FRUSTRATION BUT THE ENCAMPMENT MADE IT DIFFICULT FOR THE PUBLIC TO USE AND ENJOY ONE OF OUR WONDERFUL PARKS. OF COURSE MANY MANY PEOPLE EXPRESSED OUTAGE AND DISMAY THAT PEOPLE IN OUR COMMUNITY WERE LIVING IN THESE TERRIBLE CONDITIONS. ONE THING WE HEARD OVER AND OVER AGAIN FROM ALMOST EVERY PERSPECTIVE REPRESENTED WAS THE DEMAND THAT WE, CITY LEADERSHIP DO BETTER. TRY HARDER TO FIND WAYS TO HELP UNSHELTERED PEOPLE. AT THE SAME TIME TO RESTORE OUR PUBLIC PLACES SO THEY CAN BE USED BY ALL. MY OFFICE HAS RESOURCED INCLUDING THE ALL COUNCIL INBOX HAS RECEIVED ABOUT 800 E-MAILS ABOUT HOMELESSNESS. AND I HAVE BEEN IN OFFICE FOR ABOUT 150 DAYS. THIS ITEM, 29 IS A DIRECT RESPONSE MANDATE FROM THE COMMUNITY. WE HEAR YOU LOUD AND CLEAR. RIGHT NOW OUR WONDERFUL HOMELESS RESPONSE TEAM WORKS EXTREMELY TO WORK HARD TO CONNECT THOSE ON THE STREETS IDEALLY MOVING THEM TO HOUSING. IT'S NOT ENOUGH. THERE'S NOT ENOUGH BEDS. AS CITY LEADERS WE CANNOT CONTINUE WITH THE STATUS QUO. WE HAVE TO KEEP TRYING TO FIND INNOVATIVE SOLUTIONS AND DO WHATEVER WE CAN TO IMPROVE THE

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SITUATION NO MATTER WHAT THE OBSTACLES. THIS IS THE HARD WORK THAT PEOPLE ELECTED US TO DO. ITEM 29, ALTERNATIVE HOUSING OPTIONS FOR PEOPLE EXPERIENCING HOMELESSNESS IS THE FIRST IN THE PATH TO ADDRESS HOMELESSNESS. IT'S A SMALL STEP. ALL IT DOES IS ASK CITY STAFF TO LOOK FOR POSSIBLE LOCATIONS WHERE A NEW KIND OF SHELTER MIGHT BE CREATED AND BY NEW, I DON'T REALLY MEAN NEW BECAUSE THE CONCEPT WE HOPE TO RECREATE ONE DAY HAS ALREADY BEEN PROVEN TO BE SUCCESSFUL. JUST A FEW YEARS AGO WITH THE HORIZON TRANSITIONAL VILLAGE AT 742 GRAYSON. I WON'T GO ON HOW WONDERFUL THE PROGRAM WAS. I KNOW SOME ARE HERE TO SPEAK ABOUT IT AND SUFFICE TO SAY THE GRAYSON STREET SITE WHICH SAFELY HOUSED ALMOST 150 PEOPLE IN TENTS AND MANY IN RVS AND CONNECTS NEARLY 50 PEOPLE TO PERMANENT HOUSING IN JUST 15 MONTHS REPRESENTED BERKELEY'S FINEST WORK AND TWO THINGS WE EXCEL AT, INNOVATION AND COMPASSION. I'M GRATEFUL TO CO-SPONSOR THIS WITH MAYOR ISHII AND LUNAPARRA AND BLACKABY AND AMENDMENTS BY TREGUB AND BARTLETT. MY HOPE IS IF THIS IS ULTIMATELY A SUCCESS, WE CAN HELP SO MANY MORE PEOPLE IN OUR COMMUNITY WHO NEED STABLE AND SAFE HOUSING OPTIONS AND AT THE SAME TIME RESTORE OUR PARKS AND SIDEWALKS TO PUBLIC USE. THIS IDEA FACES MANY MORE OBSTACLES BEFORE IT CAN BECOME A REALITY. BUT I'M PROUD TO BE TAKING THIS FIRST STEP TONIGHT. THANK YOU. I HOPE WE HAVE EVERYONE'S SUPPORT.

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>> MAYOR A. ISHII: THANK YOU.

>> M. HUMBERT: I'D LIKE TO GIVE FROM ANY DISCRETIONARY ACCOUNT TO ITEM 28 FUNDS FOR THE ASIAN FESTIVAL. THANK YOU. THAT'S THE ONLY COMMENT I HAVE.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. I'M GOING TO THROW IN COUNCILMEMBER TREGUB ON THIS. IT DOESN'T SHOW UP SO MY APOLOGIES.

>> I. TREGUB: FIRST, WELCOME, MS. RODRIGUEZ IF SHE'S IN THE CROWD OR LISTENING. WELCOME. WE'RE LOOKING FORWARD TO HAVING YOU ON BOARD. I'D LIKE TO EXPRESS MY PROFOUND APPRECIATION TO COUNCILMEMBER TAPLIN FOR HIS ITEM 26 LETTER IN SUPPORT OF SENATE BILL 692 RELATE TO VEHICLES AND HOMELESSNESS. DEFINITELY AN ITEM I WANT THE COUNCIL TO SUPPORT AS IT MOVES FORWARD. I'D LIKE TO THANK MEMBERS OF THE COUNCIL AND I'D LIKE TO PUT FROM THE DISCRETIONARY FUNDS TOWARDS ITEM 28 THE ASIAN CULTURAL FESTIVAL. I HAVE THE DEEP HONOR OF ATTENDING ONE IN DOWNTOWN BERKELEY JUST A FEW WEEKS AGO AND IT WAS PROFOUNDLY SPECIAL AND I KNOW THAT THROUGH OUR SUPPORT NEXT YEAR'S WILL BE EVEN BETTER. I WOULD LIKE TO THANK THE COUNCIL FOR CONSIDERING ITEM 27, A RESOLUTION RECOGNIZING THE MIDDLE EASTERN AND NORTH AFRICAN COMMUNITY ASSEMBLY BILL 91 AND LASTLY BUT CERTAINLY NOT LEASTLY, I WOULD LIKE TO THANK COUNCILMEMBER O'KEEFE AND ALL THE CO-SPONSORS FOR DRAFTING OR CO-SPONSORING ITEM 29 ALTERNATIVE HOUSING OPTIONS

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FOR PEOPLE EXPERIENCING HOMELESSNESS. AND I WOULD LIKE TO THANK THE MEMBERS OF THE HEALTH LIFE ENRICHMENT SUBCOMMITTEE WHICH ALSO INCLUDE COUNCILMEMBER O'KEEFE AND BARTLETT FOR WORKING SO COLLABORATIVELY TO ENSURE IN ADDITION TO THE FIRST PART OF THE ITEM TO LOOK FOR ALTERNATIVE HOUSING OPTIONS WE ALSO TAKE A HARD LOOK AT THE RESOURCES THE CITY ALREADY PROVIDES. WE HAVE A CITY OF 123,000 INDIVIDUALS LOOKING AT FURTHERING OPPORTUNITIES FOR COLLABORATION WITH THE COUNTY, WITH THE REGION, WITH OUR NEIGHBORING CITIES. MAKING SURE ALL OF OUR NEIGHBORS ARE DOING THEIR FAIR SHARE. THIS IS A CHALLENGING TIME FINANCIALLY FOR EVERY CITY AND THE COUNTY. WE MUST BE ABLE TO FIGURE OUT HOW TO DO MORE WITH LESS. AND I WILL SAY THAT THE AMENDMENTS THAT ARE UP FOR CONSIDERATION WERE DRAFTED IN COLLABORATION AND PARTNERSHIP WITH STAFF AND I WOULD LIKE TO THANK THE CITY MANAGER AND STAFF WORKING ON THESE ISSUES FOR CONTINUING TO PARTNER WITH THE COUNTY AND WITH OUR NEIGHBORS TO MAKE SURE THAT WE ARE IN ALIGNMENT AROUND THE PRINCIPLE THAT THIS IS A COMMUNITY THAT EVERYONE SHOULD BE ABLE TO CALL HOME. WITH THAT, I WILL NOT MAKE A MOTION ON THE CONSENT CALENDAR JUST YET BUT OH, ONE THING. WE DID RECEIVE E-MAILS AROUND THIS ITEM BY ONE INDIVIDUAL WITH A QUESTION OF WHETHER ON ITEM 29, THE CITY MANAGER WOULD BE DIRECTED TO TALK THE DIFFERENT PARTS OF THE RECOMMENDATIONS SEQUENTIALLY BEFORE THEY BRING FORWARD

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RECOMMENDATIONS FOR OPTIONS FOR ALTERNATIVE HOUSING. AND I JUST WANT TO CLARIFY IT WAS MY INTENT WITH THESE IMPLEMENTS AND I CONFIRMED THIS WITH THE CITY MANAGER AND YOU CAN CORRECT ME IF I AM MISSPEAKING, BUT ALL OF THESE CAN BE DONE IN PARALLEL NOT SEQUENTIALLY. SO WE AS A CITY HAVE BEEN GOOD AT BEING ABLE TO WALK AND CHEW GUM AT THE SAME TIME AND I HAVE EVERY BIT OF CONFIDENCE WE WILL CONTINUE.

>> MAYOR A. ISHII: THANK YOU. THANKS, COUNCILMEMBER. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU. I AM VERY HAPPY TO SEE ITEM 11 CODIFYING WHEN OUR CITY OFFERS A PROMOTION TO AN INTERNAL EMPLOYEE THEY RECEIVE FAIR FINANCIAL COMPENSATION ASSOCIATED WITH IT. I WANT TO THANK MONICA WALKER THE PERSONNEL BOARD AND CITY MANAGER AND ALL THE WORKER S WHO IDENTIFY THE INEQUITY AND I WILL BE ABSTAINING ON ONE ITEM AND WILL BE WORKING ON COLLABORATIVE SOLUTIONS MOVING FORWARD. AND I'D ALSO LIKE TO THANK COUNCILMEMBER O'KEEFE AND ALL THE WORK INTO ITEM 29. THANK YOU SO MUCH.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAME MAYOR. I WANTED TO CALL OUT ITEM NUMBER 8. THIS IS FUNDING THAT THE NORTH BERKELEY DEVELOPMENT HAS BEEN AWARDED FROM THE SUSTAINABLE COMMUNITIES FUND THIS IS $50 MILLION TO DO PUBLIC BIKE AND PEDESTRIAN

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INFRASTRUCTURE IMPROVEMENTS. I'M THRILLED TO SEE US MOVE THAT ITEM FORWARD TONIGHT AND THEN I ALSO WANT TO NOTE I'M HAPPY TO BE A CO-SPONSOR OF ITEM 21 FOR THE FESTIVAL, IT'S 28. THE ASIAN CULTURAL FESTIVAL AND HAPPY TO MAKE A CONTRIBUTION TO THAT ITEM. THANK YOU VERY MUCH.

>> R. KESARWANI: THE DOLLAR AMOUNT IS MENTIONED.

>> MAYOR A. ISHII: ANY OTHER COMMENTS FROM THE COUNCIL? MY SYSTEM IS NOT WORKING SO GIVE ME A WAVE. THANK YOU VERY MUCH TO COUNCILMEMBER O'KEEFE STAFF AND ALL THE STAFF THAT WORKED ON ITEM NUMBER 29. ITEM 29 AFFIRMS THE CITY COUNCIL'S POSITION THAT TO THE GREATEST EXTENT POSSIBLE THE COUNTY'S MEASURE W AND OTHER LOCALLY SOURCED FUNDS SHOULD BE USE TO SUPPORT BERKELEY HOMELESS SERVICE NEEDS AS OUTLINED IN FOUR PRINCIPLES IN THE ITEM. I'D LIKE TO REQUEST THE CITY MANAGER COMMUNICATE THE POSITION OF THE CITY COUNCIL AS IT SAYS THERE ALREADY BUT IN THE FORM OF A LETTER TO SUPERVISOR BASS AND ALMEIDA BOARD OF SUPERVISORS. THANK YOU. THAT'S MY ONLY COMMENT. OTHERWISE, THANK YOU ALL SO MUCH. I APPRECIATE EVERYONE'S WORK. I KNOW IT WAS A LOT. OKAY. NOW, WE'LL TAKE PUBLIC COMMENT ON CONSENT ITEMS AND INFORMATIONAL ITEMS ONLY. YOU'LL HAVE ONE MINUTE UNLESS YOU CAN GET ANOTHER MINUTE FROM SOMEONE ELSE.

>> OKAY.

>> JOHN CO-CHAIR OF THE BUSINESS ALLIANCE BUSINESS ORGANIZATION.

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BERKELEY ALIGNS THE BUSINESS ORGANIZATIONS WE'RE ABOUT TWO YEARS OLD. WE SENT THE LETTER WITH 10 BUSINESS ORGANIZATIONS SUPPORTING ITEM NUMBER 20. AND I WANT TO THANK COUNCILMEMBER O'KEEFE AND THE MAYOR, BLACKABY, TREGUB FOR AMENDMENTS. PEOPLE NEED A PLACE TO GO. AND WE NEED TO GET PEOPLE INTO CARE AND INTO SERVICES. WE NEED TO GET THEM ON THE PATH TO STABLE HOUSING. BUT, BUT WE NEED ENFORCEMENT. WE NEED ENFORCEMENT OF OUR SIDEWALK REGULATIONS AND PARK REGULATIONS. WE'RE SUCH A SMALL TOWN. IF WE HOUSE PEOPLE AND WE SHOULD, IN OUR STREETS, MORE PEOPLE WILL COME IN. WE NEED TO HAVE ENFORCEMENT. THERE NEEDS TO BE SOME TOUGH LOVE. WE ALSO SOME OF OUR MEMBERS ADDED THEY WANT TO MAKE SURE IF IT'S IN THEIR NEIGHBORHOOD --

>> MAYOR A. ISHII: THANK YOU. I'M SORRY.

>> THANK YOU, MADAME MAYOR, HONORABLE COUNCILMEMBERS I'M THE CHAIR OF THE POLICE ACCOUNTABILITY BOARD HERE TO SPEAK ON THE EQUIPMENT AND WISH COUNCIL WOULD ADOPT A RESOLUTION OF THE 2024 EQUIPMENT REPORT. I WOULD ASK THE COUNCIL TO DEFER, NOT REJECT, HEARING THE ITEM UNTIL THE IMPLEMENTATION OF THE REPORT. THE FIRST IS SUBSTANTIVE AND SECOND PROCEDURAL. SUBSTANTIVE THE POLICE IS REQUIRED TO REVIEW THE REPORT AND PURSUANT YOU CAN REQUEST RECORDS AND THE POLICE DEPARTMENT SAID NO YOU CAN'T SEE THOSE THOUGH UNDER THE CHARTER WE HAVE ACCESS AND THE CHARTER SAID THE CITY SHALL COOPERATE WITH AND ASSIST THE POLICE

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ACCOUNTABILITY BOARD AND PROVIDE ALL RECORDS AND WRITTEN INFORMATION AND MATERIALS AND EVIDENCE TO THE BOARD TO CARRY OUT DUTIES AND FUNCTIONS. IN THIS CASE IT DID NOT DO SO. THE SECOND REASON IS PROCEDURAL. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. GOOD EVENING, MAYOR, AND COUNCILMEMBERS MY NAME IS ROBBI MONTOYA EXECUTIVE DIRECTOR OF DOROTHY DAYE HOUSE AND HERE TO SUPPORT BILL 692 PROVIDING LEGAL FRAMEWORK TO OPERATE VEHICLE BUY BACK PROGRAMS. DOROTHY DAYE SAW FIRSTHAND THE TRANSFORMATIVE OFFERING DIGNITY AND CITY AND PATH FORWARD AND EXEMPLIFIED WHAT A STRONG PARTNERSHIP WITH THE CITY LOOKS LIKE AND WE'RE EXCITED TO SEE THE WORK CONTINUE. I ALSO SUPPORT ITEM 29, ALTERNATIVE HOUSING. DOROTHY DAYE OPERATED THE COMMUNITY SHELTER NOT CONGREGATE THAT FOSTERED STABILITY AND DIGNITY AND PERSONAL SPACE AND GOOGLE THE PROGRAM AND WATCH THE FEATURE FROM DECEMBER 2020 THE MODEL CAN WORK.

>> MAYOR A. ISHII: THANK YOU SO MUCH AND THANKS FOR YOUR WORK. NEXT SPEAKER.

>> HELLO, MY NAME IS ASHLEY JONES I'M A LAWYER AND FORMERLY HOMELESS AND RESIDENT OF BERKELEY. I'M HERE TO EXPRESS CONCERN ABOUT THE CITY OF BERKELEY'S LETTER IN SUPPORT OF 692. I APPLAUD THE CITY'S WORK ON ITS RV BUY BACK PROGRAM AND WORKING WITH PEOPLE AND PROVIDE THOSE WITH A PATHWAY TO A MORE PERMANENT SHELTER. I'M CONCERNED SB692 APPLIES TO NON-ABANDONED VEHICLES

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AND THE DISMANTLING OF ABANDONED VEHICLES WITHOUT A DEFINITION OF WHEN A VEHICLE IS ABANDONED ALLOWING FOR POTENTIAL DISCRIMINARY ENFORCEMENT. THE LACK OF DEFINITION ALSO MAKES IT RIPE FOR POTENTIAL LITIGATION AND TOWING VEHICLES NOT ABANDONED. THANK YOU SO MUCH.

>> MAYOR A. ISHII: THANK YOU.

>> GOOD EVENING. I'M REBECCA MILLER. I'M A BERKELEY RESIDENT. THANK YOU FOR THE OPPORTUNITY TO SPEAK AND HERE TO ASK THE COUNCIL NOT TO SUBMIT A LETTER OF SUPPORT FOR SB 692 AND THERE'S SIMILAR BILLS THAT WOULD EXPAND GOVERNMENT'S AUTHORITY TO TOW AND DESTROY VEHICLES AND REMOVE THE PROTECTIONS FOR VEHICLE OWNERS AND REMOVING DAMAGED VEHICLES THAT POSE PUBLIC SAFETY IS AN IMPORTANT GOVERNMENT SERVICE BUT THERE'S A NUMBER OF PROVISIONS IN THE VEHICLE CODE THAT ALLOW GOVERNMENTS TO DO SO AND CONTINUING TO DILUTE OWNERS RIGHTS RAISES CONSTITUTIONAL CONCERNS AND RAISES THE CONCERN FOR ABUSE WITH BEING UNHOUSED AND STORING PROPERTY IN THEIR VEHICLE. WE SHOULDN'T EXPAND TO RUSH AUTHORITY IN THIS PIECEMEAL FASHION.

>> MAYOR A. ISHII: THANKS SO MUCH.

>> MAYOR A. ISHII: SORRY, ONE HERE AND ONE OVER -- SURE.

>> THANK YOU. MY NAME IS AMBER WITSON AND I LIVE IN AN RV. ABOUT ITEM 26, SB 692 IS CURRENTLY SUSPENDED IN THE APPROPRIATIONS COMMITTEE AND THIS LETTER OF SUPPORT ISN'T ABOUT POLICY IT'S

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ABOUT OPTICS. IT'S POSTURING NOT PROCESS AND THIS MISLEADING LANGUAGE. TERI, I EXPECTED BETTER FROM THIS COUNCILMEMBER I VOTED FOR. THERE'S A DISTURBING FLIP FLOP BETWEEN COMPASSION AND SPIN. LETTER CLAIMS RVS AND TRAILERS ARE BEING ABANDONED ON OUR STREET. THAT'S A LIE. TOW COMPANIES COULDN'T KEEP UP WITH THE BUY BACK PROGRAM AND CALLING THEM ABANDONED AND CALLING THEM ILLEGAL DUMPING IS MISLEADING. TRULY ABANDONED RVS DON'T SIT LONG. PEOPLE MOVE IN. LABELLING THEM ABANDONED BECAUSE THEY HAVEN'T MOVED IN 72 HOURS IS JUSTIFICATION OF IMPOUNDING. MOST ARE LIVING IN CRISIS AND MANY CLAIM RVS ARE SOLD OR LEASED TO UNSCRUPULOUS AND I'VE BEEN A MECHANIC FOR MANY OF THE COMMUNITY AND NEVER SEEN ANYONE RENTING AN RV. THE LETTER ALSO SUGGESTS SB 692 OFFERS SHELTER FOR BUYBACK AND IT DOESN'T. IT DIDN'T MANDATE BUY BACKS OR REQUIRE SHELTER OR REQUIRE HOUSING HELP AND THIS POLICY IS DISHONEST. MOST VEHICLE DWELLERS WANT STABLE HOUSING. SOME OF MY FRIENDS ARE ACTIVELY WORKING TOWARDS THAT RIGHT NOW. TO BE CLEAR, MOST RVS AREN'T MADE FOR LONG-TERM HABITATION. THEY'RE FOR SHORT TERM RECREATIONAL USE. EVEN WITH GOOD MAINTENANCE THEY BREAK DOWN UNDER DAILY USE BUT IT DOESN'T MEAN PEOPLE SHOULDN'T BE ABLE TO SHELTER WHEN NO BETTER OPTIONS EXIST. DO YOU WANT TO SEE PEOPLE ON TENTS OR SIDEWALKS OR BEAT UP RVS? I WAGER SOME WHO DIED FROM EXPOSURE WOULD HAVE LIKED TO HAVE SEEN THEM ALIVE THAN DEAD. BERKELEY SHOULD STAND FOR REAL

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SUPPORT AND HOLDING HOMELESS FUNDS RECIPIENTS ACCOUNTABLE AND NOT MAKE LIFE EASIER FOR LOCAL GOVERNMENT AND I READ THE DEVELOPER OF GRAYSON IS WAITING FOR CAPITAL MAYBE THEY CAN LEASE BACK TO THE CITY IN THE MEANTIME.

>> MAYOR A. ISHII: AND I READ YOUR OP-ED AND I APPRECIATE IT AND REFER TO COUNCIL AS A WHOLE BODY AND NOT INDIVIDUALS. THANK YOU.

>> I'M WITH THE BERKELEY OUTREACH COALITION. I WANTED TO OPPOSE ITEM 26 BUT IT SEEMS LIKE IT'S BEEN ALL MY REASONS FOR OPPOSITION HAVE BEEN EXPLAINED ALREADY. I WANT TO SPEAK IN SUPPORT OF ITEM 29. LET ME SAY I'M OPPOSED TO PUBLIC SPACE BEING RELEGATED TO THE PUBLIC RIGHT OF WAY AND HAVE THE BASIS OF FEAR AND GIVEN ENCROACHING ON PUBLIC SPACE BEING PUT TO USE BY THE PUB PUBLIC AND HADN'T BEEN PRIOR TO. THIS IS NOT SOUND TO FORCE UNHOUSED FOLKS IN THE RIGHTFUL WAY. THIS ITEM WILL BE CRUCIAL FOR MAKING SAFE AND COMFORTABLE PLACES WHERE UNHOUSED FOLKS CAN LIVE IN THE STREETS OUTSIDE THE SPACES BEING USED BY THE PUBLIC THAT WILL ALLOW FOR AN ANSWER TO THE QUESTION, WHERE DO WE GO. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> MAYOR. MY NAME IS BOB WELLAN AND I WAS INTIMATELY INVOLVED IN THE HORIZON PROGRAM WE LEARNED A LOT OF LESSONS THERE SO IF WE EVER GET SOMETHING SIMILAR AGAIN IT WILL BE BETTER. SO I WANT TO SPEAK IN SUPPORT OF ITEM 29. I WANT TO ENCOURAGE YOU TO FIND A

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LOCATION OR LOCATIONS MANY GROUPS AND AGENCIES ARE WAITING IN THE WINGS TO FIND COST EFFECTIVE SOLUTIONS FOR OUR NEIGHBORS. WE HAVE TO REDUCE THE PER PERSON COST TO PROVIDE A CLEAN, DRY SPACE FOR PEOPLE TO LIVE. LOCATIONS AVAILABLE AS LONG AS ITS NEEDED. I'LL CLOSE WITH THIS; THERE'S A LOT OF EMPTY SPACES IN BERKELEY AN EMPTY SPACE IS FULL OF POTENTIAL. LET'S TRY TO USE IT. THANKS.

>> MAYOR A. ISHII: THANK YOU.

>> WE'VE HEARD SOME PEOPLE COMPLAINING ABOUT UNHOUSED PERSONS STAYING IN PARKS. WELL, NUMBER 29 IS A SOLUTION TO THAT. IT'S MITIGATING THAT BY PROVIDING PERSONS ALTERNATIVES SO THEY ARE AREN'T JUST EXITED FROM THE PARK AND MOVED AROUND THE CITY. COUNCILMEMBER TREGUB ALREADY RESPONDED TO ONE CONCERN I HAVE THAT THIS NOT BE DELAYED TO IDENTIFY SITES BY REPORTS AND ANALYSES, ETCETERA AND COUNCILMEMBER TREGUB SAID THE CITY MANAGER COULD IDENTIFY THE SITES WHILE CONCURRENTLY RESPOND SO THE REPORTS THAT HAVE BEEN REQUESTED AND THE DATA THAT'S BEEN REQUESTED. I HAVE A CONCERN IF THE CITY MANAGER'S OFFICE CAN'T BEGIN TO NEGOTIATE THAT AT LEAST WHEN THEY IDENTIFY A LIST OF SITES THAT THEY ARE -- IF I CAN FINISH THE SENTENCE.

>> MAYOR A. ISHII: THANKS, CAROLYN. I'M SORRY. FEEL FREE TO WRITE US, CAROL. HI, MARIA.

>> WE GOT TO STOP MEETING LIKE THIS. THANK YOU, MAYOR, THANK

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YOU, MS. O'KEEFE AND EVERYONE ELSE. THE MEETING WE HAD WITH YOU LAST FRIDAY WAS SPECTACULAR BECAUSE THE GROUP DEMONSTRATED THE CAPACITY TO BUILD TINY HOME COMMUNITIES WHETHER FOR SHELTERS OR RVS HAS DEMONSTRATED THEY'RE ABLE TO DO IN RICHMOND AND OAKLAND AND IT'S LIKE WE'RE SURROUNDED BY PEOPLE THAT HAVE SUCCEEDED AND WE'RE BERKELEY AS HAS BEEN MENTIONED. WERE DIVERSE AND YET A COMMUNITY. INNOVATION, COMPASSION, IGOR, DOING MORE WITH LESS. WE HAVE COMMUNITY MEMBERS. THE RESIDENTS THAT DESERVE SAFE SPACE, THE BUSINESSES THAT DESERVE TO FLOURISH. IT'S LIKE WE CAN ALL SUCCEED HERE BECAUSE WE HAVE ARCHITECTS. WE HAVE COLLABORATION AND COOPERATION AND IT'S BEEN TEST DRIVEN AND PROVEN. I JUST ASK YOU, LET THE LONGEST JOURNEY START WITH A SINGLE STEP. LET'S JUST FIND SPACES BECAUSE AS A DESIGNER AND BUILDER, WE FIND THE SPACE WE CAN DESIGN IT AND WE CAN WORK WITH THE COMMUNITY TO BE IN HARMONY. WE CAN ALL GET ALONG. WE REALLY CAN AND WE'VE BEEN DOING IT FOR CENTURIES AND IF IT'S 123,000 PEOPLE HERE, I WANT ALL OF US TO BE HAPPY. I REALLY DO. AND I KNOW THAT WE CAN. SO IT'S A PROCESS. LET'S KEEP IT SIMPLE. STEP BY STEP TO EVEN GET UP HERE. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. OKAY. ARE THERE FOLKS ONLINE TO SPEAK TO THE CONSENT CALENDAR OR INFORMATION ITEMS?

>> CLERK: YES, CURRENTLY SEVEN HANDS RAISED.

>> MAYOR A. ISHII: OKAY.

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>> CLERK: FIRST IS BETH ROESSNER.

>> GOOD EVENING, MAYOR, AND COUNCIL. THIS IS BOTH ROESSNER. WE BELIEVE THE REFERRAL OFFERS A WILL THOUGHTFUL AND NECESSARY APPROACH TO ADDRESSING IT. WE SUPPORT THE CITY TAKING STEPS TO IDENTIFY ADDITIONAL SHELTER SITES BOTH WITHIN AND OUTSIDE OF BERKELEY AND FOR CONSIDERING GEOGRAPHIC EQUITY, FEASIBILITY, IMPACTS ON OUR COMMERCIAL DISTRICTS AND COST EFFECTIVENESS. WE'RE ALSO ENCOURAGED BY YOUR EMPHASIS ON ENSURING BERKELEY RECEIVES AN EQUITABLE FORM OF FUNDING THROUGH MEASURE W AND PROP 1 AND HAS A BALANCED STRATEGY FOR THE COLLABORATION ACROSS JURISDICTIONS WE URGE THE COUNCIL TO SUPPORT THIS AND MOVE IT FORWARD. THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANK YOU, BETH.

>> CLERK: OKAY. NEXT SPEAKER IS BLAIR BEAKMAN.

>> HI, I MOVED TO SAN DIEGO A COUPLE YEARS AGO AND I'M IN THE BAY AREA AT THIS TIME AND THOUGHT I'D SAY HI. TO START OF YOU HAVE THREE ITEMS ON TECH ACCOUNTABILITY ISSUES. ONE IS THE POLICE EQUIPMENT REPORTING. ANOTHER IS UPCOMING STREET LIGHTING THAT'S GOING TO BE A COMMUNITY PROCESS IN MID JUNE. REALLY GOOD LUCK YOUR STREET LIGHTING EFFORTS BE A COMMUNITY EFFORT AND NOT AFRAID OF TECHNOLOGY TO BE PLACED IN THE SMART STREET LIGHTS AND GOOD LUCK IN TAKING THE EXTRA STEP TO TALK MORE OPENLY AND HONESTLY AND CLEARLY ABOUT WHAT TECH WILL BE IN OUR FUTURE IN

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BERKELEY. AND WITH THAT SAID, THE TECH TO BE PLACED IS IMPORTANT FOR THE UPCOMING OVERSIGHT COMMITTEE YOU'RE TALKING ABOUT TONIGHT. GOOD LUCK THEY HAVE GOOD CIVIL PROTECTIONS AND CIVIL RIGHTS IDEALS IN PLACE THEY CAN RELY ON ACLU GOOD PRACTICES IN THEIR DECISION MAKING.

>> MAYOR A. ISHII: I KNOW IT'S HARD TO SEE BUT YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT. IT'S AN ABOUT POINT ABOUT TECHNOLOGY AND STREET LIGHTING.

>> NEXT UP IS TINY VILLAGE SPIRIT.

>> HI. MAYOR ISHII AND MEMBERS OF COUNCIL. I'M A MEMBER OF STRAWBERRY CREEK FRIENDS MEETING AND DIRECTOR OF TINY VILLAGE SPIRIT. I'M HERE TO SUPPORT ITEM 29 WAS WE CAN DO MORE TO CREATE INNOVATIVE SOLUTIONS ADDRESSING THE NEED FOR EMERGENCY HOUSING FOR THOSE UNHOUSED IN OUR COMMUNITY. OUR ORGANIZATION'S VOLUNTEERS HAVE BEEN INVOLVED IN CREATING OAKLAND AND RICHMOND'S FIRST LEGAL TINY HOUSE VILLAGES AND WE'RE EXCITED ABOUT THE POTENTIAL TO CREATE A TINY HOUSE VILLAGE IN BERKELEY WHICH MIGHT BE PART OF A WIN-WIN INNOVATIVE SOLUTION CREATING MORE EMERGENCY HOUSING. I ALSO WANT TO QUICKLY SUPPORT AMBER WITSMAN'S ARTICULATE VIEWS REGARDING SB 692. AMBER REALLY HAS THE WISDOM REGARDING EXPERIENCE LIVING IN RVS AND I RESPECT HER VIEWS.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. CAN YOU INCLUDE OUR OFFICE IN THOSE CONVERSATIONS? I'M INTERESTED IN THAT. THANK

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YOU.

>> YES

>> CLERK: NEXT IS TONY.

>> HI, CAN YOU HEAR ME?

>> CLERK: YES.

>> OKAY. I DO SUPPORT ITEM 26 ON THE BUY BACK RVS JESSE ARREGUIN HAS COME UP WITH A WAY TO DEAL WITH VEHICLES THAT ARE A DANGER TO COMMUNITY AND POTENTIAL INHABITANTS. IT'S A BUY BACK PROGRAM AND CREATES CASH FOR PEOPLE WHO NEED IT AND IMPORTANTLY ALREADY IN. LET'S BUILD ON THE SUCCESS. I WANT TO THANK TERRY TAPLIN FOR BRING BRINGING THIS FORWARD. HIS DIRECT IS ONE IMPACTED BY THE PROGRAM AND IS A POSITIVE STEP FORWARD AND HOPE SENATOR ARREGUIN GETS SOME SUCCESS. THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANKS FOR YOUR COMMENTS.

>> CLERK: NEXT IS MONI.

>> GOOD EVENING, MAYOR, COUNCIL AND COMMUNITY. I HAVE HAD THE HONOR TO WORK WITH THE TINY HOME VILLAGE THAT FIRST STARTED IN OAKLAND A FEW YEARS BACK WITH YOUNG PEOPLE AS THE DESIGNERS WHO WERE FORMERLY HOMELESS AND NOW WE HAVE UNHOUSED, MULTI-FAITH COMMUNITY MEMBERS, CITY STAFF MEMBERS ALL WORKING TOGETHER WITH THE HOPE OF GETTING SIMILAR SPACE CREATED FOR HOUSING IN BERKELEY. SO WHEN THEY SAY IT'S NOT POSSIBLE, REMEMBER WHAT WAS SAID IN SOUTH AFRICA BY A WISE ELDER. IT SEEMS IMPOSSIBLE UNTIL

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IT'S DONE AND I'M ON THE STEPS TO SAVE THE POST OFFICE BUT WE DID AND HOUSE THOSE UNHOUSED AND I'M A RESIDENT OF BERKELEY. THANK YOU.

>> MAYOR A. ISHII: THANKS, MONI.

>> CLERK: NEXT IS RUBEN LIZARGO.

>> THANK YOU, MAYOR, AND COUNCILMEMBERS. I JUST WANT TO ALSO ADD MY COMMENTS TO WHAT MONI LAW HAS SAID ABOUT HOW GOOD IT IS TO WORK AND LIVE IN A CITY WHERE THE COUNCIL AND STAFF AND IN PARTNERSHIP WITH NONPROFITS ARE REALLY WORKING ON THE ISSUES AND BRINGING ABOUT SOLUTIONS THAT WORK FOR EVERYBODY CONCERNED. I SPECIFICALLY AM HERE TONIGHT TO REGISTER SUPPORT FOR THE ITEM ON THE CONSENT CALENDAR THAT WOULD EXTEND THE CITY'S CONTRACT WITH THE VILLAGE OF LOVE WHICH OPERATES AND DROP-IN CENTER WHICH IS HOUSED AT THE FIRST CHURCH PRESBYTERIAN. THE HOMELESS RESPONSE TEAM, OUR OWN SOCIAL WORKER, ARI NEWLIGHT AND SEVERAL COUNCILMEMBER OFFICES. A WHOLE HOST OF PEOPLE ARE THERE AND IT'S A HUB FOR SUPPORT FOR THE UNHOUSED COMMUNITY IN THE TELEGRAPH NEIGHBORHOOD AND I WANT TO COMMEND YOU AND THANK YOU FOR HAVING IT ON THE CONSENT CALENDAR.

>> MAYOR A. ISHII: THANKS FOR YOUR COMMENT. HOW MANY MORE DO YOU HAVE? JUST WANT A SENT OF TIME.

>> CLERK: MARY AND ANDREA. HELEN, YOU SHOULD BE ABLE TO SPEAK.

>> GOOD EVENING, MAYOR AND COUNCILMEMBER AND COMMUNITY. I'M

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GOING TO BE SPEAKING ON TWO CONSENT CALENDARS. FIRST ONE IS NUMBER 29. I'M IN SUPPORT OF THE CITY COUNCIL -- SORRY, I'M READING. IT'S CLEAR BERKELEY CAN'T KEEP MOVING UNHOUSED PEOPLES AROUND FROM SITE TO SITE. WE NEED ADDITIONAL EMERGENCY SHELTER, A TINY HOUSE VILLAGE FOR INCLUDING RV OPTIONS FOR UNHOUSED RESIDENTS AND I'VE BEEN ATTENDING MEETING AT THE LIBRARY FOR MONTHS AND NEED ALTERNATIVES TOGETHER AND IT BUILDS AND CONNECTS COMMUNITY. OUR UNHOUSED COMMUNITY DESERVES TO SEE THEIR VISION ALONG WITH ALLIES AND COMMUNITY VOLUNTEERS COME TO LIGHT. I ALSO WANT TO MAKE A COMMENT ON CONSENT ITEM 1 ADDING ADDITIONAL QUALIFYING. I'M FOR ADDING SOMEBODY WHO KNOWS ACCESSIBILITY.

>> MAYOR A. ISHII: I'M SORRY BUT YOU'RE OUT OF TIME.

>> CLERK: AND MARYANNE O'SULLIVAN.

>> PLEASE PASS ITEM 629 SO OUR NEIGHBORS CAN LIVE IN SAFE COMMUNITIES LIKE THE TINY HOUSE PROJECTS IN OAKLAND AND RICHMOND AND ENCOURAGE A PLACE FOR RVS TO BE ABLE TO COME TOGETHER AND LIVE TOGETHER IN SAFETY AND WITH THE RESOURCES THEY NEED. THANKS.

>> MAYOR A. ISHII: THANK YOU.

>> CLERK: OKAY. THE LAST RAISED HAND IS ANDREA PRICHETTE.

>> THANK YOU, COUNCIL. I'M HERE TO SPEAK ABOUT ITEM NUMBER 21. POLICE EQUIPMENT AND SAFETY ORDINANCE ANNUAL REPORT. IT'S MY UNDERSTANDING THAT THE POLICE DEPARTMENT YET AGAIN FAILED TO

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PRODUCE THE INFORMATION REQUESTED BY THE POLICE ACCOUNTABILITY BOARD IN A TIMELY FASHION. THE INVENTORY OF WEAPONS AND EQUIPMENT RELATED TO THESE WEAPONS IS INCOMPLETE. IT HASN'T BEEN PROVIDED. SO I REALLY DON'T UNDERSTAND WHY THIS REPORT IS ON A CONSENT CALENDAR. AND THERE'S A REALLY DISTURBING TREND OF THE POLICE DEPARTMENT DE LAYING OR DENYING ACCESS TO INFORMATION CRUCIAL FOR THE POLICE ACCOUNTABILITY BOARD TO HAVE IN ORDER TO DO ITS JOB. A LOT OF US HAVE BEEN KEEPING AN EYE ON POLICE FOR A LONG TIME ARE WAITING FOR COUNCIL TO TAKE A STAND AND TO LAY DOWN SOME LAW TO THE POLICE DEPARTMENT THEY TOO ARE GOVERNED BY THE LAW.

>> MAYOR A. ISHII: THANK YOU FOR YOUR COMMENT. I APPRECIATE IT. WAS THAT OUR FINAL COMMENT?

>> CLERK: THAT'S IT.

>> MAYOR A. ISHII: I SEE COUNCILMEMBER LUNAPARRA HAS HER LIGHT ON. OKAY. ALL RIGHT. YES. COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. I INTEND TO MAKE A MOTION ON THE CONSENT CALENDAR BEFORE. BEFORE I DO, QUICK WORDS ON ITEM 21. MY OFFICE MET WITH BOTH THE POLICE ACCOUNTABILITY BOARD DIRECTOR AND I'VE SPOKEN WITH THE POLICE CHIEF. I WISH TO THANK B.P.D. FOR YOUR ENGAGEMENT ON THIS MATTER. I COME FROM ALMOST 13 YEAR BACKGROUND IN OVERSIGHT AND SO I UNDERSTAND AND APPRECIATE THE IMPORTANCE OF ENSURING THAT YOU HAVE THE BACKGROUND YOU NEED TO

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BE ABLE AND INFORMATION TO DO OVERSIGHT. I FEEL BASED ON MY REVIEW AND DISCUSSIONS COMFORTABLE WITH THIS ITEM. AND WILL BE SUPPORTING IT TONIGHT. GOING FORWARD, PERHAPS THERE MAY BE AN OPPORTUNITY EITHER THROUGH AN OFF-AGENDA MEMO OR AN INFORMATION PRESENTATION TO BETTER UNDERSTAND THE SCOPE OF THE PAPS CHARGE AROUND THESE KINDS OF REVIEWS. BUT I APPRECIATE EVERYONE FOR THEIR ENGAGEMENT AND WILL MOVE THE CONSENT CALENDAR.

>> SECOND.

>> MAYOR A. ISHII: HAD SECOND FROM COUNCILMEMBER HUMBERT. TAKE THE ROLL, CLERK.

>> CLERK: KESARWANI. YES. TAPLIN, YES. BARTLETT IS ABSENT. TREGUB. AYE. O'KEEFE. YES. LUNAPARRA. YES. HUMBERT. YES. PLAYER ISHII.

>> MAYOR A. ISHII: I APPRECIATE IT. NOW IS A GOOD TIME TO TAKE A BREAK. I KNOW SOME FOLKS ARE HERE SPECIFICALLY FOR THE ACTION CALENDAR BUT WE HAVE BEEN SITTING FOR A WHILE. SO, IN THE SPIRIT OF SELF-CARE, I WOULD LIKE TO GIVE US A 10-MINUTE BREAK BUT I BRIEFLY WANT TO SAY SO FOLKS KNOW BEFORE WE TAKE THIS BREAK THAT ON OUR ACTION CALENDAR WE HAVE A PRETTY PACKED ACTION CALENDAR. WE HAVE BOTH PUBLIC HEARINGS ABOUT OUR BUDGET AS WELL AS A LANDMARK APPLICATION. AND ON OUR ACTION CALENDAR IS THE APPOINTMENT OF FOUR BERKELEY RESIDENT TO THE SAFE STREETS CITIZEN OVERSIGHT COMMISSION AND I'LL ASK TO MOVE THAT EARLIER

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SO FOLKS HERE DON'T HAVE TO STAY THROUGH THE OTHER TWO PRESENTATIONS. AND I THINK WITH THAT WE'LL TAKE A 10-MINUTE BREAK. THANK YOU.

>> MAYOR A. ISHII: OKAY. HELLO, FOLKS. WE ARE COMING BACK. HI, COUNCILMEMBER TAPLIN. OKAY. ALL RIGHT. IF I CAN HAVE QUIET OUT THERE, PLEASE, WE'RE GOING TO GET STARTED. THANK YOU. THANK YOU. OKAY. I LOVE THE CHATTER THOUGH THAT'S GREAT THAT YOU ALL ARE CHATTING WITH EACH OTHER. I THINK THAT'S AWESOME. SO MOVING BACK WE JUST FINISHED CONSENT CALENDAR AND MOVING ON TO ACTION. I HAD ASKED EARLIER BUT WILL SAY OFFICIALLY NOW I'D LIKE TO MOVE ITEM NUMBER 32 ABOVE ITEM 30 TO HANDLE THAT FIRST. I JUST WANT TO MAKE SURE I GET CONSENT OF MY COUNCILMEMBERS. OKAY. GREAT. PERFECT. THANK YOU, COUNCILMEMBER TAPLIN I SAW YOUR HEAD NOD TOO. AWESOME. WE'LL START WITH ITEM 32 THE APPOINTMENT OF FOUR BERKELEY RESIDENTS TO THE SAFE STREET CITIZEN OVERSIGHT COMMITTEE. FOR FOLKS THAT DON'T KNOW THAT'S MEASURE FF. AND WHAT I WANT TO DO -- SORRY, I WANT TO READ THIS PROPERLY. OKAY. SO, FOR OUR PROCESS FOR THIS, I KNOW WE HAVE SOME FOLKS HERE IN PERSON AND THEN I THINK SOME PEOPLE ARE JOINING US ONLINE FOR THE SAFE STREET CITIZEN OVERSIGHT COMMITTEE. SO WHAT I WANT TO START WITH IS SEEING IF ANY OF MY COUNCILMEMBERS HAVE QUESTIONS THOR THE CANDIDATES. I WANT TO SAY IT'S A WEIRD PROCESS. NORMALLY WE GET TO APPOINT OUR OWN COMMISSION MEMBERS SO WE JUST

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KIND OF DO THAT BUT THIS REQUIRES A LOT MORE COORDINATION BECAUSE THERE'S SO MANY OF US AND SO MANY AND CANDIDATES. I WANT TO SAY THE CANDIDATES WERE REALLY FANTASTIC FOR THIS. UNFORTUNATELY, WE CAN ONLY PICK FOUR. I THINK WE HAD 15 DIFFERENT FOLKS WHO APPLIED AS APPLICANTS. AND I JUST WANT TO SAY THANK YOU. I THINK THIS MEASURE HAD SO MUCH SUPPORT AND THERE ARE PEOPLE WHO ARE REALLY ENTHUSIASTIC ABOUT BEING PART OF IT. REGARDLESS OF WHETHER YOU ARE CHOSEN TODAY OR NOT I HOPE YOU'LL CONTINUE TO ENGAGE WITH THE PROCESS AND CONTINUE FOLLOWING THE ISSUE AND ADVOCATING FOR WHAT YOU WANT TO SEE AND ALSO BECAUSE THERE'S SO MANY INTERESTED I WANT TO ENCOURAGE YOU TO APPLY FOR OTHER POSITIONS IF YOU DON'T GET THIS ONE IN PARTICULAR BECAUSE I LOVE SEEING THAT FOLKS WANT TO BE CIVICALLY ENGAGED AND THRILLED WITH THE APPLICANT. JUST THE HIGH QUALITY AND EXPERIENCE OF EVERYONE APPLYING. THANK YOU SO MUCH. SO COUNCILMEMBERS, DOES ANYONE HAVE A QUESTION FOR ANY OF THE CANDIDATES? CAN I FIRST SEE -- I'M GOING TO CONTRADICT MYSELF AND SAY, MARK, CAN YOU SEE IF FOLKS ARE APPLYING FOR THE SAFE STREET CITIZEN OVERSIGHT COMMITTEE WOULD YOU MIND RAISING YOUR HAND SO WE CAN SEE THAT YOU'RE HERE ONLINE. I SEE COUNCILMEMBER TREGUB HAS HIS HAND UP AND WOULD LIKE TO ASK A QUESTION FOR THE APPLICANTS HERE. PLEASE DESCRIBE YOUR EXPERIENCE IN WORKING WITH THOSE WHO MAY HAVE VIEWPOINTS OTHER THAN YOUR OWN.

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>> MAYOR A. ISHII: ARE YOU ASKING THAT OF ALL THE CANDIDATES OR APPLICANTS?

>> I. TREGUB: I AM.

>> MAYOR A. ISHII: IN THAT CASE I'LL ASK FOLKS TO COME UP TO THE MIC. MR. CITY CLERK, DID WE HAVE FOLKS ONLINE?

>> CLERK: THERE WAS ONE APPLICANT WHO RAISED HIS HAND AND HE'S ONLINE.

>> MAYOR A. ISHII: SURE. I THINK LAURIE, THE WONDERFUL STAFF OF COUNCILMEMBER BLACKABY WILL HELP MOVE ROPES SO YOU CAN GET THROUGH EASIER. WHOEVER WANTS TO GO FIRST, CAN GO FIRST. I THINK YOU'RE ALREADY HERE SO MIGHT AS WELL WALK UP.

>> HELLO, CITY COUNCIL. MOVE YOUR MIC UP.

>> THANK YOU. TO ANSWER YOUR QUESTION, I'M ZACK FRAZIER AND TO ANSWER YOUR QUESTION, I LIVED ABROAD IN ASIA AND SOUTH KOREA AND DOING GREEN BUILDING CONSULTING AND WE HEARD BACK FROM BUILDING OWNERS BECAUSE THE WHOLE GREEN WAVE WAS NEW TO THEM SO IT TOOK A LOT OF CONVINCING AND GOT A LOT OF PUSHBACK TO ENCOURAGE THEM TO MAKE GREEN BUILDING ADDITIONS TO THEIR DEVELOPMENTS. AND ALSO I'VE WORKED IN PRIVATE EDUCATION FOR 10 YEARS AND AS MANY PROBABLY KNOW A CLASSROOM CAN BECOME VERY HEATED ESPECIALLY IN MIDDLE SCHOOL AND HIGH SCHOOL. SO MANAGING ALL THAT, I LEARNED A LOT OF VALUABLE SKILLS THROUGH THAT. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. I'M SORRY, I DIDN'T SAY EARLIER

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BUT IF YOU CAN GIVE FOLKS TWO MINUTES. THANK YOU, MR. CITY CLERK FOR ADJUSTING BECAUSE IT'S HARD TO ACCESS THE PODIUM.

>> I'M CIVIL HATCH A PROFESSIONAL CIVIL ENGINEER BUT ABOUT 27 YEARS AGO I TRANSITIONED OVER TO COMMUNICATIONS FOR OUR PROFESSION AND SO I AND MY FIRM SPECIALIZE IN STAKEHOLDER ENGAGEMENT AND PUBLIC OUTREACH AND THROUGH THAT YOU, STRONG CONSENSUS BUILDING, OPINION GATHERING, FEEDBACK MONITORING, ALL THE KIND OF COMMUNICATION SKILLS NEEDED FOR CIVIL INFRASTRUCTURE PROJECTS AND WE DO A LOT OF BICYCLE PEDESTRIAN PROJECTS AS WELL AND CITY STREET PROJECTS. WE WORK AT THE COUNTY AND STATE LEVEL. I HAVE A TREMENDOUS AMOUNT OF EXPERIENCE WORKING IT AT ALL LEVELS OF GOVERNMENT AND ALL LEVELS OF COMMUNITY INCLUDING PEOPLE THAT ARE NON-ENGLISH SPEAKERS, SENIORS, PEOPLE WITH AND SO FORTH. DOES THAT ANSWER YOUR QUESTION?

>> MAYOR A. ISHII: THANK YOU. TRY AGAIN AND HOLD IT CLOSER.

>> IS THE MICROPHONE ON.

>> MAYOR A. ISHII: IT IS BUT NOT VERY LOUD.

>> I'M RENA FISHER. I'VE WORKED ON MANY PROJECTS OVER DECADES. WITH PEOPLE AND ONE WAY I INTRODUCE MYSELF IS TO SAY THAT I HAVE AN OPINION ABOUT EVERYTHING BUT I DON'T NEED TO HAVE MY WAY. I TRUST PEOPLE I WORK WITH ALSO HAVE STRONGLY HELD OPINIONS AND I AM CERTAINLY EAGER -- I BELIEVE IN WORKING WITH PEOPLE ACROSS DISAGREEMENTS. I THINK I NEED TO. I DON'T WANT TO LIVE IN A

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COMMUNITY OR COUNTRY WHERE PEOPLE ARE EXPECTED TO HAVE ONE VOICE. I THINK IT'S UNBEARABLE AND I FIND MYSELF ALWAYS WILLING TO RISEN TO ANOTHER POINT OF VIEW AND CERTAINLY OFFER MINE IN AS STRONG AN ADVOCACY WAY AS I CAN.

>> MAYOR A. ISHII: THANK YOU.

>> MAYOR A. ISHII: FEEL FREE TO BACK UP BECAUSE I EXPECT FOLKS WILL COME BACK UP IN A MINUTE.

>> MY NAME IS STEPHANIE ALLEN WITH MY COLLEAGUE. I WAS CHAIR OF THE CITIZEN BOND OVERSIGHT COMMITTEE FOR SIX YEARS AND WORKED WITH COUNCILMEMBER BLACKABY ON WRITING MEASURE FF. I HAVE A CLEAR UNDERSTANDING OF WHAT AN OVERSIGHT COMMITTEE IS SUPPOSED TO DO. I BRING EXPERIENCE IN CIVIC AFFAIRS. DO YOU WANT ME TO GO ON FOR A FEW MINUTES I WILL. I'M VERY CONCERNED ABOUT THIS, ESPECIALLY THE ADA REQUIREMENTS BECAUSE I'M ACUTELY AWARE OF THE PROBLEMS FACING THOSE OF US NOT ABLE AND REPAIRING THE STREETS AND SIDEWALKS WOULD MAKE A HUGE AMOUNT OF IMPROVEMENT IN OUR LIVES.

>> MAYOR A. ISHII: THANK YOU.

>> I'M AN ARCHITECT AND INTERESTED IN BEING ON THE COMMUNITY BECAUSE IT'S AGE OPPORTUNITY TO USING THE POWER OF EXCELLENT DESIGN IN MAKING A DIFFERENCE HOW PEOPLE MOVE AROUND THE CITY AND PUBLIC REALM. I'M COMMITTED TO LISTENING AND AN OPEN PROCESS TO DESIGNING AN EXCELLENT ENVIRONMENT FOR ALL OF US TO CO-EXIST

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IN IN OUR PUBLIC REALM. SOMETHING LIKE 30% TO 50% OF OUR PUBLIC SPACE IS STREETS. AND IT'S IMPORTANT TO GET THEM RIGHT AND PART IS HEARING WHAT PEOPLE HAVE TO SAY ABOUT THEM, HOW THEY MOVE THROUGH THEM. WE HAVE PLENTY OF EXAMPLES IN BERKELEY TO LOOK AT TOGETHER AND DISCUSS. ONE OF MY MANY ACCOMPLISHMENTS IN MY ARCHITECTURAL CAREER IS HELPING THE CITY OF BERKELEY THROUGH THE BERKELEY CIVIC CENTER PROCESS THAT HAD OVER 1,000 INDIVIDUAL VOICES AND WE BROUGHT THAT VISION TO BEAR ON THE BERKELEY CIVIC CENTER. IT'S AN IMPORTANT PART OF THE WORK I DO LISTENING AND COMING TO A GOOD CONSENSUS DESIGN THAT WORKS FOR MOST.

>> THANK YOU.

>> CLERK: IF THERE'S ANY SAFE STREETS OVERSIGHT ONLINE RAISE YOUR HAND. IT'S AN IMPORTANT PART OF THE WORK I DO, LISTENING AND COMING TO A GOOD CONSENSUS DESIGN THAT WORKS FOR MOST.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: IF THERE'S ANY SAFE STREET APPLICANTS ONLINE, RAISE YOUR HAND. BEN GERHARDSTEIN, YOU SHOULD BE ABLE TO SPEAK.

>> CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> I'M A PUBLIC HEALTH PROFESSIONAL BY THAI AND PEDESTRIAN BY SCHOOL; SAFE STREETS ADVOCATE BY NIGHT. AND AS TO COUNCILMEMBER TREGUB'S QUESTION, I WOULD SAY THAT IN MY PROFESSIONAL CAPACITY, AS A PUBLIC HEALTH PROFESSIONAL, I SPEND MY DAYS WORKING IN

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RESPONSE TO COMMUNITY CONCERNS ON EXPOSURE TO CHEMICALS IN THE ENVIRONMENT AND COMMUNITY SETTINGS WHERE THE COMMUNITY VOICE IS FRAUGHT AND CHARGED AND, AS A SCIENTIST WE NEED TO LISTEN AND ENGAGE THOUGHTFULLY WITH DIFFERENT POINTS OF VIEW. AND THEN AS AN ADVOCATE, I WOULD SAY THAT, YOU KNOW, WE ARE OFTEN FINDING OURSELVES NEEDING TO WORK WITH OTHER PEOPLE IN OUR ADVOCACY SPACES WHO HAVE DIFFERENT POINTS OF VIEW, DIFFERENT PRIORITIES, DIFFERENT PERSPECTIVES TO COME UP WITH COMMON GOALS AND POSITIONS AND THAT SERVED ME WELL. I'VE ALSO SERVED AS A COMMISSIONER WITH THE TRANSPORTATION COMMISSION AND TRANSPORTATION INFRASTRUCTURE COMMISSION AND I'VE BEEN ABLE TO SUCCESSFULLY FIND CONSENSUS AND AGREEMENT ACROSS MY COLLEAGUES IN THOSE CAPACITIES. THANKS.

>> MAYOR ISHII: THANK YOU. ANYONE ELSE ONLINE?

>> CITY CLERK: NO ONE ELSE HAS RAISED THEIR HAND.

>> MAYOR ISHII: OKAY. DID YOU HAVE ANY OTHER QUESTIONS COUNCILMEMBER TREGUB? COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU, I WOULD LIKE THEM TO ANSWER THE SAME QUESTIONS.

>> MAYOR ISHII: I THINK THAT WOULD BE FAIR.

>> B. BLACKABY: A BIG PART OF OUR ROLE IS COMPOSE A PANEL, WHY DO YOU WANT TO SERVE ON THIS AND WHAT UNIQUE CAPABILITY OR SKILL DO YOU THINK YOU BRING? THANK YOU AND THANK YOU FOR BEING

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WILLING TO SERVE.

>> MAYOR ISHII: I THINK I SHOULD TACK ON MY QUESTION? TO ME, SOMETHING THAT IS IMPORTANT FOR THE SAFE STREETS CITIZENS OVERSIGHT COMMITTEE IS HAVING FOLKS WHO REALLY UNDERSTAND THE NEEDS OF OUR RESIDENTS AROUND SAFE STREETS. SO IF PEOPLE COULD SPEAK TO THEIR EXPERIENCE AROUND THAT, I THINK THAT WOULD BE IMPORTANT TO ME.

>> B. BLACKABY: SO WHY DO YOU WANT TO SERVE? YOUR UNIQUE SKILL SET/CAPABILITY/SUPERPOWER AND THREE, YOUR EXPERIENCE WITH THE COMMUNITY AND ISSUES WITH SAFE STREETS IN THIS COMMUNITY. IS THAT FAIR?

>> S. O'KEEFE: IS IT TOO MUCH IF I ADD ONE?

>> MAYOR ISHII: I THINK WE NEED TO WRITE THIS DOWN.

>> S. O'KEEFE: THIS COULD BE COVERING, BUT JUST YOUR FINANCIAL OVERSIGHT IF ANYBODY CAN SPEAK TO THAT, I THINK THAT WOULD BE WORTH MENTIONING. LIKE WHAT YOUR EXPERIENCE WITH FINANCIAL OVERSIGHT, SPECIFICALLY.

>> MAYOR ISHII: I WILL HAVE THIS WRITTEN SOMEWHERE. OVERSIGHT, I'M JUST TRYING TO WRITE IT. OKAY, IF YOU CAN READ MY HANDWRITING, I WILL START WITH THIS TO MAKE IT EASIER. AND COUNCILMEMBER BLACKABY, WHEN YOU GET IT, YOU CAN PUT IT ON THE SCREEN. GO AHEAD.

>> OKAY. SO THE REASON I'M INTERESTED IN SERVING, I THINK IT'S A

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UNIQUE OPPORTUNITY THAT THE CITIZENS AND VOTERS OF BERKELEY HAVE PASSED TO GENERATE A TREMENDOUS AMOUNT OF RESOURCES TO TRANSFORM THE NATURE OF OUR STREETS AND CREATE A CITY THAT IS BOTH BIKE-FRIENDLY AND TRANSIT-FRIENDLY AND PEDESTRIAN FRIENDLY, THAT SLOWS TRAFFIC, THAT IS SAFER FOR EVERYONE. THAT LOOKS TO A CLIMATE FUTURE. THAT IS HEALTHIER FOR PEOPLE. AND THE VOTERS OF BERKELEY HAVE ENTRUSTED THE CITY WITH A TREMENDOUS AMOUNT OF MONEY THAT SMARTLY INCLUDED, I THINK, CITIZEN OVERSIGHT. I HOPE IT'S AN EFFECTIVE WAY TO DIRECT THOSE RESOURCES. MY PARTICULAR SUPERPOWER HAS NOTHING TO DO WITH THE ENGINEERING END, OR THE TRANSPORTATION END, ALTHOUGH I THINK I'M A QUICK STUDY. BUT I WAS CHAIR FOR TWO TERMS OF THE COMMISSION ON DISABILITY. I BUILT IT UP FROM COMMISSION OF TWO, FOR THE SEVERAL YEARS BEFORE I WAS THERE TO A COMMISSION NOW WITH FULLY NINE ACTIVE, ENGAGED MEMBERS. AND WE HAVE, THROUGH MY WORK WITH THE COMMISSION, I'M REALLY ACQUAINTED WITH BOTH THE LEGAL REQUIREMENTS AND THE BEST PRACTICES FOR STREETS. SO, THE CITY IS REQUIRED TO FOLLOW PROWAG AT TRANSIT STOPS. IT'S BEST PRACTICES TO FOLLOW PROWAG AND ADVOCATED BY THE NATIONAL ASSOCIATION OF PUBLIC WORKS DEPARTMENTS. IT IS SOMETHING THAT I HOPE THE CITY WILL WHOLEHEARTEDLY SUPPORT. PROWAG GIVES THE PUBLIC RIGHT OF WAY ACCESSIBILITY GUIDELINES. AND IT GUARANTIES, TO THE EXTENT POSSIBLE IT SECURES BEST PRACTICES FOR PEOPLE WITH DISABILITIES,

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WHETHER MOBILITY OR FOLKS ON THE STREETS.

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH.

>> OKAY, AND IN TEN SECONDS I WAS A DEVELOPMENT DIRECTOR, I RAISED MILLIONS OF DOLLARS OF GRANTS FOR THE CORPORATION FOR PUBLIC BROADCASTING AND THE NATIONAL INSTITUTIONS OF HEALTH, REPORTED ON MULTI-MILLION DOLLAR --

>> MAYOR ISHII: SORRY, I'M TRYING TO MAKE SURE WE HAVE A FAIR PROCESS. COULD YOU MAKE IT A LITTLE BIGGER? PLEASE. THANK YOU. OKAY, WHOEVER WANTS TO GO NEXT.

>> HI, THANK YOU. TO ANSWER YOUR QUESTIONS, WHAT I CAN BRING TO THIS COMMITTEE IS THAT AS A TRANSPORTATION ENGINEER, I'M FAMILIAR WITH ALL THE DESIGN STANDARDS. LIKE THAT'S VERY STRAIGHT FORWARD AND VERY BLACK AND WHITE. BUT WHEN YOU ARE IN THE FIELD AND WHEN YOU ARE IN THE REAL WORLD YOU NEED TO HAVE SOME FLEXIBILITY. AND YOU NEED TO BE ABLE TO SEE THINGS AND FORESEE THINGS. SO IT'S KIND OF LIKE A CONSTRUCTION MINDSET WHERE YOU HAVE TO WORK WITH WHAT YOU HAVE, OR WHAT YOU DON'T HAVE. AND THAT KIND OF REAL-WORLD APPLICATION IN ANY KIND OF PUBLIC SETTING COMES IN REALLY HANDY, ESPECIALLY WITH COMMUNICATING WITH CONTRACTORS WHO ALSO HAVE THEIR OWN OPINIONS. AND TO ADDRESS YOUR INITIAL QUESTION DEALING WITH DISAGREEMENT, THERE'S BEEN PLENTY WITH CONTRACTORS. I ALSO LOVE BEING SOCIALLY INVOLVED. AS A STATE EMPLOYEE I CONSIDER MYSELF A PUBLIC

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SERVANT. I WORK FOR CALTRANS. I CHOSE NOT TO PURSUE CALTRANS HIGHWAY EMPLOYMENT OPPORTUNITIES BUT INSTEAD WENT WITH THE LOCAL ASSISTANCE APPROACH, AND I'M INVOLVED ASSISTING LOCAL AGENCIES, LOTS OF CITIES IN THE BAY AREA WITH MANAGING AND DISTRIBUTING STATE AND FEDERAL FUNDING FOR THEIR PROJECTS. I'M VERY PASSIONATE ABOUT CREATING A SOLUTION THAT SERVES THE COMMUNITY AND AS A RESIDENT OF BERKELEY AND ALSO A NEW FATHER, AND A PAST TEACHER, I HAVE A VERY LARGE SOFT SPOT FOR CHILDREN. SO MAKING THE STREETS SAFE FOR ALL THOSE WHO USE THEM, ESPECIALLY CHILDREN, IS REALLY MY MAIN GOAL. AND AS A RESIDENT I HAVE A VESTED INTEREST IN DOING THAT, THAT SERVES THE COMMUNITY THE MOST. THE LAST POINT, I'VE ALSO TALKED TO MY NEIGHBORS ABOUT THE DEBATE REGARDING THE HOPKINS REPAVING AND PEOPLE CAN BECOME QUITE HEATED. BUT I THINK A COMMON GOAL CAN UNITE EVERYONE TO MAKE IT SAFE. THANK YOU.

>> MAYOR ISHII: THANK YOU. WHO WANTS TO GO NEXT? I WANT TO SERVE ON THE OVERSIGHT BODY BECAUSE I UNDERSTAND WHAT THE FUNCTION OF AN OVERSIGHT BODY IS. IT ISN'T TO DO THE PLANNING FOR THE STREETS AND THE SIDEWALKS. IT'S TO ENSURE THAT THE MEASURE IS IMPLEMENTED THE WAY THE VOTERS PASSED IT BY THE COUNCIL AND THE CITY BUREAUCRACY. I SPENT SIX YEARS ON THE OVERSIGHT COMMITTEE FOR THE SCHOOL DISTRICT FOR FACILITIES BOND. AND I LEARNED A LOT ABOUT WHY YOU HAVE THESE COMMISSIONS. IT'S A CRITICAL FACTOR FOR

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MAINTAINING TRUST WITH THE VOTERS. AND IMPLEMENTING WHAT THEY THINK THEY VOTED FOR. WHEN I WORKED ON HELPING TO WRITE THE MEASURE, IT WAS VERY CLEAR THAT OVERWHELMINGLY, WHAT PEOPLE IN THIS CITY WANTED WERE THE STREETS AND THE SIDEWALKS FIXED. I MOVED HERE IN 1969. I LIVE ON CHANNING WAY. NOT FAR FROM BERKELEY HIGH. AND THIS SPRING WAS THE FIRST TIME THAT MY STREET WAS PAVED. WHEN I USED TO RIDE MY BIKE, YOU COULDN'T RIDE IT DOWN CHANNING, EVEN THOUGH IT'S A BIKE LANE BECAUSE THE STREET WAS SO BAD. I CAN'T REALLY USE A LOT OF THE SIDEWALKS IN THE CITY NOW BECAUSE MY WALKER WILL GET STUCK AND I'LL GO ASS OVER TEA KETTLE. OVER THE YEARS I'VE WORKED ON THE POLICE REVIEW COMMISSION, THE LABOR COMMISSION, I WAS PART OF THE PLANNING PROCESS FOR THE BAYER PROJECT. I'VE BEEN INVOLVED WITH THE SCHOOL DISTRICT ON CAREER TECHNICAL EDUCATION. AND I'M THE PRESIDENT OF MY NEIGHBORHOOD ASSOCIATION.

>> MAYOR ISHII: THANK YOU. SUCH A POLITE GROUP, I APPRECIATE THAT. NO, YOU GO.

>> THANK YOU. I WAS A HUGE FAN OF MEASURE FF. SO GLAD IT PASSED. I'M A HUGE FAN OF FUNCTIONAL CIVIL INFRASTRUCTURE. WHY DO I WANT TO SERVE ON THIS OVERSIGHT BODY? MY CAREER IS WINDING DOWN A BIT AND I HAVE EMPTY NEST AND PLENTY OF TIME ON MY HANDS AND I'VE BEEN LOOKING FOR THE OPPORTUNITY, AND THIS FELT LIKE THE PERFECT FIT FOR ME. UNIQUE SKILL SET OR SUPER POWER, I HAVE WORKED WITH

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GOVERNMENT ENTITIES ALL OVER THE BAY AREA AND CALIFORNIA, AS I MENTIONED EARLIER ALL LEVELS OF GOVERNMENT, HAVE A VERY, VERY CLEAR VIEW OF HOW STAFF OPERATE. HOW MEASURES OPERATE. HOW FUNDING OPERATES WITHIN THE GOVERNMENT CONTEXT FOR PROJECTS LIKE THIS. THOSE SUPERPOWERS, I'M AN AVID CYCLIST, COMMUTER AND RECREATIONAL. WHEN YOU ARE A CYCLIST YOU SEE THINGS THAT MAYBE OTHER PEOPLE DON'T SEE. COMMUNITY ON ISSUES OF SAFE STREETS, LIKE I MENTIONED EARLIER, MANY, MANY BIKE/PED PROJECTS FROM START TO FINISH. SO SAFE STREETS IS VERY IMPORTANT TO ME. FINANCIAL OVERSIGHT, I THINK AS SOMEBODY HAD SAID EARLIER, I'VE BEEN INVOLVED ON THE FINANCIAL SIDE IN GRANTMAKING AND FINANCIAL MANAGEMENT OF CIVIL PROJECTS. AND I KNOW HOW THE FUNDING FLOWS FROM THE FEDERAL DOWN TO THE STATE TO THE LOCAL. WE ARE CURRENTLY WORKING WITH ONE OF OUR CLIENTS TO ACTUALLY PASS A BALLOT MEASURE TO GET FUNDING UNDER PROP 218. SO I'VE GOT A LOT OF CLARITY AROUND HOW THE FINANCES WORK AS WELL. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, AGAIN. SO WHY DO I WANT TO SERVE? I WOULD LIKE TO SERVE BECAUSE WE HAVE SEEN A NUMBER OF IMPROVEMENTS ON OUR STREETS RECENTLY. I WOULD LIKE TO SEE MORE OF THOSE IMPROVEMENTS AND I WOULD LIKE TO SEE THEM OR HELP SEE THEM THROUGH A HOLISTIC LENS. I THINK THAT'S SOMETHING OUR SYSTEMS, OUR PEDESTRIAN, BICYCLE, VEHICLE SYSTEMS CAN BENEFIT FROM A HOLISTIC VIEW. THE

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SKILL SETS I BRING TO THAT; I'M AN ARCHITECT, I'M A DESIGNER. THIS IS WHAT I DO ALL DAY LONG, DESIGNING PLACES FOR PEOPLE AND WORKING WITH INDIVIDUALS, A COLLECTION OF INDIVIDUALS TO MAKE THAT RIGHT FOR A NUMBER OF PEOPLE. SO KIND OF COMING UP WITH A GOOD DESIGN AND IN THIS CASE, OVERSIGHT APPROACHES TO IMPLEMENTATION FROM A HOLISTIC POINT OF VIEW. MY EXPERIENCE WITH THE COMMUNITY REGARDING SAFE STREETS IS, I'M A MEMBER OF THIS COMMUNITY AND I USE THE STREETS. AND I PAY ATTENTION. I PAY ATTENTION TO A LOT OF WHAT WE HAVE SEEN GOING ON IN TOWN AND UNDERSTANDING WHAT THE IMPLEMENTATION EFFECTS ON HOW WE MOVE AROUND OUR TOWN. IN TERMS OF EXPERIENCE WITH FINANCIAL OVERSIGHT, I WAS ON THE CBOC, CONSTRUCTION BOND OVERSIGHT COMMITTEE WITH STEPHANIE FOR SIX YEARS AND FOR YEARS BEFORE THAT ON THE FACILITIES COMMITTEE FOR BUSD. I'M A PARTNER IN MY FIRM. WE OVERSEE MILLIONS OF DOLLARS OF CONSTRUCTION CONTRACTS EVERY YEAR. SO IT'S VERY, VERY, VERY COMMON TO LOOK AT DETAILS, TO UNDERSTAND CONSTRUCTION COSTS, TO MANAGE THOSE KINDS OF ASPECTS OF DESIGN AND CONSTRUCTION. SO I THINK I BRING AN EXPERTISE IN THOSE KINDS OF FINANCIAL OVERSIGHT TO THIS COMMITTEE. THANK YOU.

>> MAYOR ISHII: THANK YOU. I THINK BEN, IS BEN STILL HERE ONLINE?

>> I AM.

>> MAYOR ISHII: BEN, CAN YOU SEE THE QUESTIONS?

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>> YEP, DO YOU WANT ME TO GO?

>> MAYOR ISHII: YEAH, GO AHEAD.

>> OKAY, SO TO START, I THINK THAT THE MEASURE FF AND TO THE EXTENT THIS OVERSIGHT BODY IS GOING TO HELP TO DELIVER THE GOODS OF FF IS THE MOST IMPORTANT CONTRIBUTION THE CITY OR OPPORTUNITY THE CITY HAS HAD IN MAYBE EVER TO IMPROVE THE PUBLIC REALM AND MAKE OUR STREETS SAFER. SO I APPLIED, I WANT TO MAKE SURE THIS MEASURE IS AS SUCCESSFUL AS POSSIBLE. AMONG MY SKILLS, AND I THINK WHAT I WOULD PROVIDE IS A VERY NUANCED UNDERSTANDING OF OUR CITY'S PLANS AND POLICIES. AND THAT'S IMPORTANT FOR MEASURE FF AND IT'S DELIVERY BECAUSE WE WROTE INTO THE MEASURE THAT THE CITY WILL INCORPORATE PLANS AND POLICY RECOMMENDATIONS IN ALL THE CAPITAL IMPROVEMENTS THAT HAPPENED WITH MEASURE FF FUNDS. I AM QUITE FAMILIAR WITH THE COMMUNITIES' VIEWS ON ISSUES OF SAFE STREETS, HAVING CO FOUNDED WALK (?) BERKELEY, I FELT COUNTLESS INQUIRIES AND CONCERNS FROM MEMBERS OF OUR COMMUNITY AND ENGAGED WITH MANY OF YOU ALL AROUND THOSE ISSUES. SO HOPEFULLY MY RECORD SPEAKS FOR ITSELF THERE. I THINK IN TERMS OF FINANCIAL OVERSIGHT, ONE THING THAT WE HAVE ALWAYS TRIED TO BE VERY CAREFUL AND THOUGHTFUL ABOUT IS UNDERSTANDING HOW THE CITY FINANCES STREET IMPROVEMENTS. SO HAVING AN UNDERSTANDING WHAT THE FINANCIAL REALITIES ARE FOR USE OF THESE FUNDS AND HOW MUCH CONSTRUCTION COSTS FOR THE VARIOUS FEATURES WE WANT IMPLEMENTED

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IS SOMETHING I PICKED UP A LOT AND WILL BRING TO THE COMMITTEE.

>> MAYOR ISHII: THANK YOU, BEN. NO ONE ELSE ONLINE? JUST DOUBLE CHECKING. I WANT TO GIVE US JUST FIVE MINUTES TO TAKE A BRIEF RECESS SO WE CAN HAVE CONVERSATIONS AMONGST OUR BROWN ACT CIRCLES AND THEN RETURN. AND WE WILL HAVE A MOTION. SO I JUST WANT FOLKS TO KNOW WE HAD INITIAL CONVERSATIONS ABOUT THIS, SO IT'S NOT LIKE WE JUST HEARD YOU AND WE ARE GOING TO DECIDE BASED ON THAT EXACTLY, BECAUSE WE RECOGNIZE THAT NOT EVERYBODY IS HERE AND ABLE TO SPEAK FOR THEMSELVES SO WE JUST WANT TO MAKE SURE WE ARE TAKING INTO ACCOUNT THE RESPONSES BUT ALSO THE APPLICATION, SO I WANT TO GIVE US FIVE MINUTES TO CONVENE REALLY QUICKLY AND WE WILL BE RIGHT BACK.

>> MAYOR ISHII: SORRY, OBVIOUSLY, WE HAD A VERY, VERY CHALLENGING DECISION. YEAH, I WANT TO THANK EVERYONE SO MUCH FOR BEG HERE, FOR BEING ONLINE, FOR TAKING PART IN THIS PROCESS. EVERYONE WHO SUBMITTED AN APPLICATION, THIS WAS AN INCREDIBLY-CHALLENGING DECISION. OH, MY LAPTOP JUST DIED. NICE. BUT I AM GOING TO, OH, THE OTHER THING I WAS GOING TO SAY, ONE THING WE DID HAVE A CONVERSATION ABOUT IS THE GENERAL LACK OF DIVERSITY IN OUR APPLICATIONS, PERIOD. LIKE WE WERE LOOKING ACROSS-THE-BOARD IN AGE, RACE, GENDER, ET CETERA. THAT'S SOMETHING I WANT TO ACKNOWLEDGE IN THE HOPE THAT WE DO MORE WORK TO HAVE A MORE DIVERSE APPLICANT POOL. COUNCILMEMBER TAPLIN, DO YOU --

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>> T. TAPLIN: YEAH, THANKS, I WASN'T A PART OF THOSE CONVERSATIONS BUT I WANTED TO SHARE SOME OF THE PEOPLE WHOSE APPLICATIONS I FOUND REALLY IMPACTFUL. I WAS PLANNING TO SUPPORT. RINA FISHER, ZACH, AND BEN GERHARDSTEIN. UNLESS I MISSED THEM, IT WAS HARD TO TELL WHO WAS WHO. BUT AMONG THE FOLKS WHO I THINK WERE NOT THERE, I WAS PLANNING TO SUPPORT EITHER DOUGLAS LEG OR HEATH MADDOX. THANK YOU.

>> MAYOR ISHII: THANK YOU. AND ACTUALLY, CAN I ASK A QUESTION, MAYBE IT'S OUR CITY ATTORNEY, POTENTIALLY, ABOUT LIKE IF WE CAN HAVE AN ALTERNATE FOR THIS? WOULD BE AN ALTERNATE SPECIFICALLY FOR ANY OF THE COUNCIL APPOINTEES.

>> I WOULD NEED TO LOOK THAT UP, I'M SORRY, LET ME TAKE A LOOK AT IT.

>> MAYOR ISHII: SURE. NO WORRIES. COUNCILMEMBER HUMBERT, DID YOU?

>> M. HUMBERT: NO, I'M SORRY.

>> MAYOR ISHII: THANK YOU SO MUCH, COUNCILMEMBER TAPLIN FOR YOUR COMMENTS. I WILL MAKE A MOTION THAT WE INCLUDE OUR REPRESENTATIVES BE RINA FISHER, DOUGLAS LEG, BEN GERHARDSTEIN AND CYBIL HATCH AND ALSO SEE IF WE CAN HAVE AN ALTERNATIVE AND THAT WOULD BE ZACH FRASER. SO THAT IS MY MOTION.

>> C. LUNAPARRA: SECOND.

>> MAYOR ISHII: OKAY, IF THERE'S NO OTHER DISCUSSION I WILL HAVE

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THE CLERK TAKE THE ROLL.

>> B. BLACKABY: JUST IN CASE OF OTHER DISCUSSION, I APPRECIATE EVERYONE WHO PUT THEIR NAMES FORWARD. I KNOW WE HAVE ALL DONE THIS AT POINTS IN OUR PAST AND I APPRECIATE PUTTING YOURSELF OUT THERE AND BEING HERE FOR THIS PROCESS IN A VERY PUBLIC WAY. THANK YOU FOR COMING AND THANK YOU FOR APPLYING. IT WAS A VERY DIFFICULT DECISION. AND I THINK WE COULD HAVE COMPOSED A LOT OF DIFFERENT REALLY GREAT SLATES. SO AGAIN, I JUST WANT TO THANK THE MAYOR FOR MAKING THAT MOTION AND I INTEND TO SUPPORT THE MOTION. BUT I DO REALLY APPRECIATE THE EFFORT THAT EVERYBODY TOOK TO BE HERE AND ALSO TO TAKE THE TIME TO APPLY. AND LIKE THE OTHERS HAVE SAID, HOPE THERE'S A WAY OTHERS CAN PARTICIPATE IN THE PROCESS, ONE WAY OR THE OTHER. THANK YOU, MAYOR.

>> MAYOR ISHII: THANK YOU. I WAS REMINDED I HAVEN'T DONE PUBLIC COMMENT YET. GO AHEAD, COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO JOIN IN COUNCILMEMBER BLACKABY'S COMMENTS. I HAVE REVIEWED THE QUALIFICATIONS OF ALL THOSE WHO SUBMITTED THEIR APPLICATIONS. AND I'VE DONE SO VERY CAREFULLY. WE ARE PRESENTED REALLY HERE WITH AN EMBARRASSMENT OF RICHES, REALLY GREAT QUALIFICATIONS ON THE PART OF BASICALLY EVERYONE WHO APPLIED. AND I DEEPLY APPRECIATE THE WILLINGNESS OF ALL THESE GOOD CITIZENS WHO HAVE APPLIED TO SERVE BUT UNFORTUNATELY WE CAN ONLY APPOINT FOUR. AND

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HOPEFULLY ALSO AN ALTERNATE. I THINK IT'S IMPORTANT TO DO WHAT WE CAN TO BALANCE GENDER AND ETHNICITY AS WELL. THANK YOU. AND I INTEND TO SUPPORT THE MOTION.

>> MAYOR ISHII: THANK YOU. WAS THERE ANOTHER COMMENT? YES, COUNCILMEMBER TREGUB?

>> I. TREGUB: I APPRECIATE THE ENGAGEMENT. COUNCILMEMBER O'KEEFE AND I HAD AN OPPORTUNITY TO DISCUSS AND I WOULD LIKE TO OFFER A SUBSTITUTE MOTION THAT WOULD INCLUDE POSSIBLY SOME OF THE SAME NAMES. I DIDN'T MARK DOWN WHO THE NAMES WERE IN THE ORIGINAL MOTION, SO THERE MAY BE SOME OVERLAP. OURS INCLUDES RINA FISHER, ZACHARY FRASER, DOUGLAS LEGG, AND SUSI MARZOLA AND SPEAKING FOR MYSELF, WE DIDN'T HAVE AN OPPORTUNITY TO DISCUSS ALTERNATES, I WOULD BE INTERESTED IN STEPHANIE ALLEN AS AN ALTERNATE.

>> MAYOR ISHII: OKAY, SO THERE IS AN ALTERNATE MOTION.

>> S. O'KEEFE: SECOND.

>> MAYOR ISHII: THANK YOU. SORRY, WE STILL NEED TO TAKE PUBLIC COMMENT. WE HAVEN'T TAKEN PUBLIC COMMENT. CITY ATTORNEY, DID YOU?

>> YES, MADAM MAYOR, I CHECKED AND THERE'S NO REASON WHY AN ALTERNATE CAN'T BE CHOSEN. I JUST WANTED TO LET YOU KNOW.

>> MAYOR ISHII: WERE YOU GOING TO SAY SOMETHING COUNCILMEMBER HUMBERT? NO, OKAY, I DO WANT TO TAKE PUBLIC COMMENT, I APOLOGIZE. IS THERE ANY PUBLIC COMMENT? OR ONLINE?

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>> CITY CLERK: TWO HANDS RAISED ONLINE. FIRST IS BLAIR BEEKMAN.

>> HI, THANK YOU. GOOD LUCK IN YOUR DECISION-MAKING, WHO WILL BE CHOSEN FOR THIS IMPORTANT COMMITTEE. THE CITY OF SAN JOSE HAS DONE SOMETHING OF THIS SAME IMPORTANT WORK, LIKE ABOUT FIVE OR SIX YEARS AGO NOW. WHEN THEY WERE DEVELOPING THEIR, THIS PROCESS AND THIS OVERSIGHT COMMITTEE THERE WAS A REAL IMPORTANT EMPHASIS ON THE IDEA OF CHECK ACCOUNTABILITY, TO BE PART OF THE INITIAL PROCESS. IT KIND OF GOT SIDETRACKED A LITTLE BIT. I HOPED, AS I TRIED TO MENTION EARLIER AS YOU ARE DECIDING THIS ITEM, YOUR FUTURE COMMISSIONERS HERE, ONCE YOU LOOK INTO CHECK ACCOUNTABILITY MEASURES AND THE WORK OF THE ACLU TOWARDS CIVIL RIGHTS AND CIVIL PROTECTIONS. BECAUSE IN THIS WORK YOU ARE GOING TO BE DOING WITH PAVEMENT AND STREETS AND COMPLETE STREETS, IT'S GOING TO INVOLVE TECH, TECHNOLOGY. AND TO HAVE A GOOD BACKGROUND IN GOOD CIVIL RIGHTS AND CIVIL PROTECTIONS, ALONG WITH PUBLIC SAFETY, WORKING THOSE THINGS TOGETHER, IT'S AN IMPORTANT COMBINATION TO HAVE, I THOUGHT I WOULD MENTION IT HOW YOU WILL BE DECIDING THIS ITEM OF THE FUTURE OF THE COMMISSION AND THEIR WORK.

>> MAYOR ISHII: THANK YOU. ANY OTHER PUBLIC COMMENT ONLINE?

>> CITY CLERK: YES. HELEN WALSH.

>> HELLO, MAYOR, AND COUNCILMEMBERS. I JUST WANTED TO SAY, HOLD ON A SECOND, WHERE DID I PUT IT? ELEVATING A.D.A. COMPLIANCE

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EXPERTISE WITHIN SSCOC APPOINTMENTS IS A CRITICAL STEP TOWARD MAKING SURE ACCESSIBILITY IS AN IMPORTANT PRINCIPLE IN PUBLIC PLANNING. I APPRECIATE THE ADDITION; I APPRECIATE THAT A FEW OF THE APPLICANTS HAD HOLISTIC VIEWPOINTS THAT INCLUDED ACCESSIBILITY AND I'M LOOKING FORWARD TO SEEING WHERE WE GO FROM HERE. I DO HOPE IN THE FUTURE WE HAVE MORE DIVERSITY IN THE APPLICANTS. THANKS, BYE.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THAT'S ALL.

>> MAYOR ISHII: OKAY, SO JUST REPEATING. SO THE MOTION, SO THE ALTERNATE MOTION WE NEED TO VOTE ON FIRST. AND I THINK YOU HAD RINA FISHER, ZACHARY FRASER, DOUGLAS LEGG, AND THEN YOUR FOURTH WAS SUSIE MARZOLA AND STEPHANIE ALLEN AS YOUR ALTERNATE. I THINK WE SHOULD TAKE THE ROLL.

>> CITY CLERK: ON THE SUBSTITUTE MOTION, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: PASS.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: PASS.

>> CITY CLERK: BARTLETT IS ABSENT. TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

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>> CITY CLERK: BLACKABY?

>> B. BLACKABY: PASS.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: ABSTAIN.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: ABSTAIN.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: ABSTAIN.

>> CITY CLERK: COUNCILMEMBER KESARWANI?

>> R. KESARWANI: ABSTAIN.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: ABSTAIN.

>> CITY CLERK: AND COUNCILMEMBER BLACKABY?

>> B. BLACKABY: ABSTAIN.

>> CITY CLERK: OKAY, THAT MOTION FAILS. ON THE MAIN MOTION, AND I DON'T, MAYOR, GIVEN THE CITY ATTORNEY'S ADVICE IF YOU WANT TO ADD AN ALTERNATE?

>> MAYOR ISHII: YES. ADDING ZACHARY FRASER WITH AN "S" NOT A "Z".

>> R. KESARWANI: CAN I GET CLARITY, THE ALTERNATE, WILL THAT PERSON ONLY SERVE IF ONE OF THESE FOUR ARE ABSENT OR ANY MEMBER OF THE BODY IS ABSENT?

>> MAYOR ISHII: IF ANY OF THE BODY IS ABSENT.

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>> R. KESARWANI: OKAY, I WANTED TO CLARIFY. OKAY, I'M READY TO VOTE.

>> CITY CLERK: OKAY. ON THE MAIN MOTION, FISHER, LEGG, GERHARDSTEIN AND HATCH WITH FRASER AS THE ALTERNATE, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT IS ABSENT. TREGUB?

>> I. TREGUB: PASS.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: COUNCILMEMBER TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: OKAY, MOTION CARRIES.

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>> MAYOR ISHII: OKAY, THANK YOU ALL SO MUCH. I REALLY WANT TO THANK YOU ALL. JUST FOR EVERYONE. [APPLAUSE] FOR THOSE NOT ELECTED I WOULD LIKE TO SEE YOU ENGAGED. WE WILL MOVE ONTO ITEM 30, WHICH IS THE 2026 PROPOSED MID-BIENNIAL BUDGET UPDATE AND PUBLIC HEARING #1. AND THANKS SO MUCH TO CITY MANAGER AND STAFF FOR YOUR PATIENCE.

>> MAYOR, WE WILL HAVE OUR BUDGET TEAM COME OUT AND THEY WILL BE SEATED AT THE TABLE IN FRONT OF YOU.

>> MAYOR ISHII: OKAY, GREAT. THANK YOU. AS FOLKS SET UP, CAN I GET A SENSE HOW MANY ARE HERE FOR THE BUDGET? AND HOW MANY ARE HERE FOR THE APPEAL? OKAY, I WAS JUST CURIOUS HOW FOLKS WERE SEPARATED. I WANTED TO MAKE SURE. THANK YOU FOR YOUR PATIENCE. I KNOW IT'S A LONG NIGHT. WHENEVER YOU'RE READY.

>> GOOD EVENING, MAYOR, COUNCILMEMBERS. WE HAVE A PRESENTATION TONIGHT ON THE PROPOSED MID-BIENNIAL BUDGET UPDATE. TO LEAD US ON THE PATH OF ADOPTION ON JUNE 24TH. NEXT SLIDE, PLEASE. AND THANK YOU TO THE BUDGET TEAM AND TO MICHELLE ROSETTI WHO IS KINDLY SHARING THE SCREEN FOR ME. TONIGHT WE WOULD LIKE TO PROVIDE A LITTLE SITUATIONAL AWARENESS ABOUT THE BUDGET CLIMATE. PROVIDE AN OVERVIEW OF OUR CITYWIDE SUMMARY RELATED TO THE FISCAL YEAR '26 BUDGET AND DELVE INTO DETAIL ON THE GENERAL FUND INCLUDING BUDGET BALANCING OPTIONS AND CLOSE OUT WITH A HIGH-LEVEL OVERVIEW OF FISCAL CHALLENGES AND FUNDING NEEDS ON THE

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HORIZON AND THEN NEXT STEPS AND TIMELINE AND THEN ENTERTAIN ANY QUESTIONS THE COUNCIL MAY HAVE. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> NEXT SLIDE. SO AGAIN, AS WE PREPARE FISCAL YEAR '26, PARTICULARLY AS IT RELATES TO THE GENERAL FUND, THE CITY HAS FACED A STRUCTURAL DEFICIT IN THE LAST SEVERAL FISCAL YEARS. HOWEVER, THE CITY HAS CLOSED THESE DEFICITS BY RELYING ON ONE-TIME MEASURES. THESE INCLUDED VACANCIES, INCLUDING HIRING FREEZES, OR PUTTING SALARY-SAVING TARGETS IN PLACE. DEFERRING PROJECTS. USE OF THE FUND BALANCE OR OTHER CITYWIDE FUNDS AND USE OF RESERVES OR THE GENERAL FUND. MORE IMPORTANTLY, OVER THE LAST SEVERAL YEARS RECEIVING FEDERAL ASSISTANCE OF $66 MILLION FROM THE AMERICAN RESCUE PLAN ACT THAT HELPED SUPPORT NOT ONLY THE GENERAL FUND BUT SEVERAL OTHER CITYWIDE FUNDS. AGAIN, AS WE GO INTO LOOKING AT FISCAL YEAR '26, OUR RESOURCES ARE FAR SHY OF OUR NEEDS. AND IN ADDITION TO TRYING TO BALANCE FISCAL YEAR '26, WE KNOW THERE'S A GREAT DEAL OF FEDERAL AND ECONOMIC UNCERTAINTY. WE ARE MINDFUL OF THE STATUS OF FEDERAL GRANTS COMING FROM THE FEDERAL GOVERNMENT AND ANY CHANGES THAT MAY BE COMING DOWN THE WAY. WE KNOW THAT WITH THE TARIFFS AND OTHER TRADE POLICIES, THERE'S THE LIKELIHOOD OF INCREASED COSTS OF SUPPLY AND DEMAND ISSUES AND AS MY COLLEAGUE, OUR FINANCE DIRECTOR HAS PROVIDED INFORMATION TO COUNCIL, THERE'S LIKELIHOOD

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OF A RECESSION ON THE HORIZON. NEXT SLIDE, PLEASE. SO REALLY, THIS IS TO HELP PROVIDE THE CONTEXT, AGAIN, AS WE LOOK AT BALANCING OPTIONS FOR FISCAL YEAR '26, TO ALSO BE MINDFUL THAT LONG-TERM WE WILL CONTINUE TO FACE CHALLENGES ON THE HORIZON AND WE WILL REALLY NEED TO START, SO WORKING DILIGENTLY TO HELP DEVELOP OUR FISCAL YEAR '27-'28 BIENNIAL BUDGET. BUT FOR FISCAL YEAR '26 WE HAVE A PACKAGE OF ONE-TIME OPTIONS FOR COUNCIL TO CONSIDER. BUT TO STEP BACK AT A HIGH-LEVEL GLANCE, THE CITYWIDE BUDGET IS DEPICTED ON THE SLIDE. YOU CAN SEE THE GROWTH FROM FY24 TO FY26. OF NOTE WHEN WE LOOK AT OUR NEW BUDGET FOR FISCAL YEAR '26 COMPARED TO THE BUDGET ADOPTED TWO YEARS AGO, WE HAVE SOME GROWTH IN REVENUE, LARGELY DUE TO THE MEASURE FF STREETS COMING ON BOARD DUE TO APPROVAL BY THE VOTERS OF THAT MEASURE. WE ARE ALSO INCREASING OUR REVENUE GROWTH BY ABOUT $7 MILLION IN THE GENERAL FUND, WHICH WE WILL BE DISCUSSING SHORTLY AND THE VACANCY TAX COMING ONLINE IN FISCAL YEAR '26 AND OTHER FUNDS HAVE AN INFLATIONARY INCREASE AS WELL. AS NOTED BY THE GREEN BAR OUR REVENUES ARE STILL FAR SHY OF OUR EXPENDITURES AND THIS WILL REQUIRE EITHER MORE EXPENDITURE REDUCTIONS OR DEPARTMENTS AND OTHER SPECIAL FUNDS TO USE THEIR FUND BALANCE TO BALANCE. NEXT SLIDE, PLEASE. THIS SLIDE DEPICTS AGAIN ALL FUNDS BY DEPARTMENT. THE CITY HAS NEARLY 200 FUNDS THAT MAKE UP OUR CITYWIDE BUDGET. THE LARGEST DEPARTMENT IS THE PUBLIC WORKS DEPARTMENT. YOU COULD

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SEE THERE ON THE SLIDE; THEIR BUDGET IS $185 MILLION. THIS IS AGAIN, REFLECTS THE COMPLEXITY OF THE PUBLIC WORKS FUNCTION, ZERO WASTE IS IN PUBLIC WORKS. THE SANITARY SEWER FUND AS WELL AS THE GENERAL FUND COMPONENT RELATED TO TRANSPORTATION. AND OTHER SPECIAL REVENUE MEASURES AS WELL. THE NEXT LARGEST IS HEALTH, HUMAN SERVICES AND COMMUNITY SERVICES. DUE TO TIMING RELATED TO THE HOUSING DEVELOPMENT PROJECTS COMING ONLINE. BUT YOU WILL SEE ACROSS-THE-BOARD, FOR THE MOST PART, DEPARTMENTS ACROSS ALL THE FUNDS ARE EXPERIENCING AN INCREASE IN FISCAL YEAR '26, ADOPTED BY THE UPDATED BUDGET LARGELY DUE TO INCREASED COSTS OF DOING BUSINESS PRIMARILY RELATED TO PERSONNEL. NEXT SLIDE, PLEASE. AND AGAIN, FOR PEOPLE WHO ARE MORE VISUAL, THIS IS A CHART REFLECTING THE DATA BEHIND THE TABLE. YOU CAN SEE ON THE PIE, AS NOTED TOWARD THE BOTTOM AT ABOUT, 6:00 OR SO, I WOULD SAY THE BLUE, BUT IT LOOKS A LITTLE LAVENDER FROM HERE, PUBLIC WORKS IS ABOUT 24% OF THE CITYWIDE BUDGET AND PUBLIC WORKS IS THE LARGEST EXPENDITURE BY DEPARTMENT AND YOU COULD SEE THE BREAK DOWN ACROSS THE OTHER DEPARTMENTS AS WELL. NEXT SLIDE, PLEASE. THIS IS A SIMILAR CHART BUT INSTEAD OF LOOKING AT ALL THE CITYWIDE FUNDS WE ARE LOOKING SPECIFICALLY AT THE GENERAL FUND. YOU COULD SEE UNLIKE THE OTHER CHART WITH PUBLIC WORKS OVERALL BUDGET WAS CLOSE TO $185 MILLION. WHEN WE LOOK AT GENERAL FUND PUBLIC WORKS IS SMALLER, ABOUT $7.6 MILLION. THE

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BULK OF THE GENERAL FUND GOES TO SUPPORT OUR POLICE AND FIRE DEPARTMENTS AS NOTED TOWARD THE BOTTOM OF THE SLIDE. AND AGAIN, THE DEPARTMENTS ARE EXPERIENCING AN INCREASE IN THEIR PERSONNEL COSTS. ALSO TO NOTE, AS WE TALK ABOUT BALANCING STRATEGIES, THE CURRENT EXPENDITURE FIGURE IN THE GENERAL FUND, THE $310 MILLION DOES REFLECT THE SAVINGS FROM KEEPING CERTAIN POSITIONS VACANT. AND WE WILL TALK ABOUT THAT HERE SHORTLY. NEXT SLIDE, PLEASE. AGAIN, SIMILAR TO THE ALL FUNDS BREAK DOWN, THIS PIE CHART REPRESENTS WHERE THE GENERAL FUND DOLLARS ARE ALLOCATED TO. AGAIN, PRIMARILY TO CITY DEPARTMENTS, COMBINED PUBLIC SAFETY OF POLICE AND FIRE. THE GENERAL FUND CONTRIBUTES ABOUT 48%. THAT'S $151 MILLION. THE GENERAL FUND CONTRIBUTES $14 MILLION, ABOUT 4% OF THE BUDGET TO CAPITAL PROJECTS INCLUDING THE NEW STREETS POLICY OF $10 MILLION AND ABOUT $12 MILLION OR 4% OF THE BUDGET IS ALLOCATED TO COMMUNITY AGENCIES. IN ADDITION, THE GENERAL FUND ALSO COVERS DEBT AND TRANSFER AND SOME OTHER OPERATIONAL OVERHEAD, AS NOTED IN THE PIE CHART. NEXT SLIDE, PLEASE. SO, YOU WILL HEAR A LOT ABOUT ONE OF THE DRIVERS OF OUR INCREASED COSTS IS PERSONNEL. AGAIN, IT TAKES STAFF TO DELIVER THE VARIETY OF SERVICES THAT THE CITY PROVIDES. THE PIE CHARTS HERE ARE SNAPSHOTS OF EXPENDITURE BY CATEGORY. ON THE LEFT, YOU WILL NOTICE ACROSS ALL THE CITYWIDE FUNDS, SALARY AND BENEFITS REPRESENT ABOUT 54% OF EXPENDITURES. HOWEVER, WHEN WE LOOK AT

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JUST THE GENERAL FUND, THE SALARY BENEFITS INCREASE TO 68%. THAT REFLECTS THE GENERAL FUND IS CONTRIBUTING TO PUBLIC SAFETY AND ALSO THE GENERAL FUND IS NOT PUTTING IN AS MUCH TOWARDS CAPITAL PROJECTS AS SOME OF THE CITYWIDE FUNDS THAT HAVE A LOT GREATER EXPENDITURES IN TERMS OF INFRASTRUCTURE. BUT AGAIN, JUST A COMPARISON BETWEEN THESE DIFFERENT FUNDING SOURCES AND DEPICTION OF WHERE THE DOLLARS ARE GOING, IN TERMS OF PROVIDING CITY SERVICES. NEXT SLIDE, PLEASE. AND AGAIN, IF WE DRILL DOWN IN MORE DETAIL ON THE PERSONNEL COSTS, AGAIN FOR THE GENERAL FUND, YOU COULD SEE THERE THAT IS NOTED IN THE YELLOW SLIVER OF THE PIE, SALARIES ARE ABOUT 54% OF THE COST OF PERSONNEL. ALSO IMPORTANT TO NOTE THAT PENSION, WHICH WE WILL BE TALKING ABOUT USE OF THE SECTION 115 TRUST REPRESENT ABOUT A THIRD OF THE BUDGET. AND HEALTH INSURANCE IS ANOTHER COMPONENT AT 12%. SO AGAIN, THE PACKAGE OF SALARY AND BENEFITS REALLY ARE THE DRIVERS OF THE CITY BUDGET, PARTICULARLY FOR THE GENERAL FUND. NEXT SLIDE, PLEASE. AGAIN, AS WE HAVE DISCUSSED WITH THE BUDGET AND FINANCE POLICY COMMITTEE, THE GENERAL FUND HAS BEEN STRUGGLING WITH A DEFICIT. YOU COULD SEE THERE ON THE SLIDE, THE VARIOUS STRATEGIES THAT HAVE BEEN USED TO CLOSE THE BUDGET GAP, NOTING IN FISCAL YEAR 2021 THE PROJECTED DEFICIT WAS $41 MILLION. WE ARE SEEING SIMILAR TRENDS NOW. THERE'S A LIST OF THE VARIOUS OPTIONS WE USED AND AGAIN, NOTING THE USE OF THE FEDERAL

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ASSISTANCE THROUGH ARPA. AGAIN, WHAT WE WANT TO TALK ABOUT THIS EVENING IS CONTINUING TO USE SOME OF THESE ONE-TIME OPTIONS JUST TO GET THROUGH FISCAL YEAR '26. HOWEVER, A LOT OF THESE OPTIONS ARE NOT SUSTAINABLE. WE REALLY WILL NEED TO LOOK AT MORE OPTIONS TO ADDRESS '27-'28 AND SEVERAL HAVE TRADE-OFFS BETWEEN THE SHORT-TERM AND LONG-TERM WE WILL DISCUSS SHORTLY. NEXT SLIDE, PLEASE. WE WILL GO OVER OUR BUDGET BALANCING STRATEGIES, AND AGAIN, WE STARTED WITH OUR MODEL, WITH OUR ADOPTED REVENUE AND OUR EXPENDITURES, WHICH RESULTED IN A DEFICIT OF JUST UNDER $30 MILLION. HOWEVER, AS WE WILL TALK IN THE NEXT FEW SLIDES, OUR REVENUES ARE PROJECTED TO INCREASE BY ABOUT $7 MILLION. SO YOU COULD SEE THAT OUR REVENUES ARE NOW REFLECTED AT JUST UNDER $292 MILLION. WE ALSO REFINED SOME OF OUR EXPENDITURES IN TERMS OF REFINING SOME OF OUR PENSION ESTIMATES AND SOME COST SHIFTS WHICH GOT OUR EXPENDITURES DOWN TO AROUND $313 MILLION. HOWEVER, THE NEXT STEP, AND WE WILL BE TALKING ABOUT THIS HERE SHORTLY IS THAT WE, FOR MODELING PURPOSES, WENT AHEAD AND FACTORED IN KEEPING SOME POSITIONS VACANT SO WE COULD BE ACCURATE IN OUR MODEL AND KNOW WHAT THOSE COSTS WOULD REALLY RELATE TO WHEN WE FACTORED IN THE BENEFITS AND WORKERS COMPENSATION AND THAT BROUGHT OUR EXPENDITURES DOWN TO $310 MILLION. LEAVING A DEFICIT OF JUST UNDER $20 MILLION. WHAT WE ARE PROPOSING FOR CONSIDERATION IS TO CONTINUE TWO STRATEGIES THAT WERE ADOPTED AS

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PART OF THE FISCAL YEAR '25-'26 BIENNIAL BUDGET, INCLUDING A WORKER COMPENSATION TRANSFER TO THE GENERAL FUND, ABOUT $5.2 MILLION AND THE USE OF THE SECTION 115 TRUST TO PAY A PORTION OF THE PENSION, WHICH WOULD THEREBY RELIEVE THE GENERAL FUND CONTRIBUTION TO CALPERS BY ABOUT $3 MILLION DOLLARS. IN ADDITION TO CONTINUING TO REDUCE THE DEFICIT, WE ARE ALSO PROPOSING AN INCREASE IN THE USE OF THE PENSION TRUST BY ANOTHER $3 MILLION. LOOKING AT REDUCING THE CONTRIBUTION TO THE I.T. COST ALLOCATION PLAN WHICH WOULD GENERATE ABOUT $6.2 MILLION AND REALLOCATING THE SMALL SITES FOR ABOUT $2.5 MILLION. AGAIN, IT SHOULD BE NOTED WE HAVE ASSUMED IN THAT $310 MILLION DOLLAR EXPENDITURE ABOUT $9 MILLION OF SAVINGS BY HOLDING POSITIONS VACANT. SO AGAIN, WORKING THROUGH THESE STRATEGIES, IT ENDS UP WITH A PROJECTED SURPLUS OF ABOUT $1.2 MILLION. HOWEVER, WE KNOW THERE ARE MANY NEEDS ON THE HORIZON, INCLUDING THE MARINA FUND WHICH IS FACING A PROJECTED DEFICIT ABOUT $1.3 MILLION. SO AGAIN, WE ARE QUICKLY BACK TO BARELY BEING BALANCED AND WE KNOW THERE ARE OTHER NEEDS, BY DEPARTMENTS, COUNCIL REFERRALS AND CONTINGENCIES AND UNKNOWNS IN THE FUTURE THAT WOULD DRAW ON THAT PROJECTED SURPLUS. NEXT SLIDE, PLEASE. I WILL TURN THE NEXT FEW SLIDES TO OUR FINANCE DIRECTOR TO TALK ABOUT THE CHANGES IN OUR GENERAL FUND REVENUE.

>> GOOD EVENING, COUNCIL. THIS IS HENRY OYEKANMI, THE FINANCE

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DIRECTOR. JUST TO LAYOUT SO YOU HAVE AN IDEA, BEFORE COUNCIL PASSES THE BUDGET EVERY YEAR, WE DO PROJECTIONS THAT USUALLY TAKES THREE QUARTERS OF ACTUAL NUMBERS THAT WE RECEIVE AND WHEN WE PROJECT FOR THE LAST QUARTER, AND WE PROJECT FOR THE NEXT YEAR BASED ON THOSE NUMBERS. SO FOR THIS YEAR, THE FIRST THREE QUARTERS WE GENERATED MARCH 31ST, WE FIGURED OUT HOW MUCH WE ACTUALLY GOT IN. NOW BASED ON THAT WE DO THE PROJECTION TO WHERE WE ARE GOING TO LAND, WHERE WE THINK WE ARE GOING TO LAND FOR THE LAST QUARTER OF THE FISCAL YEAR, WHICH IS GOING TO HAPPEN NEXT MONTH. AND WE PROJECT FOR THE FISCAL YEAR. SO WHEN WE DID THE PROJECTION THIS YEAR WE FOUND THAT WE HAD SOME FEW GOOD REVENUE STREAMS THAT WERE IN THAT WERE SOLID. AND THEY WERE DRIVEN BY ACTUALLY ONLY OUR REAL ESTATE DEVELOPMENT. WE HAD ABOUT NINE HUGE SALES OF PROPERTIES OVER $10 MILLION DOLLARS, TOTAL ABOUT $235 MILLION. TRANSLATED TO ABOUT $9 MILLION. SO IF YOU LOOK AT THE SWEET SPOT WE GOT, BECAUSE OF THAT, OUR SECURED PROPERTY TAX WENT UP, THE PROPERTY TRANSFER TAX WENT UP, THE MEASURE P PROPERTY TRANSFER TAX WENT UP. AND EVERYTHING THAT TIES TO THAT WENT UP INCLUDING THE UTILITY TAX. SO IF YOU LOOK AT EVERYTHING THAT HAPPENS, IN TERMS OF THE REVENUES THAT WE RECEIVED, THAT WAS THE DRIVER. THE OTHER REVENUE WE KNEW WAS COMING BUT WE DIDN'T KNOW WOULD BE HIGHER WAS THE UTILITY, WE KNEW THE P.U.C. INCREASED THE TAX, I THINK THE RATE WAS 2.5% OR

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$3% BUT IT WAS ABOUT A HALF MILLION MORE THAN ANTICIPATED. THE OTHER REVENUE WE FOUND FASCINATING, WHICH I FOUND FASCINATING BECAUSE THIS IS MY DEPARTMENT, THE BUSINESS LICENSE TAX, CAME UP WITH AN ADDITIONAL $1.2 MILLION. WE HAD ABOUT 500 LESS BUSINESSES IN THE CITY BUT WE HAD MORE MONEY BECAUSE OF THE, I WOULD SAY MAYBE TWO THINGS HAPPENED. WE HIRED TWO MORE STAFF THAT DOES REVENUE GENERATION. AND THEN WE ALSO DID, WE THINK THERE WAS A LITTLE BIT OF, BECAUSE OF THE INFLATIONARY RATES, GROSS RECEIPTS WERE HIGHER BECAUSE BUSINESS TAX IS BASED ON GROSS RECEIPTS, SANDWICH USED TO BE $10 NOW $15. SO IF YOU LOOK AT GROSS RECEIPTS IT'S HIGHER. ANYTHING THAT BRINGS IN HIGHER INFLATIONARY RATE WE WERE ABLE TO CAPTURE THOSE. AND FINALLY, WE HAD FANTASTIC INVESTMENT INCOME. THE FEDS RAISED INTEREST RATES A COUPLE TIMES SO WE WERE ABLE TO CAPTURE THOSE RATES. THAT'S WHY OUR INVESTMENT WENT UP BY ABOUT $1 POINT SOMETHING MILLION. THE NEGATIVE ONE WE HAVE BEEN TRACKING IS OUR T.O.T. TAX, THE HOTELS. WE HAVE BEEN ISSUE WITH SOME OF OUR HOTELS NOT PAYING, HAVING DIFFICULTY PAYING. WE NEED TO BE LOOKING AT THAT, WE DOWN GRADED, WE BROUGHT THOSE REVENUES DOWN. WE HAVE A SUPPLEMENTARY TAX IS DOWN, A TAX WHERE THE DIFFERENCE BETWEEN WHAT THE COUNTY GAVE US IN JANUARY AND WHAT THEY ACTUALLY GIVE TO US IS SLIGHT MODIFICATIONS WHAT THEY ARE SAYING SO THAT WENT DOWN A LITTLE BIT. BUT IN OVERALL, OVERALL WE HAD A NEW ROBUST ABOUT $7.5

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MILLION INCREASE IN OUR REVENUES FOR FISCAL YEAR '25. WHICH THEN TRANSLATES INTO US PROJECTING FOR HIGHER 2026 AND THAT'S WHERE WE ARE AT. NEXT SLIDE. THIS SLIDE PROJECTS THE SAME THING WE JUST SAID, THE PROPERTY-RELATED TAXES AND EFFECTS ON MOST OF THEM. SO IF YOU LOOK AT THE TRACK THAT YOU SEE, YOU HAVE YOUR SECURE PROPERTY TAX WHICH IS UP BECAUSE YOUR VALUE OF YOUR HOME, GOES BEYOND THE 2% THE COUNTY CAPTURES. YOU HAVE YOUR PROPERTY TRANSFER TAX, BECAUSE WE HAD EXCELLENT SALES OF PROPERTIES OVER $10 MILLION, WE HAD PROPERTY TRANSFER TAX, MEASURE P, WHICH WERE THE DRIVERS OF THE REVENUES WE WERE TALKING ABOUT. THEY JUST CAPTURE, IF YOU LOOK AT THE GRAPH, IT JUST TELLS YOU THE RATE OF INCREASES FOR THOSE THREE PROPERTY, THOSE TAXES THAT WERE TIED TO THE PROPERTY TAX. THE SALES TAX WASN'T REALLY HIGH, IT LEVELED UP. WE RECEIVED ALMOST EXACTLY WHAT WE SAID WE WERE GOING TO. PROJECTION SAID WE WOULD BE LEVELING THE NEXT COUPLE YEARS TO SEE HOW THOSE SALE TAXES WILL BE IMPACTED. THIS IS NOTHING THAT WE GENERATE, THIS IS SOMETHING THAT THE STATES GENERATE IN TERMS OF ITS THE REVENUES AND OPERATIONAL STUFF THAT HAPPENS IN THE CITY. BUT IT'S USUALLY COLLECTED BY THE STATE AND DIVIDED TO US BY THAT. SO MACROECONOMICS REALLY HAPPENS WITH THIS ONE. WHEN YOU HAVE HUGE COMMERCIAL ACTIVITIES, IT DRIVES OUR SALES NUMBERS. AND SO IN THIS ONE, THE CONSULTANT WE HIRED THAT HELPED US WITH THIS GAVE US A LEVEL OF ABOUT 1.2% INCREASE

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LAST YEAR AND IT WAS LEVEL, ALMOST VERY ON POINT. SO FOR NEXT FEW YEARS IT'S BEEN A LEVEL LOOKING AT 1.2%, 2% INCREASE. AND THEY ARE GOING TO DO A NEW REVIEW BASED ON THE NEW REVENUE, IMPACTS OF THE TARIFFS. THEY WILL DO NEW REVENUE PROJECTIONS TARIFFS FOR THE SALES TAX. THEY THINK THERE SHOULD BE IMPACT ON THE SALES TAX. WE ARE GOING TO REVISE THAT. IF IT GOES DOWN, IF THEY THINK IT WILL BE A HUGE IMPACT WE MIGHT HAVE TO COME BACK AND REVISIT THIS AGAIN. BUT WHAT THEY SAID WHEN WE HAD THIS CONVERSATION A COUPLE DAYS AGO THEY SAID THEY THINK IT WILL BE LEVEL FOR A COUPLE MINUTES. IN THE FIRST AND SECOND QUARTER OF 2026. NEXT SLIDE.

>> GOOD EVENING, MAYOR AND COUNCIL, I'M DAVID WHITE, DEPUTY CITY MANAGER. WE WILL TRANSITION TO TALKING ABOUT SOME OF THE BUDGET BALANCING OPTIONS PRESENTED TO YOU TONIGHT. WE WILL START OFF TALKING ABOUT THE VACANT POSITIONS WE HAVE MODELED INTO THE BUDGET. THE BUDGET MANAGER SHARON FRIEDRICHSEN MENTIONED THIS EVENING. IN THE SUPPLEMENTAL YOU RECEIVED; YOU RECEIVED A NUMBER OF DIFFERENT EXHIBITS. THERE'S A LENGTHY EXHIBIT ABOUT 3-4 PAGES LONG THAT DISCLOSES THE VACANT POSITIONS IN THE BUDGET MODEL WHEN WE FIRST RAN THE BUDGET ITSELF. THERE WERE QUITE A FEW POSITIONS IN THE BUDGET ITSELF, OVER 100 POSITIONS THAT WERE VACANT, GENERATING NORTH OF $20 MILLION OF SAVINGS IF THEY WERE ALL TO BE HELD VACANT. AFTER WE PRODUCED THAT CHART AND

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PRESENTED IT TO THE BUDGET AND FINANCE POLICY COMMITTEE WE WERE ASKED TO REFINE OUR ANALYSIS. WE TOOK TIME TO IDENTIFY THAT LIST TO IDENTIFY POSITIONS FILLED OR EXEMPTIONS WERE GRANTED AND THAT PRODUCED A REVISED LIST OF VACANCY IN THE GENERAL FUND. AND THAT LIST GENERATED ABOUT 104 VACANT POSITIONS THAT HAD SAVINGS OF A LITTLE LESS THAN $20 MILLION, ABOUT $19.9 MILLION DOLLARS. ONE OF THE THINGS I WANT TO CAVEAT AS I GO THROUGH THIS, WE DIDN'T INCLUDE ANY OF THE VACANT POSITIONS IN THE MAYOR AND CITY COUNCIL'S OFFICE, THE CITY AUDITOR'S OFFICE, OFFICE OF DIRECTOR OF POLICE ACCOUNTABILITY. HOWEVER, WE DID INCLUDE THE CITY ATTORNEY'S OFFICE BECAUSE THE CITY ATTORNEY DID PUT A POSITION INTO FOR CONSIDERATION THAT SHE IS WILLING TO HOLD VACANT TO ADDRESS THE BUDGET DEFICIT. GOING BACK TO THE DISCRETION, WE IDENTIFIED ABOUT 104 POSITIONS GENERATING A LITTLE LESS THAN $20 MILLION IN SAVINGS. WE WORKED ITERATIVELY TO DEVELOP A LIST OF POSITIONS TO PROPOSE TO COUNCIL TO HOLD VACANT IN FISCAL YEAR '26. AND IDENTIFIED POSITIONS THAT COULD BE ALLOCATE TODAY OTHER FUNDS. FOR EXAMPLE, IN THE FIRE DEPARTMENT, THE FIRE CHIEF IDENTIFIED ABOUT TEN PARAMEDIC POSITION THAT'S COULD BE PLACED IN MEASURE FF AND ONE POSITION IN THE BUDGET MODEL A TEMPORARY PROVISIONAL POSITION NOT TO BE BUDGETED IN FISCAL YEAR '26 AND THAT WAS IN THE POLICE DEPARTMENT SO THAT WAS REMOVED AS WELL. AFTER GOING THROUGH ALL THAT WORK, AS YOU CAN SEE ON THE CHART

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IN FRONT OF YOU, THAT COLUMN A, WHAT THAT REFERS TO THERE, AS I SAID, THE 104 POSITIONS WE IDENTIFIED AS ACTUALLY BEING VACANT. AND THEN COLUMN "B" THE 55.2 POSITIONS REFLECTS A NUMBER OF POSITIONS WE ARE PROPOSING TO HOLD VACANT IN THE FISCAL YEAR '26 BUDGET REALLOCATE TODAY OTHER FUNDS AND ONE POSITION THAT WE WERE ABLE TO ELIMINATE BECAUSE IT WAS A TEMPORARY PROVISIONAL POSITION. SO WHAT THAT LEAVES US WITH IN THE FISCAL YEAR '26 BUDGET IS ABOUT 48.9, ALL IT 49 FULL-TIME EQUIVALENT POSITIONS BUDGETED IN FY '26 WITH COSTS ASSOCIATED ABOUT $10.5 MILLION. SO WHAT WE ARE SAVING IN THIS PROPOSAL TO COUNCIL IS ABOUT $9.3 MILLION BY HOLDING THESE POSITIONS VACANT IN FISCAL YEAR '26.

>> NEXT SLIDE, PLEASE. SO IN ADDITION TO THE VACANT POSITIONS, ANOTHER STRATEGY IS WHAT WE CALL THE WORKER COMPENSATION HOLIDAY. THE CITY IS SELF-INSURED FOR WORKER COMPENSATION CLAIMS AND VARIOUS CITY FUNDS CONTRIBUTE TO THE WORKER COMPENSATION FUND. WHEN WE TALK ABOUT A HOLIDAY THIS MEANS THE GENERAL FUND WOULDN'T CONTRIBUTE TO FOR FISCAL YEAR '26. WITH THE HOLIDAY WE ALREADY TOOK FOR FISCAL YEAR '25, OUR ASSETS IN THAT FUND ARE CLOSE TO ABOUT $35-$36 MILLION. WE CONSULTED WITH OUR ACTUARIAL AND THE ACTUARIAL RECOMMENDS CONFIDENCE LEVEL OF 75% BEING THAT WE FILL, THAT WE ARE 75 PERCENT CONFIDENT WE HAVE ENOUGH MONEY IN THE FUND TO PAY ALL THE KNOWN CLAIMS THAT WE ANTICIPATE WILL COME AND BE DUE AT SOME POINT IN THE FUTURE. THE AMOUNT

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RECOMMENDED BY THE ACTUARIAL JUST UNDER $50 MILLION, $49.6. JUST FOR CONTEXT, THE CITY TYPICALLY PAYS CLAIMS ABOUT $6-8.4 MILLION. IF ALL CLAIMS SHOULD COME DUE ALL AT ONCE WE WOULD NEED THAT AMOUNT IN OUR WORKER COMPENSATION FUND TO COVER THAT. AND AGAIN, THE ACTUARIAL EXPECTS OUR DISCOUNTED TOTAL OUTSTANDING LIABILITY TO BE $44.3 MILLION. YOU CAN SEE THE IMPACT OF TAKING THE HOLIDAY ARE HITTING THE FUND. BUT AGAIN, RIGHT NOW WE ARE A LITTLE UNDER PAR WITH WHAT'S RECOMMENDED AT THAT 75% LIABILITY IN TERMS OF CONFIDENCE LEVEL AT THIS POINT IN TIME. AGAIN, THIS ASSUMES THAT WE WOULD NEED ALL THAT FUNDING AT ONCE. SO AGAIN WE ARE BALANCING OUR SHORT-TERM FUNDS OF TRYING TO BALANCE THE '26 BUDGET WITH LOOKING AT MORE SUSTAINABLE STRATEGIES SO WE CAN CONTINUE TO HAVE FUNDS INCLUDING THE GENERAL FUND CONTRIBUTE TO THE WORKER COMPENSATION FUND MOVING FORWARD.

>> ANYTHING YOU NEED TO ASK?

>> NO, I THINK YOU COVERED IT.

>> NEXT SLIDE, PLEASE. THE NEXT OPTION IS TO USE THE SECTION 115 TRUST. AGAIN, COUNCIL HAD THE FORESIGHT TO ESTABLISH A SECTION 115 TRUST. THIS IS AN IRREVOCABLE TRUST, MEANING WE CAN ONLY USE IT TO PAY PENSION COSTS. THE COUNCIL HAS BUDGET AND FISCAL POLICIES AND WE HAVE BEEN USING THOSE POLICIES TO PUT MONEY INTO THE TRUST. MY COLLEAGUE HERE IN THE FINANCE DEPARTMENT PRE-PAYS OUR ENTIRE UNFUNDED ACTUARIAL LIABILITY TO CALPERS AND WITH THAT

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SAVINGS WHICH IS USUALLY ABOUT $1.5 MILLION WE PUT THAT BACK IN THE TRUST. WE ALSO HAVE SOME POLICIES RELATED TO OUR INVESTMENT RETURNS AND WE PUT FUNDING INTO THE TRUST, OUR INVESTMENT INCOME IS GREATER THAN EXPECTED AND IN PRIOR YEARS WHEN WE HAD A MORE ROBUST BUDGET WE ALSO PRE-FUNDED THE TRUST. WE HAVE, THROUGH THESE POLICIES CURRENTLY HAVE A TRUST BALANCE OF ABOUT $26.4 MILLION AS OF JUNE 30TH, 2024. AGAIN, COUNCIL GOAL IS TO PUT ABOUT $5.5 MILLION INTO THAT TRUST EVERY YEAR. WE HAVE BEEN CLOSE. PROBABLY ANYWHERE FROM $1.5 TO $4.5 MILLION IN ANY IT GIVEN YEAR. WHAT WE ARE PROPOSING TO DO, GIVEN THAT OUR PENSION COSTS HAVE INCREASED IS TO USE THE TRUST TO PAY A PORTION OF OUR PENSION COST TO CALPERS AND THEREFORE THE GENERAL FUND WOULD PAY A LESSER AMOUNT BUT STILL WOULD CONTRIBUTE, WE ARE RECOMMENDING $6 MILLION BE USED IN THE TRUST. AGAIN, WHAT'S IMPORTANT TO NOTE IS OUR SHORT-TERM NEED VERSUS THE LONG-TERM NEED. YOU COULD SEE ON THAT SLIDE BELOW THE PROJECTIONS FROM CALPERS FOR OUR FIRE, OUR POLICE AND OUR MISCELLANEOUS PLANS. THIS IS JUST THE GENERAL FUND PROPORTION, WHAT YOU COULD SEE THERE, THE ESCALATION FROM ABOUT $33 MILLION IN '24-'25, UPWARDS TO $46 MILLION IN FIVE YEARS. SO ALMOST A $12.4 MILLION INCREASE. SO AGAIN, MAKING SURE THAT THE TRUST IS THERE TO ALSO BUFFER IF THE FORTHCOMING SPIKES IN CALPERS IS IMPORTANT, SO THAT THE CITY IS NOT IN A POSITION OF NEEDING TO MAKE REDUCTIONS IN STAFFING OR PROGRAMS AND

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SERVICES IN ORDER TO PAY CALPERS. AND I WILL PAUSE TO SEE IF THE FINANCE DIRECTOR WOULD LIKE TO ADD ANY MORE INFORMATION.

>> I JUST WANTED TO ASK, TO ADD A LITTLE BIT OF CONTEXT, THESE ARE JUST SHORT-TERM FIXES. OUR UNFUNDED LIABILITIES FOR PENSION IS ABOUT OVER $600 MILLION. SO $26 MILLION IS DWARFS, IT IS JUST FOR US TO BE ABLE TO HELP LEVEL WHERE WE HAVE A SPIKE, WHICH WE THINK WE ARE GOING TO HAVE IF CALPERS DOESN'T MAKE THE 6.7% THEY ARE SUPPOSED TO. SO THIS IS JUST TO HELP US, BUT THIS IS A SHORT-TERM. AT THE SAME TIME WE KNOW WE ARE PUTTING MORE MONEY IN THERE, WE ARE A LITTLE BIT OKAY BUT WE WANT TO MAKE SURE WE KNOW THESE ARE SHORT-TERM THINGS WE NEED TO DO SHORT-TERM AND LONG-TERM DOING MORE, ADDING MORE MONEY TO THAT BECAUSE IT'S GOING TO BE, IF YOU LOOK AT '28-'29 AND THOSE PENSION COSTS ARE GOING UP. WE NEED TO MAKE SURE WE HAVE A SHOCK ABSORBER TO TAKE CARE OF THOSE SHOCKS. THANK YOU.

>> THANK YOU. NEXT SLIDE, PLEASE. THE NEXT BUDGET BALANCING OPTION IS SIMILAR TO THE WORKER COMPENSATION HOLIDAY. VARIOUS CITY FUNDS CONTRIBUTE TO THE I.T. ALLOCATION COST FUND TO PAY FOR I.T. SERVICES. AGAIN, UNDER THIS APPROACH THE GENERAL FUND WOULD REDUCE ITS CONTRIBUTION BY 50%. AGAIN, JUST FOR FISCAL YEAR '26. WE HAVE CONSULTED WITH OUR DIRECTOR OF INFORMATION TECHNOLOGY AND CORE SERVICE WILL REMAIN INTACT, THERE MAY BE DELAYS IN PROJECT IMPLEMENTATION. WE WILL START USING SOME OF

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THE FUND BALANCE OF I.T. COST ALLOCATION FUND, HOWEVER THERE SHOULD BE SUFFICIENT FUNDING TO ACCOUNT FOR ANY UNFORESEEN EXPENDITURE, SUCH AS SIGNIFICANT INFRASTRUCTURE NEEDS, APPLICATION FAILURE OR CYBER SECURITY EVENT. HOWEVER, WE WOULDN'T RECOMMEND GOING BEYOND THAT 50%. THAT'S REALLY STARTING TO PUT THE FUND BALANCE IN A PRECARIOUS STATE AND WOULD NOT RECOMMEND CONTINUING THIS PRACTICE IN FUTURE YEARS. NEXT SLIDE, PLEASE. YOU WANT TO TAKE THIS ONE? OKAY. THE NEXT BUDGET BALANCING OPTION RELATES TO OUR MEASURE U-1. AGAIN, MEASURE U1 IS A GENERAL FUND TAX THAT IS ASSESSED ON CERTAIN BUSINESSES, AKIN TO A BUSINESS LICENSE, REALLY WITH THE INTENT TO HELP WITH ANTI DISPLACEMENT AND AFFORDABLE HOUSING PROJECTS. IN THE FISCAL YEAR '25-'26 BUDGET, $2.5 MILLION WAS ALLOCATED IN EACH FISCAL YEAR TOWARD THE SMALL SITE PROGRAM. I BELIEVE IN CONSULTING WITH OUR STAFF AT HHCS, THEY HAVEN'T QUITE SPENT ALL OF THE $2.5 MILLION IN FISCAL YEAR '25, I THINK ABOUT $1.4 MILLION. AND AGAIN, IN TERMS OF BALANCING FOR FISCAL YEAR '26, THE 2.5 MILLION FOR SMALL SITES COULD BE REALLOCATED. WE DO KNOW THAT WE HAVE A REQUIRED MATCH OF $2.5 MILLION FOR OUR STATE ENCAMPMENT RESOLUTION GRANT FUNDING. THE CITY WAS SUCCESSFUL IN RECEIVING A GRANT FROM THE STATE, WE HAVE USED THE GRANT FUNDS FOR THE FIRST TWO YEARS AND NOW WE HAVE A TWO-YEAR COMMITMENT. OR THE SMALL SITES COULD BE REALLOCATED TOWARD THE OVERALL GENERAL FUND

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DEFICIT. AGAIN, WE ARE AWARE THE U1 BUDGET ALSO FACES COMPETING DEMANDS AS WELL, AS AFFORDABLE HOUSING PROJECTS COME ONLINE. NEXT SLIDE, PLEASE. AGAIN, WHAT WE TRIED TO DO IS PRESENT A PACKAGE OF OPTIONS. AGAIN, RECOGNIZING THAT THESE ARE ONE-TIME IN NATURE AND NOT SUSTAINABLE FROM A FISCAL PERSPECTIVE FOR THE UPCOMING FISCAL YEARS. HOWEVER, AS WE ILLUSTRATED, WE ARE CLOSE INTO CLOSING THE DEFICIT. HOWEVER, THERE ARE OTHER CHALLENGES ON THE HORIZON. AGAIN, THE GENERAL FUND IS UNDER THE SCENARIOS, JUST BARELY BALANCED. WE DO KNOW THAT CONCERNS FROM FEDERAL AND STATE, THE STATE IS ALSO IN A BUDGET DEFICIT AS WELL. OUR PARKING FUNDS ARE STILL TRYING TO REBOUND FROM INDIVIDUALS NOT RETURNING TO OUR PARKING GARAGE, OR PARKING ON THE STREETS, OR MARINA FUND IS FACING FISCAL PRESSURES RELATED TO THE LOCAL ECONOMY. OUR CAMPS FUND IS STARTING TO REBOUND BUT ALSO IN A PLACE WHERE IT COULD EASILY SLIDE DOWNWARD AND OUR INTERNAL SERVICE FUNDS, WHICH AGAIN ARE CHARGED ACROSS VARIOUS CITY FUNDS INCLUDING THE GENERAL FUND ARE ALSO IN NEED OF SORT OF A FISCAL TRUE-UP AS WELL. AND THIS RELATES TO OUR BUILDING MAINTENANCE AND OUR VEHICLE EQUIPMENT AND FLEET. IN ADDITION, OUR DEFERRED MAINTENANCE NEEDS ARE GREAT, ABOUT $2.5 BILLION HAS BEEN IDENTIFIED THROUGH OUR CITY BUILDINGS, OUR FLEET, OUR TECHNOLOGY AND OF COURSE, AS THE COUNCIL IS WELL AWARE, OUR STREETS AND OUR ROAD PAVING. THERE'S A LOT WHAT'S GOING ON WITH FEDERAL AND

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STATE BUDGET AND HOW THESE THINGS IMPACT IN TERMS OF TARIFFS WHICH MAY IMPACT OUR REVENUES AS WELL AS OUR EXPENDITURES AS PRICES GO UP, STILL REMAIN TO BE DETERMINED. NEXT SLIDE, PLEASE. SO AGAIN, TODAY IS THE FIRST OPPORTUNITY TO PRESENT THIS PACKAGE OF OPTIONS TO COUNCIL. RECEIVE INPUT FROM THE COUNCIL RELATED TO THE STRATEGIES AND ENTERTAIN ANY QUESTIONS. I WILL CONTINUE TO WORK WITH THE BUDGET AND FINANCE POLICY COMMITTEE. IN FACT, THE NEXT MEETING IS IN TWO DAYS, WE WILL BE TALKING ABOUT THE POLICE AND FIRE OVERTIME IN PARTICULAR AND HOW THE OVERTIME RELATES TO VACANT POSITIONS AND THE RECOMMENDATIONS THAT WE HAVE PUT FORWARD. WE WILL ALSO BE TALKING ABOUT OUR MEASURE P AND OUR MEASURE U1 FORECAST AND PROGRAMMATIC NEEDS IN MORE DETAIL. WE HAVE ANOTHER BUDGET AND FINANCE POLICY COMMITTEE ON JUNE 12TH. WE WILL TALK ABOUT THE STATUS OF OUR PARKING METER FUNDS. LIKELY DISCUSS THE COUNCIL BUDGET REFERRALS AND CONTINUE OVERALL BUDGET DISCUSSION ABOUT OPTIONS TO BALANCE FOR FISCAL YEAR '26. ON JUNE 17TH, COUNCIL WILL RECEIVE SEVERAL REPORTS, FEES FOR SERVICES SOME WILL HELP THE GENERAL FUND, OTHERS WILL HELP OTHER CITYWIDE FUNDS AND WE WILL BE ASSESSING OUR TAX RATES FOR THE NEW FISCAL YEAR TO ADJUST BY THE INFLATIONARY INDEX. THIS WILL LEAD TO ADOPTION OF THE BUDGET ON JUNE 24TH AS WELL AS ADOPTION OF THE ANNUAL APPROPRIATION ORDINANCE FOR FISCAL YEAR '26. THAT DOES COMPLETE THE PRESENTATION. I KNOW CITY MANAGER, ASSISTANT CITY

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MANAGER, DEPUTY DIRECTOR OF FINANCE AND I ARE HERE TO ANSWER ANY QUESTIONS YOU MAY HAVE. THANK YOU FOR YOUR TIME AND ATTENTION.

>> MAYOR ISHII: THANK YOU. I JUST WANT TO START BY SAYING I KNOW THIS INCREDIBLY CHALLENGING TO WORK WITH AND PRESENT ON. I WANT TO SAY A THANK YOU TO YOUR OFFICES FOR ALL THE WORK YOU ARE DOING HERE. AND ALSO MAYBE LET US TAKE A LITTLE BREATH BECAUSE I KNOW THAT IS A LOT. I'M GOING TO START WITH, ACTUALLY, I JUST REALIZED, SINCE THIS IS A PUBLIC HEARING, WE SHOULD OPEN THE PUBLIC HEARING. MR. CITY CLERK, COULD YOU REMIND ME? DO WE NEED A MOTION TO OPEN THE PUBLIC HEARING? WE DON’T THANK YOU. WE HAVE OPENED THE PUBLIC HEARING. DO WE HAVE ANY QUESTIONS FROM THE COUNCIL FIRST. AND I SEE COUNCILMEMBER TAPLIN HAS HIS HAND RAISED AND KNOWING THAT MY PARLIAMENTARIAN ISN'T WORKING, GIVE ME A HAND WAVE IF YOU WANT TO SPEAK. COUNCILMEMBER TAPLIN, YOU CAN GO FIRST.

>> T. TAPLIN: THANK YOU, I HAVE SIX QUESTIONS, JUST SO EVERYONE KNOWS HOW MANY THERE ARE. THIS IS FOR THE TEAM HERE, AND THANKS, EVERYONE. CAN YOU SAY WHAT DEPARTMENTS REPRESENT, WHAT CITY DEPARTMENTS REPRESENT THE MOST SIGNIFICANT GROWTH IN COSTS ACROSS THE LAST SIX CYCLES CITYWIDE AND WITH RESPECT TO GENERAL FUND? LIKE IF THERE WERE THREE OR FOUR DEPARTMENTS THAT HAVE, ESPECIALLY GROWN IN COSTS IN THE LAST SIX CYCLES?

>> WE COULD, AS A STARTING PLACE PULL UP THE PRESENTATION AND

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SHOW THE ACTUALS.

>> T. TAPLIN: THAT WOULD BE GREAT, YEAH.

>> MAYBE START WITH THE GENERAL FUND WHICH IS MORE SALIENT.

>> T. TAPLIN: WE CAN JUST LOOK AT THAT ONE.

>> YOU CAN SEE THERE THE GROWTH ACROSS THE DEPARTMENTS FROM '22-'26. SO YOU CAN SORT OF READ ACROSS THE LINE THERE. AND AGAIN, WE HAVE THOSE LISTED FROM THE MAYOR ALL THE WAY DOWN TO FIRE AND EMERGENCY SERVICES, AGAIN NON-DEPARTMENTAL IS MORE OF A CATCH-ALL FOR PAYING OUR INSURANCE AND DEBT AND SOME OTHER THINGS.

>> T. TAPLIN: I'M SEEING HERE THAT --

>> AN OPPORTUNITY TO MULL THAT OVER A LITTLE BIT AND WE CAN ANSWER ANY ADDITIONAL QUESTIONS.

>> T. TAPLIN: I SEE A LOT OF IT IS DUE TO PERSONNEL COSTS. IT LOOKS LIKE WE'VE GOT SOME BIG JUMPS HERE, MAYOR AND COUNCIL, LOOKS LIKE THE PAB IS ALSO NEW, IT MAKES SENSE IT WOULD GROW SO QUICKLY. THANK YOU SO MUCH. I JUST, THAT CAUGHT MY ATTENTION, SO I APPRECIATE THE CHANCE TO SEE IT AGAIN. MY NEXT QUESTION IS FOR FISCAL YEAR '26 GENERAL FUND REVENUES, DO WE BREAK, FOR THE SECURE PROPERTY TAX DO WE BREAK THOSE DOWN BY RESIDENTIAL VERSUS COMMERCIAL PARCELS? I'M WONDERING IF THERE'S ANYTHING WE CAN GLEAN FROM LOOKING AT, ARE WE SEEING A LOT OF GROWTH, AND FROM OUR COMMERCIAL TAXES. I KNOW RESIDENTIAL TAXES ARE A BIG PART OF IT. I'M CURIOUS ABOUT THE COMMERCIAL SIDE.

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>> NO, THE COUNTY DO NOT BREAK IT DOWN IN TERMS OF COMMERCIAL OR RESIDENTIAL. BUT THEY GIVE US THE BACKUP FOR IT, SO WE CAN ACTUALLY LOOK AT IT AND SEE WHERE THE TREND LINES ARE GOING. THE TREND LINES ARE REALLY GOING, BECAUSE ONE, OUR ASSESSED VALUE, OUR A.V. HAS GONE UP TREMENDOUSLY BY OVER, I THINK, A HALF BILLION DOLLAR FROM LAST YEAR TO THIS YEAR. WE HAVE HAD TREMENDOUS GROWTH. PROPOSITION 13 SAYS THE MAXIMUM THE COUNTY CAN GROW IS 2%. BUT BECAUSE WE HAVE HUGE SALES AND PEOPLE ARE ALWAYS TRYING TO FIGURE OUT A WAY TO REASSESS THE VALUE OF THEIR HOMES, SO WHEN WE LOOK AT THE GROWTH RATE, WE HAVE HAD A TREMENDOUS GROWTH IN OUR A.V. IT'S BEEN LIKE ABOUT 4%, 5%, 6% ACROSS-THE-BOARD, ACROSS ALL PROPERTIES. 36, THANK YOU.

>> T. TAPLIN: THANK YOU. MY THIRD QUESTION, THE $12 MILLION FOR COMMUNITY AGENCY, DOES THIS REFLECT BOTH THE FORMAL GRANT PROCESSES, AS WELL AS THE COUNCIL DISCRETIONARY ACTIONS AND THE BUDGET REFERRALS THAT INDIVIDUAL OFFICES GIVE TO THE INDIVIDUAL ORGANIZATIONS?

>> THAT'S CORRECT, COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU, MY NEXT QUESTION, HAVE THE OTHER CHARTER OFFICES PRODUCED COST REDUCTIONS OR SAVINGS?

>> NO.

>> T. TAPLIN: THANK YOU. MY LAST TWO QUESTIONS ARE RELATIVELY SHORT. I CAN ASK THEM TOGETHER. AS I UNDERSTAND, U1 IS A GENERAL

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TAX, DOLLARS GO TO THE GENERAL FUND. BUT THEY HAVE BEEN TREATED AS A SPECIAL TAX WHERE THEY WERE BILLED AS A SPECIAL TAX? PEOPLE SEEM TO THINK THESE ARE DOLLARS THAT ARE ONLY USED FOR A SPECIFIC PURPOSE BUT THEY GO IN THE GENERAL FUND AND COULD BE USED TO RESOLVE PART OF THE DEFICIT, DID I ANSWER THAT CORRECTLY?

>> YES. GENERAL FUND IS THE GENERAL FUND. WE HAVE BEEN TRACKING IT SEPARATELY, NOT BECAUSE IT'S A SPECIAL FUND. WE ARE TRYING IT WITHIN THE GENERAL FUND. IT IS A GENERAL FUND. AND EVERYONE NEEDS TO UNDERSTAND THAT. THERE ARE RULES FOR HOW WE CAN SPEND GENERAL FUND AND HOW WE CAN SPEND SPECIAL FUND. WE HAVE NOT CO-MINGLED IT, IT IS STILL PART OF THE GENERAL FUND, WE ARE JUST DOING A LITTLE ACCOUNTING AND MAKING SURE WE ARE TRACKING IT SEPARATELY BUT IT ALL ROLLS UP IN THE GENERAL FUND. THAT'S THE RULES.

>> T. TAPLIN: THANK YOU. MY FINAL QUESTION FOR NOW, THE INTERNAL SERVICE FUNDS ARE ALSO IN DEFICIT?

>> COUNCILMEMBER TAPLIN, THEY ARE USING THEIR FUND BALANCE, SO MOVING FORWARD WE DEFINITELY WILL NEED TO RE-LOOK AT THE OPERATIONAL COMPONENT OF THE INTERNAL SERVICE FUNDS AS WELL AS THE METHODOLOGY OF HOW WE BILL FOR THE SERVICES ACROSS THE DEPARTMENTS.

>> T. TAPLIN: THANK YOU VERY MUCH. THOSE ARE MY QUESTIONS.

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>> MAYOR ISHII: OKAY, THANK YOU. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU, I HAVE A COUPLE QUESTIONS. DIRECTOR OYEKANMI, CAN YOU EXPLAIN WHY THE REVENUE WON'T BE AVAILABLE UNTIL '26 IF IT WENT INTO EFFECT '24.

>> MEASURE M IS THE VACANCY TAX?

>> C. LUNAPARRA: YES. THANKS.

>> THE VACANCY TAX ITSELF, NUMBER ONE, THE FINANCE DEPARTMENT DOESN'T HANDLE IT. THE RENT BOARD HANDLES IT. BECAUSE WE DON'T HAVE THE DATA TO COME UP WITH IT. WE ASK THE RENT BOARD TO COME UP WITH A PLAN IN ORDER TO BE ABLE TO IMPLEMENT IT. BUT THE TAX ITSELF SAYS YOU HAVE TO BE VACANT FOR ABOUT 90 DAYS, OVER A SIX-MONTH CYCLE. EVEN THOUGH IT PASSED A COUPLE YEARS AGO, IN ORDER FOR US TO GET TO THAT 90 DAYS, 90 DAYS, SIX MONTHS WE HAVE TO LOOK, IT TAKES A YEAR TO GET TO THAT DATA. NOW I THINK WE ARE ABOUT TO BILL FOR THE FIRST TIME THIS MONTH, AND SO WE HAVE, WE KNEW IT WASN'T GOING TO HAPPEN IN '25 BUT WE PUT THOSE REVENUES IN THE STREAM FOR '26-'27 GOING AHEAD. IT WAS BUDGETED AT $5 MILLION WHEN WE DID IT LAST YEAR. BUT RENT BOARD SAID BECAUSE, MAYBE THE LOW IS ALREADY WORKING BUT THEY SAID THERE'S ABOUT 125-150 VACANCIES NOT ON THE LIST. WE HAVE DOWN GRADED FROM $5 MILLION TO $3.5. THAT'S WHY.

>> C. LUNAPARRA: THANK YOU SO MUCH, I REALLY APPRECIATE THAT. MY NEXT QUESTION IS ABOUT DEFERRED PROJECTS AND IF THE PROJECT

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REFERRALS WE HAVE USED AS ONE-TIME RESOURCES STILL HAVE EARMARKED FUNDS FOR FUTURE FISCAL YEARS. IN OTHER WORDS WHAT HAPPENS WHEN PROJECTS ARE DEFERRED? WILL THEY HAVE MONEY ATTACHED TO THEM IN THE FUTURE? OR DO WE HAVE TO REALLOCATE IT IN LATER BUDGETS? JUST HOW IT WORKS.

>> COUNCILMEMBER LUNAPARRA, CORRECT. AS A BUDGET BALANCING STRATEGY, IDENTIFIED PROJECTS ARE DEFERRED THEN WHAT WOULD HAPPEN IS WHEN FUNDING BECAME AVAILABLE, SAY THROUGH THE ANNUAL APPROPRIATION ORDINANCE OR THE SECOND YEAR OF A BIENNIAL CYCLE, THOSE WOULD BE BROUGHT FORWARD TO REPRIORITIZE AND NOTE THEY WERE PRIORITIES THAT THE FUNDING WAS DEFERRED SO THERE WOULD BE AN OPPORTUNITY WITH THE CITY MANAGER RECOMMENDATION AND CONCURRENCE FROM THE COUNCIL TO ALLOCATE THE FUNDING. BACK TO THOSE PROJECTS.

>> C. LUNAPARRA: GREAT, THANK YOU SO MUCH. AND THANK YOU FOR THE PRESENTATION.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. THANK YOU TO OUR FINANCE STAFF AND OUR BUDGET STAFF FOR THE PRESENTATION. MS. FRIEDRICHSEN, YOUR LAST DAY IS TOMORROW, CORRECT? SO I WANT TO WISH YOU WELL AND THANK YOU FOR PUTTING THIS PRESENTATION TOGETHER AND DOING A LATE NIGHT, THE NIGHT BEFORE YOUR LAST DAY. WE APPRECIATE ALL OF YOUR EFFORT. SO I JUST WANT TO LEVEL SET

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WITH EVERYONE, ANYONE WHO IS UP WATCHING IN THE COMMUNITY. SO SLIDE #12, WHICH, UNFORTUNATELY, I DON'T THINK IT'S POSTED ONLINE. BUT MAYBE IT COULD BE POSTED LATER, OR IT MAY BE AVAILABLE IN THE BUDGET COMMITTEE. BUT I THINK IT SHOULD BE POSTED HERE SO PEOPLE CAN FIND IT. SO THAT'S WHERE WE SEE THE BOTTOM LINE STORY. SO IT SHOWS AN $18 MILLION DEFICIT, $18,678.282. IT'S ACTUALLY A $27 MILLION DEFICIT AND THERE'S A BUDGET SOLUTION BAKED INTO THAT NUMBER THAT'S MAKING IT APPEAR LESS WHICH IS THE ROUGHLY $9 MILLION OF HIRING FREEZE, BASICALLY. AND SO, I DID WANT TO STATE THAT. AND THEN, I KNOW COUNCILMEMBER TAPLIN WAS ASKING ABOUT CHARTER OFFICERS. SO I JUST WANTED TO CLARIFY. WHEN I READ THIS, IT DID LOOK LIKE THE CITY ATTORNEY'S OFFICE WAS GOING TO HOLD ONE POSITION VACANT. THAT'S A CHARTER OFFICER. SO THAT IS ONE THING THAT'S HAPPENING. BUT IN TERMS OF OUR PROCESS FOR THE DEPARTMENT OF POLICE ACCOUNTABILITY, CITY AUDITOR, MAYOR, AND COUNCIL, THOSE ARE THE OTHER THREE CHARTER OFFICES, CORRECT? DID WE NOT LOOK AT THAT AT ALL? THE EXERCISE OF DETERMINING WHICH VACANCIES COULD BE HELD OPEN? BECAUSE I KNOW WE DID THAT WITH ALL THE OTHER DEPARTMENTS UNDER THE CITY MANAGER. I WANT TO GET CLARITY, FOR THOSE THREE, DID WE NOT DO THAT? BECAUSE THEY ARE CHARTER OFFICES?

>> THAT'S CORRECT, COUNCILMEMBER. WE DIDN'T DO IT BECAUSE THEY ARE CHARTER OFFICERS THEY DON'T REPORT TO THE CITY MANAGER AND I

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DON'T HAVE THE AUTHORITY TO DO THAT EXERCISE WITH THEM.

>> R. KESARWANI: OKAY, I DID JUST WANT TO STATE THAT WE DO SEE THEIR VACANCIES, SO WE DO HAVE 3.0 F.T.E. VACANT WITH THE CITY AUDITOR, THERE WAS THE 2.0 CITY ATTORNEY AND WE DETERMINED ONE COULD BE HELD AND 2.0 VACANT IN THE OFFICE OF POLICE ACCOUNTABILITY, 1.0 VACANT FOR MAYOR AND COUNCIL. SO THAT, I'M NOT SAYING WE SHOULD DO THAT, BUT I THINK THAT WOULD BE UP TO THE COUNCIL TO REVIEW THOSE POSITIONS AND THOSE DEPARTMENTS TO DETERMINE IF THEY'RE, WHETHER IT'S APPROPRIATE TO DO A FREEZE, NOT AN ELIMINATION OF ANY POSITION, BUT A FREEZE. WHEN I LOOK AT SOME OF THOSE POSITIONS, AND THE DOLLARS ASSOCIATED WITH THEM, THERE COULD BE SOME POTENTIAL SAVINGS THERE. THE REASON I SAY THAT WE HAVE $4.1 MILLION, CORRECT, OF COUNCIL BUDGET REFERRALS? IF I READ THAT TABLE CORRECTLY. SO BACK TO PAGE 12, SLIDE 12. SO BOTTOM LINE, WHEN WE DO ALL OF OUR ONE-TIME BUDGET -- I WILL CALL THEM MANEUVERS. THESE ARE MANEUVERS, RIGHT? WORKERS COMP, PULLING FROM SECTION 115 TRUST, DOING IT TWICE. WE DID IT FOR THE ADOPTED BUDGET, WE WILL DO IT AGAIN, $3 MILLION, $3 MILLION. THESE ARE MANEUVERS, RIGHT? EVEN WHEN WE DO ALL THOSE BUDGET MANEUVERS WE END UP WITH A DEFICIT OF $126,000 WHICH COULD BE HIGHER, RIGHT? MR. CITY MANAGER. BECAUSE YOU ARE LOOKING AT OTHER SPECIAL FUNDS THAT MAY NEED A GENERAL FUND BACKFILL, IS THAT CORRECT?

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>> THAT'S CORRECT.

>> R. KESARWANI: WE MAY HAVE MORE OF A PROBLEM TO SOLVE THAN JUST THE $126,000. THAT'S WHY WE MAY HAVE TO, IT'S DOLLAR FOR DOLLAR WE HAVE TO BALANCE. THAT'S WHY I WAS ASKING THE QUESTION AROUND THE CHARTER OFFICERS. AND THEN THE OTHER THING, I KNOW WE HAD SOME DISCUSSION ABOUT THE SMALL SITES AT BUDGET, I APPRECIATE THE PUBLIC COMMENTERS. LET ME MOVE ONTO THAT TOPIC. DOES ANYBODY HAVE AVAILABLE, BECAUSE WE HAVE NOT HAD AN ANNUAL ALLOCATION FOR SMALL SITES HISTORICALLY. BUT THE LAST ADOPTED BUDGET PUT IN SIGNIFICANT RESOURCES. MY UNDERSTANDING IS WE DID $5 MILLION LAST YEAR BETWEEN THE HOUSING TRUST FUND AND U1, CORRECT?

>> THAT'S CORRECT, COUNCILMEMBER. $2.5 FROM EACH SOURCE.

>> R. KESARWANI: AND DID I HEAR YOU CORRECT, MS. FRIEDRICHSEN, YOU SAID SPEND SOMETHING LIKE IT'S 4 MILLION IN '24-'25, WERE YOU TALK ABOUT THE U1, $2.5 MILLION ALLOCATION?

>> WHAT WE UNDERSTAND IS OF THE $5 MILLION ALLOCATED, $1.4 MILLION IS UNSPENT.

>> R. KESARWANI: OKAY. AND THAT $1.4 IS FROM U1 OR HOUSING TRUST FUND?

>> I WOULD HAVE TO GO BACK TO GET THAT DETAIL.

>> R. KESARWANI: OKAY, IF IT'S FROM U1 IT HELPS SOLVE THE BUDGET PROBLEM, IF IT'S FROM THE HOUSING TRUST FUND WE CAN'T TAKE IT,

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CORRECT? BECAUSE IT'S SPECIAL FUND THEN?

>> IT WOULD BE HOUSING TRUST FUND MONEY SO THAT WOULD BE CORRECT.

>> R. KESARWANI: I THINK WE NEED THAT ANSWER FOR THE NEXT BUDGET COMMITTEE, $1.4 MILLION IS SIGNIFICANT, IF IT'S UNSPENT. AND I'M NOT SAYING THAT TO ATTACK SMALL SITES OR THE WORTHINESS OF IT, I'M GOING BY SLIDE 12 WHICH SHOWS WE CONTINUE TO HAVE A DEFICIT THAT WILL GROW ONCE WE GET THE FULL PICTURE. SO WE HAVE TO SOLVE IT. WE HAVE TO HAVE A BALANCED BUDGET. AND THERE'S TREMENDOUS SACRIFICE BEING MADE BY ALMOST ALL DEPARTMENTS IN TERMS OF FREEZING POSITIONS. SO THAT'S WHY I'M ASKING THESE QUESTIONS. AND THEN WITH THE -- WE NEED TO ASSUME THE $2.5 MILLION ALLOCATED TO SMALL SITES FROM U1 IN '25-'26 TO BALANCE THIS. TO GET TO ONLY $126,000 DEFICIT, CORRECT? OKAY. BUT I ALSO HEARD ON THAT SLIDE, WHICH IS IN THIS SLIDE DECK THAT, BECAUSE I ALSO HEAR, I'VE HEARD THE ARGUMENT THAT U1, THE BALLOT ARGUMENT TALKED ABOUT, HOMELESS HOUSING SUPPORTS. AFFORDABLE HOUSING. SO I AM CURIOUS IF WE CAN LOOK AT, CAN WE USE THAT $2.5 MILLION, WELL, WE CAN'T USE IT. WE HAVE TO BASICALLY NOT USE IT AND USE IT TO PLUG THE DEFICIT. OR YOU WERE SAYING, AGAIN THIS IS MENTAL GYMNASTICS BECAUSE EACH DOLLAR ISN'T LABELED THIS GOES FOR THIS AND THIS GOES FOR THAT, RIGHT? MY TIME IS UP. I DIDN'T KNOW WE WERE ON A TIME. I WOULD HAVE DONE IT DIFFERENTLY IF I KNEW. LET

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ME WRAP UP, THIS IS ALL I HAVE. BUT IF WE WANTED TO, WE COULD SAY, OKAY, WELL,

>> MAYOR ISHII: I WILL GIVE YOU A MINUTE AND A HALF.

>> R. KESARWANI: USE FOR ENCAMPMENT RESOLUTION MATCHING FUNDS. WE CAN DO THAT. WE CAN SAY OTHER MONIES WE HAVE ALLOCATED FROM MEASURE P FOR INSTANCE FOR ENCAMPMENT RESOLUTION WE COULD SAY IT'S COMING FROM THIS, BUT MEASURE P WE ALSO SAID WAS FOR HOMELESS SERVICES SO SOMETHING HAS TO GIVE IF WE BALANCE THIS. LOOK AT OUR MANEUVERS, THEY ARE PRETTY PAINFUL, ARE WE GOING TO PULL MORE FROM SECTION 115 TRUST, THAT'S SUPPOSED TO GO TO PENSION. WE ARE GOING TO DRAW DOWN MORE OF THAT $25 MILLION. THAT'S SUPPOSED TO BE OUR PIGGY BANK TO PAY THE OBLIGATIONS TO OUR WORKERS WE ALREADY DID IT FOR $3 MILLION LAST YEAR AND $3 MILLION AGAIN THIS YEAR. THOSE ARE THE TRADE-OFFS WE HAVE TO MAKE. FOR FOLKS TO ASK US TO CONTINUE DOING A SIGNIFICANT INVESTMENT FOR SMALL SITES, I HAVE TO ASK WHAT SHOULD WE DO? HOW SHOULD WE BALANCE THIS? THE FUNDS AREN'T THERE.

>> MAYOR ISHII: DO YOU WANT TO SAVE, SORRY, IF YOU HAVE OTHER COMMENTS DO YOU WANT TO SAVE THEM FOR LATER? WE ARE DOING QUESTIONS RIGHT NOW.

>> R. KESARWANI: OKAY, THAT'S ALL I HAVE, I THINK WE WILL COME BACK TO THE BUDGET COMMITTEE ON THE $1.4 MILLION ANSWER AND WE WILL LOOK AT THE POSITIONS IN THE CHARTER OFFICERS TO SEE IF

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THERE'S ANYTHING THERE. THANK YOU.

>> MAYOR ISHII: THANKS, I'M GOING TO GIVE YOU A MINUTE OF MY TIME. THAT'S OKAY, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. AND AGAIN, WE ARE DOING COMMENTS LATER SO JUST QUESTION TIME? THANK YOU, COUNCILMEMBER KESARWANI FOR ASKING SO MANY GOOD QUESTIONS, I HAVE ONE ADDITIONAL AND COMMENTS LATER. JUST TO CONFIRM AND THIS CAME UP IN THE BUDGET COMMITTEE, ON THE I.T. BUDGET ALLOCATION, YOU SAID IT ON THE SLIDE BUT IT'S IMPORTANT TO HIGHLIGHT, THEY CURRENTLY HAVE A SURPLUS IN THAT BUDGET, RIGHT? IN EFFECT, WE AREN'T MAKING A GENERAL FUND CONTRIBUTION TO THE I.T. DEPARTMENT AND THEY ARE SPENDING THAT SURPLUS IN THE COMING YEAR, RIGHT?

>> THAT'S RIGHT, COUNCILMEMBER.

>> B. BLACKABY: I HAVE COMMENTS LATER. THAT'S MY ONLY QUALIFYING QUESTION.

>> MAYOR ISHII: THANK YOU. OTHER QUESTIONS? COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU. AND SOME OF MY QUESTIONS HAVE BEEN ASKED. I DID NOTICE THERE WAS APPROXIMATELY $2 MILLION DELTA FOR MAYOR AND COUNCIL BETWEEN WHAT WAS BUDGETED AND THE AS-IS STATE. I'M CURIOUS IF YOU KNOW WHAT ACCOUNTS FOR THAT?

>> THE INCREASE IN '25-'26 WAS PRIMARILY MOVING THE LEGISLATIVE AIDS TO STEP 14 AND THEN THE ADDITIONAL INCREASE FROM THE FISCAL

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YEAR '26 ADOPTED TO THE FISCAL YEAR '26 UPDATE IS JUST THE LABOR AGREEMENT COLA AND ADJUSTMENTS.

>> I. TREGUB: SO, OKAY, BECAUSE I THOUGHT THE ADOPTED REFLECTED THE CHANGE, THE STEP INCREASES AND YOU KNOW, ALL THINGS THAT I SUPPORTED, THAT ALL OF US DID, ON THE COUNCIL. BUT I'M CURIOUS WHAT AMOUNTS TO THE $2 MILLION DIFFERENCE BETWEEN ADOPTED AND THE CURRENT STATE?

>> AGAIN, IT'S THE EQUIVALENT OF TWO FTE FOR THE LEGISLATIVE AIDS AND THEN AGAIN, THE ORIGINAL BUDGET INCLUDED THE STEP 14, HOWEVER, THE COLA'S AND OTHER ADJUSTMENTS DID NOT OCCUR UNTIL THE BUDGET, UNTIL THE M.O.U.'S WERE ADOPTED IN DECEMBER. SO NOW WE ARE SEEING THE DIFFERENTIAL IN THE INCREASE. BUT WE COULD LOOK AT THAT IN MORE DETAIL AND BRING BACK MORE INFORMATION TO THE BUDGET COMMITTEE AND COUNCIL OR THAT ITEM IN PARTICULAR.

>> I. TREGUB: I WOULD, I'M AN ALTERNATE MEMBER OF THE BUDGET COMMITTEE BUT I WOULD FIND THAT HELPFUL. GOING ALONG WITH QUESTIONS, I'M CURIOUS IF THE CITY HAS EVER DONE TWO YEAR PROJECTIONS? I KNOW THAT'S CHALLENGING, WE HAVE A LOT OF UNCERTAINTY, AS YOU SAID. I WOULD FIND MAYBE IT MIGHT BE HELPFUL FOR ME TO UNDERSTAND ARE WE IN FOR CONTINUED PAIN IN FY'27 AND THE LIKELIHOOD OF THAT, IF SO, THAT MIGHT INFLUENCE WHAT WE ULTIMATELY DO WITH FY26.

>> SO THANK YOU, COUNCILMEMBER. SO WE DO, DO MULTI-YEAR

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PROJECTIONS. ONE OF THE THINGS FINANCE DIRECTOR OYEKANMI PRESENTED IS LOOK AT REVENUES THROUGH FISCAL YEAR '29 OR '30. WHEN WE LOOK AT THAT REVENUE STREAM IN OUR EXPENDITURES WE CAN FORECAST OUT WHAT WE THINK THE FUTURE WILL LOOK LIKE, WE CAN SAY WITH CERTAINTY WE ARE FACING A STRUCTURAL DEFICIT IN OUR GENERAL FUND. WE DON'T HAVE THE PRECISE NUMBER BUT IT'S NORTH OF $20 MILLION AT THIS POINT IN TIME. PROBABLY HOVERING AROUND $22-$23 MILLION BUT THAT NEEDS TO BE REFINED FOR SURE. BUT YES, WE DO LOOK OUT OVER MULTIPLE YEARS AND THIS DEFICIT IS NOT ONE TIME IN NATURE, WE HAVE A STRUCTURAL DEFICIT IN OUR GENERAL FUND.

>> I. TREGUB: OKAY. I MAY HAVE SOME BRIEF COMMENTS LATER. BUT BROADLY, WHAT KIND OF STAKEHOLDER ANALYSIS OR OTHER POSSIBLE CREATIVE OPTIONS COULD BE CONTEMPLATED AROUND THINGS LIKE WORKING WITH THE COUNTY, IF THERE ARE DUE -- DUPLICATIVE SERVICES COULD POTENTIAL SAVINGS BE REALIZED? LOOKING AT JUST THE BRAIN TRUST AROUND BUDGETING OFFERED WITHIN THE U.C. ECOSYSTEM OR ELSEWHERE. ARE WE ENGAGING EXPERTS TO SEE WHAT COULD BE DONE AND HOW WE COULD WORK EFFECTIVELY AND COLLABORATIVELY AND EFFICIENTLY NOT IN A DOGE WAY WITH OUR NEIGHBORS TRYING TO DO MORE WITH LESS.

>> MANAGING THIS YEAR'S BUDGET GIVEN THE TIME CONSTRAINTS, THIS CAME TOGETHER IN A QUICK MANNER, KNOWING WE SEE THE FUTURE WITH A PROJECTED STRUCTURAL DEFICIT WHAT WE WOULD LIKE TO DO IS WORK

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COLLABORATIVELY ACROSS ALL THE DEPARTMENTS AND EVALUATE ANY AND ALL POTENTIAL REVENUE INCREASES WE COULD PROPOSE TO THE COUNCIL. WE WANT TO LOOK AT COST EFFICIENCIES WAYS WE CAN OPERATE MORE EFFICIENTLY AND LOOK AT HOW WE MIGHT RESTRUCTURE WITHIN THE ORGANIZATION ITSELF. IN THOSE BUCKETS THAT WILL INCLUDE SOME DEEP THINKING ABOUT HOW WE CAN OPERATE DIFFERENTLY, COLLABORATE WITH OUR PARTNERS. WHILE I CAN'T SAY WE HAVE THAT READY TO BRING TO THE TABLE TODAY THAT'S SOMETHING WE WANT TO KICKOFF AND DO AS PART OF THE NEXT BIENNIAL PROCESS.

>> MAYOR ISHII: OKAY, PER OUR RULES WE NEED TO OPEN PUBLIC HEARINGS BY 10:00 P.M. EVEN THOUGH I KNOW WE AREN'T DONE WITH THIS, I WANT TO OPEN THE PUBLIC HEARING FOR THE SAN PABLO AVENUE LANDMARK APPLICATION APPEAL. IS THIS EXPECTED TO KEEP PACE NEXT YEAR? SORRY, FOLKS, COULD YOU PLEASE KEEP YOUR VOLUME DOWN?

>> THE REVENUES THAT OUR FINANCE DIRECTOR FORECASTED SHOWS MEASURE P WILL BE BUDGETED $9.1 MILLION THE NEXT FOUR YEARS WE WILL HAVE TO THINK ABOUT MEASURE W, BUT IT'S PREMATURE TO GO DOWN THAT PATHWAY. MEASURE P, WE ARE REFINING THE COSTS ASSOCIATED WITH MEASURE P BUT DEFINITELY SPENDING MORE THAN REVENUE WE ARE BRINGING IN.

>> MAYOR ISHII: THANK YOU. I'M CURIOUS, THE CITY MANAGER, I KNOW YOU SAID WE ARE USING OUR GENERAL FUND TO BACK FILL SOME OF THE OTHER FUNDS. I'M WONDERING IF YOU CAN EXPLAIN WHY. I UNDERSTAND

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NO MATTER WHAT WE ARE CUTTING HERE WE WILL BE HURTING BUT I WANT TO MAKE SURE I UNDERSTAND.

>> THE MAIN ONE WE ARE PROPOSING THAT'S IN THE PRESENTATION IS TO USE THE GENERAL FUND TO BACKFILL THE MARINA FUND $1.2 MILLION DEFICIT. WE HAVE STAFF IN PARKS AND REC WHO ARE TIED DIRECTLY TO THE MARINA FUND AND IF THAT GOES INTO THE RED WE DON'T HAVE A LOT OF OPTIONS HOW WE RIGHT-SIZE THAT IF WE DON'T USE THE GENERAL FUND TO BACK FILL IT. I WOULD SAY DEPUTY CITY MANAGER WHITE SAID, I BELIEVE THE PARKING FUND IS ALSO NOT IN GREAT SHAPE, WE HAVEN'T DONE A DEEP DIVE SO WE AREN'T PREPARED TO GET INTO SPECIFICS BUT THAT WILL BE ANOTHER ONE WE HAVE TO LOOK AT FOR HOW WE ARE GOING TO TREAT IT.

>> MAYOR ISHII: OKAY, THANK YOU. APPRECIATE THAT, THAT'S REALLY HELPFUL. I WANT TO MAKE SURE FOLKS UNDERSTAND THAT TOO. THE LAST THING I WANT TO SAY, I WOULD LIKE TO ASK OUR CHARTER OFFICERS TO REVIEW THEIR FUNDS FOR VACANCIES. I KNOW YOU BROUGHT THAT UP, COUNCILMEMBER KESARWANI, BUT I WOULD LIKE TO MAKE THAT AN OFFICIAL ASK. SO THAT MEANS ALL OF US TOO. OKAY. OTHER QUESTIONS? I THINK WE CAN TAKE OUR PUBLIC COMMENT NOW. OKAY. SO LET'S MOVE ONTO PUBLIC COMMENT. GO AHEAD. I THINK THERE'S A BUNCH OF YOU ALL HERE, SO YOU WILL HAVE ONE MINUTE. YOU HAVE TWO MINUTES.

>> I'M STEVE BARTON, FORMER HOUSING DIRECTOR FOR THE CITY OF

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BERKELEY, CURRENTLY ON THE BOARD OF THE BAY AREA COMMUNITY LAND TRUST. I WAS THE ORGANIZER OF THE MEASURE U1 CAMPAIGN. BERKELEY HAS FOUR OF WHAT I WOULD CALL MORAL OBLIGATION TAXES, SODA, MEASURE U1, MEASURE P, MEASURE W. PROMISES HOW THE MONEY WOULD BE SPENT. SO JUST KEEP IN MIND, IF YOU TAKE THE MEASURE U1 MONEY FROM THE SMALL SITE PROGRAM FOR GENERAL DEFICIT REDUCTION YOU CAN NEVER GO TO THE VOTERS AND HONESTLY PROMISE THAT YOU ARE PUTTING FORWARD A MAJORITY VOTE TAX BUT HERE IS HOW THE MONEY WILL BE SPENT. BECAUSE THAT PROMISE WAS MADE AND YOU WILL BE VIOLATING IT. U1 WAS PLACED IN THE BALLOT IN 2016 BY A UNANIMOUS VOTE OF THE CITY COUNCIL. IT INCREASED THE BUSINESS LICENSE TAX, THE IDEA BEING TO RECAPTURE A SMALL PART OF THE EXCESSIVELY HIGH RENTS IN BERKELEY AND USE IT TO MITIGATE EFFECTS OF LOW INCOME TENANTS BY HELPING ACQUIRE AND REHAB BUILDINGS AS HABITABLE. BERKELEY VOTERS COULD NOT TRUST BERKELEY CITY COUNCIL TO ACTUALLY SPEND THE MONEY THE WAY THEY SAID THEY WOULD. LAURIE CAPITELLI AND JESSE ARREGUIN WERE RUNNING AGAINST EACH OTHER FOR MAYOR BUT THEY AGREED TO SERVE AND WORK TOGETHER ON THE U1 CAMPAIGN, REASSURING THE VOTERS WHOEVER THEY ELECTED WOULD FOLLOW THE PROMISES AND USE THE MONEY FOR AFFORDABLE HOUSING. BERKELEY'S LANDLORDS SPENT $1 MILLION AGAINST THE CAMPAIGN BUT WE GOT 75 PERCENT OF THE VOTE. $75,000. JUST KEEP IN MIND THAT'S THE SITUATION AND THAT'S --

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>> MAYOR ISHII: THIS PERSON IS GIVING YOU A MINUTE. DID YOU HAVE ANYTHING ELSE YOU WANTED TO SAY?

>> YES, I DO, ACTUALLY.

>> MAYOR ISHII: GO AHEAD, YOU HAVE 58 SECONDS.

>> THANK YOU, I APPRECIATE IT. SO ANOTHER THING TO KEEP IN MIND IS THAT U1 ALREADY CONTRIBUTES $2 MILLION A YEAR TO THE GENERAL FUND BECAUSE IT'S NOW USED TO PAY FOR THE SALARIES OF HOUSING STAFF. IT USED TO BE PAID FOR OUT OF OTHER GENERAL FUND MONEY. SO THE CITY HAS, YOU KNOW, BROADLY WITHIN THE SCOPE OF THE PROMISES MADE PULLED OUT $2 MILLION A YEAR AND IT'S INCREASING. SO AGAIN, U1 IS MAKING ITS CONTRIBUTION AND YOU JUST HEARD YOU HAVE A STRUCTURAL DEFICIT. IF YOU TAKE THE MONEY AWAY THIS YEAR, IS IT EVER GOING TO BE THERE AGAIN, OR ARE YOU JUST GOING TO WIPE OUT MEASURE U1 AND USE IT TO FILL THE STRUCTURAL DEFICIT YOU HAVE BEFORE YOU. PLEASE DON'T DO THAT. THANK YOU.

>> MAYOR ISHII: THANK YOU. FOLKS YOU COULD MOVE UP CLOSER, YOU DON'T HAVE TO BE SO FAR BACK.

>> HI, MEMBERS OF THE BERKELEY CITY COUNCIL, I'M ASON OF THE LAND TRUST, IN BERKELEY, THE OLDEST WE ARE HAPPY TO CALL BERKELEY HOME. I'M HERE TO ASK YOU TO MAINTAIN THE FUNDING FOR THE SMALL SITES PROGRAM. WE CURRENTLY HAVE A PIPELINE READY FOR ACQUISITION THAT'S GOING TO LEVERAGE STATE AND REGIONAL DOLLARS. WE ARE BUDGETING SMALL SITE PROGRAM FUNDING AS THE BASELINE TO

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BE ABLE TO MAKE THOSE ACQUISITIONS. WE WOULD REALLY, REALLY, REALLY BE IN A HORRIBLE TIGHT SPOT IF WE ARE UNABLE TO GET THAT FUNDING AND BE UNABLE TO PROTECT THE TENANTS IN THE BUILDINGS WE ARE CURRENTLY LOOKING AT. ALL THE BUILDINGS ARE LOW-INCOME BUILDINGS THAT HAVE MAJORITY BLACK AND BROWN RESIDENTS WHO ARE ALL AT RISK OF BEING DISPLACED. AND I JUST WANTED TO MAKE SURE YOU UNDERSTAND THAT'S THE DECISION YOU ARE MAKING.

>> MAYOR ISHII: THANK YOU. I'M SORRY, I'M VERY STRICT ON TIME. APPRECIATE IT. THANK YOU.

>> GOOD EVENING, COUNCILMEMBERS, I'M TRACY PARENT, DIRECTOR OF THE BAY AREA COMMUNITY LAND TRUST. I JUST WANT TO SAY SMALL SITES PROGRAM IS A VERY EFFICIENT AND EFFECTIVE PROGRAM IN BERKELEY. IT'S VERY UNIQUE ACROSS THE BAY AREA. WE ARE ABLE TO CLOSE ON THE SALE OF THESE EXISTING BUILDINGS WITH EXISTING BERKELEY RESIDENTS LIVING IN THEM IN JUST SIX MONTHS BRINGING THOSE UNITS INTO THE AFFORDABLE HOUSING PORTFOLIO. AFTER LAST YEAR'S BUDGET HEARING, THE COUNCIL SIZED THE $10 MILLION OVER TWO YEARS BASED ON AN EXISTING PIPELINE THAT BCLT AND ACBLT PUT TOGETHER. BY DECEMBER WE CLOSED THE SALE OF A BUILDING, TWO RESIDENTS ACTIVELY FACING EVICTION, THIS IS AN ANTI-DISPLACEMENT THING, IT'S FAST, WE NEED THE FUNDS, KEEP THE FUNDS. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI, I AM MARY MCDONALD, I'M THE VICE PRESIDENT OF THE BOARD

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FOR THE BAY AREA COMMUNITY LAND TRUST. I WILL BE A LITTLE MORE EMOTIONAL ON THIS ONE, YES WE ARE IN A HOUSING CRISIS AND WE HAVE BEEN FOR A LONG TIME. NOW IS NOT THE TIME TO PULL THE PLUG ON AFFORDABLE HOUSING. OUR COMMUNITY, I'VE BEEN HERE OVER THREE YEARS -- OVER 30 YEARS, THOUGH I'M NO LONGER IN THE BERKELEY COMMUNITY BECAUSE WHEN I WAS FORCED TO MOVE FROM MY HOME OF 30 YEARS, I HAD TO MOVE TO AN ADJACENT COMMUNITY BECAUSE THIS IS NO LONGER AFFORDABLE FOR ME. OUR COMMUNITY JUST CONTINUES TO BECOME BIFURCATED AND PULLING THAT FUNDING WILL JUST ACCELERATE THAT TREND. SO I REALLY DO ENCOURAGE YOU TO HONOR AFFORDABLE HOUSING MONTH. AND CONTINUE TO SUPPORT THE SMALL SITES PROGRAM. HELP US PRESERVE AFFORDABLE HOUSING FOR OUR MOST VULNERABLE RESIDENTS WHO HAVE NO OPTIONS TO BE RELOCATED.

>> MAYOR ISHII: THANK YOU.

>> THANKS.

>> MAYOR ISHII: THANK YOU FOR SHARING YOUR STORY.

>> GOOD EVENING, MY NAME IS CHRISTINA OATFIELD, I'M A MEMBER OF THE PLANNING COMMISSION, THOUGH I'M NOT HERE SPEAKING ON BEHALF OF THE COMMISSION TONIGHT. I'M JUST SPEAKING IN TERMS OF MY OWN OBSERVATIONS AND LEARNINGS, SERVING ON THE COMMISSION. I'M SURE AS YOU ARE ALL AWARE, WE ARE GETTING A LOT OF REFERRALS FROM CITY COUNCIL, AND A LOT OF MANDATES FROM THE STATE TO CHANGE A LOT OF POLICY TO PROMOTE MORE HOUSING IN BERKELEY, AS WE SHOULD,

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AND THAT'S JUST BEEN A BIG FOCUS OF WHAT WE TALK ABOUT. AND SOMETHING THAT I LEARNED FROM THE EXPERTS AND THE CONSULTANTS THAT THE CITY HAS HIRED TO ADVISE US IS EVEN PRODUCING MARKET-RATE AFFORDABLE HOUSING JUST OFTEN IS REALLY HARD TO PENCIL OUT, SO YOU CAN IMAGINE AFFORDABLE HOUSING IS EVEN MORE, IN JUST A DIRE SITUATION. SO I'M ASKING YOU TO KEEP THE FUNDING FOR THE SMALL SITES PROGRAM ALREADY WHAT WAS ALLOCATED AS WOEFULLY INADEQUATE BUT STILL SOMETHING AND WE SHOULDN'T ELIMINATE IT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, COUNCILMEMBERS, MY NAME IS INTI, I'M A SINGLE FATHER OF TWO AND PROUD RESIDENT OF 2627 CALIFORNIA STREET, AFFORDABLE HOUSING BUILDING SUPPORTED BY THE SMALL SITES PROGRAM. I'M HERE TO URGE YOU TO PLEASE DO NOT CUT FUNDING TO THIS PROGRAM. THANKS TO THE SMALL SITES AND ACBLT, MY NEIGHBORS AND I DIDN'T JUST KEEP OUR HOUSING WE BECAME ACTIVE STEWARDS, IN JUST SIX MONTHS MADE PROGRESS, ORGANIZING, BUILDING SELF-GOVERNANCE, AND CREATING STRONG CONNECTED COMMUNITY. THIS MODEL WORKS, IT KEEPS FAMILIES HOUSED, EMPOWERED RESIDENTS AND STRENGTHENS NEIGHBORHOODS. IT'S A WIN/WIN/WIN FOR SUITABLE, SAFE AND DIVERSE COMMUNITY. PLEASE CONTINUE TO INVEST IN WHAT'S WORKING. THANK YOU. I HAVE TEN SECONDS. THAT'S IT.

>> MAYOR ISHII: THANK YOU.

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>> I HAVE A MINUTE FROM DAVID IN THE BACK. IN THE LAST ROW ON THIS SIDE. THE $1.4 MILLION SHOULD NOT GO INTO THE GENERAL FUND. WE NEED HOUSING RETENTION MONIES. WE ARE TALKING ABOUT HOW BAD THE CITY WILL BE DOING. WE KNOW THERE ARE ALL THESE FUNDING CUTS, PEOPLE ARE LOSING JOBS. WE HAVE TO HAVE HOUSING RETENTION MONIES. WE DON'T HAVE IT IN MEASURE P; WE HAVE THE DEFICIT IN THE GENERAL FUND SO WE SHOULD BE LOOKING TOWARDS AT LEAST SUBSTANTIAL PART OF U1 FOR HOUSING RETENTION MONIES. WE NEED IT. IN TERMS OF, CAN WE PLEASE IDENTIFY WHERE THE COUNTY MEASURE W IS GOING? HOMELESS ALTERNATIVES, WHERE IS THIS MONEY GOING TO COME FROM? WE JUST TOOK A VOTE ON HOUSING HOMELESS ALTERNATIVE; WE HAVE TO IDENTIFY WHERE MONEY WILL BE SHIFTED AROUND. CAN STAFF LOOK AT OTHER SERVICES SUCH AS MENTAL HEALTH SERVICES THAT COULD BE SHIFTED TO THE COUNTY? IN ADDITION TO THE SEIU SHIFT. SO THE COUNTY CAN PICK UP SERVICES, THOSE THAT DON'T HAVE DIRECT CONTACT WITH THE CLIENTS THAT HAVE TO INTERACT LOCALLY. THE DISABILITY RIGHTS CALIFORNIA AND D.O.J. SETTLEMENT, THAT CASE, THE COUNTY IS RESPONSIBLE. IT INCLUDES BERKELEY FOR PROVIDING ALTERNATIVE MENTAL HEALTH SERVICES TO JOHN GEORGE. WHERE THE CONDITIONS WERE FOUND TO BE DEPLORABLE. THERE'S AN ONGOING COUNTY CONTRACT COURT MONITOR ON THAT INVOLVES ESSENTIALLY CRISIS AND PEER RESPITES BUT HOW CAN WE USE THAT IN BERKELEY SO THEY ARE PAYING FOR IT, THE COUNTY? POSSIBLY REVIEW THE

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COMMUNITY AGENCY FUNDING ALLOCATIONS TO MAKE SURE THAT ALL THOSE MONIES ARE BEING USED AS THEY WERE ALLOCATED, SO THAT THERE AREN'T VACANCIES OR SERVICES THAT AREN'T BEING PROVIDED. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MAYOR AND COUNCIL, MY NAME IS MATT GUSTAVSSON, MY FAMILY AND I ARE RESIDENTS IN DISTRICT 2, I ALSO WORK FOR THE BAY AREA COMMUNITY LAND TRUST. I'M HERE TO URGE YOU TO PRESERVE THE FUNDS ALLOCATED TO THE SMALL SITES PROGRAM THAT HAS A PROVEN TRACK RECORD OF PREVENTING DISPLACEMENT OF LOW-INCOME BERKELEY RESIDENTS. I WOULD LIKE TO THANK COUNCILMEMBERS TAPLIN AND BARTLETT FOR CHAMPIONING SMALL SITES ALONGSIDE COUNCILMEMBER HAHN LAST YEAR IN THE CURRENT BUDGET. THANKS TO YOU, TEN BERKELEY FAMILIES OVERCAME THE THREAT OF DISPLACEMENT AND -- I DO HAVE CONCERNS ABOUT THE FILLING VACANCIES, COUNCILMEMBER KESARWANI ACTUALLY CALLED A HIRING FREEZE. KNOWING THAT IN THE PAST NUMBER OF YEARS OUR TRANSPORTATION DEPARTMENT HAS BEEN UNDERSTAFFED, GETTING THROUGH THE PANDEMIC AND HAVING TO HIRE STAFF. WE HAVE JUST EMPOWERED FOUR RESIDENTS TO GET TO WORK AND MAKING OUR STREETS SAFER, I JUST HOPE THAT THEY DO HAVE THE STAFF THEY NEED TO GET THOSE PROJECTS COMPLETED. THANK YOU.

>> MY NAME IS JOHN HOLDER, I LIVE AT 1620 SAN PABLO AVENUE, BERKELEY, CALIFORNIA. I WOULD BE SURPRISED IF YOU ALL, SOME OF

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YOU DON'T KNOW WHO I AM AND WHAT I'VE BEEN GOING THROUGH. THIS IS MY DOG AKIO, WHILE I WAS AWAY TRYING TO TALK TO PETER RADU, HE WAS CLUBBED AND HIS SKULL WAS SHATTERED AND NO ONE HAS BEEN ABLE TO ADDRESS THIS, SEEMS WE ARE IN A WASTE LAND OF BUREAUCRACY.

>> MAYOR ISHII: SORRY, SPEAKING OF, ARE YOU SPEAKING ON SOMETHING THAT IS NOT ON THE AGENDA? ARE YOU SPEAKING TO THE BUDGET?

>> I'M SPEAKING TO OVERALL PROBLEM; YOU HAVE A SYSTEM THAT WORKS IN PLACE IN BERKELEY BUT THE PROVIDER IS NOT FOLLOWING THROUGH WITH IT. YOU CAN DO MIRACULOUS THINGS WITH THE SYSTEM YOU HAVE.

>> MAYOR ISHII: YES, I'M REALLY SORRY BUT I THINK YOU ARE SPEAKING TO AN ITEM THAT IS NOT ON OUR AGENDA.

>> I WAS TOLD I COULD WALK UP AND SPEAK TO THE COUNCIL.

>> MAYOR ISHII: I'M SO SORRY, I WILL ASK MAYBE IF MY STAFF WOULD BE WILLING TO SPEAK WITH YOU, IT LOOKS LIKE SOMEONE FROM COUNCILMEMBER LUNAPARRA'S STAFF.

>> IS THERE A TIME I CAN TALK TO THE COUNCIL ABOUT THIS?

>> MAYOR ISHII: MY STAFF WILL COME AND CHAT WITH YOU. SORRY, I KNOW YOU WERE JUST SAYING OUR BUREAUCRACY IS GETTING IN THE WAY AND HERE I AM TELLING YOU. YEAH. YES. HOW ABOUT OUR ONLINE COMMENTS?

>> CITY CLERK: WE CURRENTLY HAVE 12 HANDS RAISED. IF YOU WOULD

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LIKE TO COMMENT ON THE PROPOSED MID-BIENNIAL BUDGET UPDATE, PLEASE RAISE YOUR HAND. CURRENTLY HAVE 12 HANDS. SOPHIA DEWITT, YOU ARE FIRST.

>> GOOD EVENING, MADAM MAYOR AND COUNCIL, REVEREND SOPHIA DEWITT, PROGRAM OFFICER, EAST BAY HOUSING. I'M HERE TO ASK YOU TO PRESERVE MONEY FOR THE SMALL SITES PROGRAM IN THE BUDGET. AS WE ALL KNOW, WE ARE IN A HOUSING CRISIS IN BERKELEY AND IN THE REGION. THIS IS NOT A TIME TO PULL BACK ON THESE FUNDS. MEASURE U1 FUNDS WERE DESIGNED FOR EXACTLY THIS PURPOSE, IN TERMS OF PRESERVING AFFORDABLE HOUSING, HELPING PREVENT DISPLACEMENT AND THAT IS ALSO THE PROMISE THAT WAS MADE TO BERKELEY VOTERS IN 2016. AS STEVE BARTON HAS SAID, IF YOU BREAK FAITH WITH BERKELEY VOTERS YOU WILL NOT BE ABLE TO GET BERKELEY VOTERS TO SUPPORT OTHER AFFORDABLE HOUSING INITIATIVES IN THE FUTURE. THAT GOODWILL WILL BE GONE. WE ARE FACING A NATIONAL ROLL BACK OF HOUSING PROTECTIONS AT THE FEDERAL --

>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU FOR YOUR PUBLIC COMMENT.

>> CITY CLERK: NEXT IS PAULA, YOU SHOULD BE ABLE TO TALK.

>> HI, THANK YOU SO MUCH, GOOD EVENING, ESTEEMED COUNCILMEMBERS AND COMMUNITY MEMBERS AND HELLO, MAYOR ISHII. MY NAME IS PAULA SAENGHOI, 1685 SOLANO AVENUE IN BERKELEY. I AM HERE BECAUSE I CARE ABOUT KEEPING OUR COMMUNITY WHOLE AND I URGE TO CONTINUE

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FUNDING THE SMALL SITES PROGRAM AND LEGAL AID IN THE UPCOMING BUDGET. A LITTLE STORY, I AM ONE OF THE FAMILIES OF MINORITY THAT LIVES HERE WITH MY CHILDREN. I WOULDN'T BE ABLE TO AFFORD THIS HOME HAD IT NOT BEEN FOR THE BAY AREA COMMUNITY LAND TRUST. PROGRAMS LIKE THAT AND MONEY THAT COULD BE ALLOCATED TO THE SMALL SITES PROGRAM COULD HELP FAMILIES LIKE MYSELF NOT BE DISPLACED. BE ABLE TO WORK IN THE CITY WE LIVE IN, BE IN THE CITY AND TO BE IN THE SAME CITY. OVERALL IT'S A GREAT PROGRAM AND IT'S A GREAT ORGANIZATION, SO PLEASE KEEP HELPING OTHER PEOPLE LIKE OURSELVES THAT CAN DEFINITELY BENEFIT. AND THANK YOU.

>> MAYOR ISHII: THANK YOU SO MUCH. APPRECIATE YOUR COMMENT.

>> CITY CLERK: NEXT IS DUSTIN TRANBERG.

>> GOOD EVENING, COUNCILMEMBERS AND MAYOR ISHII. MY NAME IS DUSTIN TRANBERG A RESIDENT OF DISTRICT 3. I'M URGING YOU TO NOT CUT THE SMALL SITES PROGRAM. OUR AFFORDABLE HOUSING CRISIS IS ONGOING. AND THIS PROGRAM HELPS TO CREATE PERMANENTLY AFFORDABLE SELF-SUSTAINING HOUSING SOLUTIONS. IT'S AN INVESTMENT IN THE FUTURE OF THE CITY. IT'S ALREADY WORKING, AS YOU HEARD FROM CALIFORNIA STREET, THEY WERE AT RISK OF BEING DISPLACED BY REAL ESTATE INVESTORS AND NOW SELF-SUSTAINING CO-OP. SMALL SITES IS TRANSFORMATIVE AND COST EFFECTIVE. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU.

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>> CITY CLERK: NEXT JOSLYN ZORN. WHERE DID SHE GO? SHE DROPPED OFF. GEOFF LOMAX.

>> THANK YOU, GEOFF LOMAX, DISTRICT 5. BECAUSE THE -- WEREN'T POSTED TO COUNCILMEMBER KESARWANI'S POINT. LOOKS LIKE MEASURE FF REF ARE KNEW, IF THAT'S FF 2024, THERE'S WITH THAT ASSOCIATED SPEND RATE, I'M JUST CURIOUS DOES THAT ACCOUNT, BECAUSE YOU ARE SUPPOSED TO BE INCREASING SPENDING ON STREETS AND SIDEWALKS WITH THAT MEASURE. I'M JUST WONDERING IF YOU ARE ACCOUNTING FOR THE REVENUE BUT NOT THE BURN ON THAT ONE, SO PAY ATTENTION TO THAT. FINALLY, IN TERMS OF ENHANCED REVENUE, KEEP IN MIND WITH THE INFLATION AND ADJUSTERS BUILT INTO THE PARCEL TAXES RESIDENTS ARE GOING TO TAKE A HUGE HIT POTENTIALLY IF THE INFLATION PROJECTIONS THAT WERE FORECAST COME THROUGH. THAT WILL BE A TOUGH ONE ON RESIDENTS AND YOU ARE TAKING A LOT ALREADY FROM FOLKS WHO ARE MORTGAGE HOLDERS, SO KEEP AN EYE ON THAT ONE AS WELL. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS DANIEL BROWNSON.

>> HI. SO I'M LOOKING AT THE SLIDE THAT WAS PUT UP AND IT LOOKS LIKE THE SOLUTION IS KIND OF OBVIOUS. THE POLICE BUDGET IS TWICE AS MUCH ON THE FY26 UPDATE AS ANY OTHER THING IN THE BUDGET. CUT FROM THE POLICE BUDGET. DON'T CUT HOUSING. THEY'VE GOT PLENTY OF EXPENSIVE TOYS ALREADY TO TICKET SCHOOL DISTRICT MAINTENANCE

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VANS WITH, WHICH THEY DO.

>> CITY CLERK: NEXT IS URBAN HABITAT.

>> GOOD EVENING, MAYOR, AND COUNCILMEMBERS. I'M ELLEN WU, EXECUTIVE DIRECTOR AT URBAN HABITAT A REGIONAL ADVOCACY ORGANIZATION FIGHTING FOR PERMANENTLY AFFORDABLE HOUSING. WE ARE OPPOSED TO ANY EFFORT TO CUT FUNDING FROM SMALL SITES OR TENANT LEGAL AID SERVICES. BERKELEY ESTABLISHED ITSELF AS A REGIONAL LEADER IN-HOUSING PRESERVATION AND ANTI DISPLACEMENT PROGRAMS. TWO CRITICAL STRATEGIES TO ADDRESS HOMELESSNESS UPSTREAM BY PREVENTING IT IN THE FIRST PLACE. ONLY A HANDFUL OF CITIES IN THE REGION HAVE SUCH A PROGRAM. SMALT SITES PROGRAM HAS PROVEN TO BE A FAST AND COST EFFECTIVE WAY TO CREATE MORE AFFORDABLE HOUSING IN THE CITY BY SUPPORTING LOCAL LAND TRUSTS AND AFFORDABLE HOUSING PROVIDERS TO PURCHASE EXISTING BUILDINGS. FOR EXAMPLE, LAST YEAR THE BAY AREA COMMUNITY LAND TRUST WAS ABLE TO LEVERAGE $3.6 MILLION FROM THE PROGRAM TO OBTAIN ADDITIONAL FUNDING FROM BAFA AND PURCHASE A 12-UNIT BUILDING PER COST OF $400,000 --

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. YOUR MINUTE HAS PASSED. THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS RICK LEWIS.

>> MAYOR ISHII: SORRY, CAN YOU TELL ME HOW MANY FOLKS ARE LEFT, I'M TRYING TO DECIDE WHEN WE SHOULD TAKE A BREAK.

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>> CITY CLERK: SIX.

>> MY NAME IS RICK LEWIS; I WORK WITH THE BAY AREA COMMUNITY LAND TRUST. I'M SPEAKING IN FAVOR OF KEEPING THE $2.5 MILLION IN THE SMALL SITES PROGRAM. THERE'S BEEN MANY IMPORTANT ISSUES RAISED; I WANT TO EMPHASIZE A FEW. TO FOLLOW-UP ON THE PREVIOUS SPEAKER, THE SFP PROGRAM IS AN EFFECTIVE USE OF CITY FUNDS. FOR LESS, WE CAN PRESERVE HOUSING FOR LESS THAN ONE HALF THE COST OF NEW CONSTRUCTION. AND PRESERVE SMALLER MULTI-FAMILY BUILDINGS. THE ELIMINATION OF THESE FUNDS WILL REDUCE ONE PROJECT IN THE COMING YEAR. YOU HAVE HEARD A LOT ABOUT OUR CURRENT PROJECTS. WE NOT ONLY PRESERVE AFFORDABLE HOUSING BUT WE PRESERVE COMMUNITY OF RESIDENTS WHO DO NOT HAVE TO MOVE OUT OF BERKELEY. ONE FINAL THING, CALIFORNIA STREET WE HAVE LEVERAGED OVER $200,000 OF FUNDS THAT WILL INCLUDE --

>> MAYOR ISHII: EXCUSE ME, I'M SO SORRY. YOUR TIME IS UP, I KNOW IT COULD BE HARD WHEN YOU ARE ON TIME. I'M A STICKLER FOR TIME, SO FOLKS ONLINE PLEASE KNOW I WILL CUT YOU OFF AT A MINUTE.

>> CITY CLERK: KATHRYN DAY IS NEXT.

>> I LIVE IN DISTRICT 8 AND I'M HERE ALSO TO EXPRESS MY CONCERNS ABOUT THE PROPOSED 50% CUT TO THE SMALL SITES PROGRAM. IT HAS A PROVEN TRACK RECORD IN SECURING PEOPLE'S HOMES IN THEIR OWN COMMUNITIES AT HALF THE COST OF NEW CONSTRUCTION. AND SO THE SAVINGS TO THE AFFORDABLE MOVEMENT COULD BE MEASURED AS

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SIGNIFICANT AS ABOUT $400,000 PER UNIT. IT ALSO SUPPORTS LIMITED EQUITY MODEL WHICH ALLOWS RENTERS TO OWN THEIR APARTMENTS AND GET A FOOT HOLD ON THE HOUSING LADDER TO PASS THIS OPPORTUNITY TO OTHERS OVER TIME. AND SO THE ECONOMIC AND SOCIAL BENEFITS STAYING PUT BUILDING INTERGENERATIONAL WEALTH ARE IMMEASURABLE, BUT THE SAVINGS TO THE CITY ARE SIGNIFICANT ALSO AT ABOUT $400,000 PER UNIT. AND SO IT'S A PROVEN STRATEGY, IT'S TIME-SENSITIVE AND NEEDS TO BE TAKEN SERIOUSLY.

>> MAYOR ISHII: THANK YOU VERY MUCH.

>> CITY CLERK: NEXT IS DAVID SHERE.

>> HI, SO TOUGH SITUATION. I'M [OFF MIC] TOUGH SITUATION, I'M SUPER UNCOMFORTABLE SEEING SOME OF THESE ONE-OFF BUDGET FIXES, WORKMAN'S COMP, IT SEEMS IRRESPONSIBLE WHEN WE ARE LOOKING AT A STRUCTURAL AND NOT CYCLICAL DEFICIT AND WE DON'T KNOW WHAT IS COMING DOWN FROM WASHINGTON. I THINK WE WILL BE BETTER OFF IF WE START ADDRESSING THE STRUCTURAL DEFICIT THIS YEAR AND NOT NEXT YEAR. THAT SAID, I DO THINK WE SHOULD USE THE U1 MONEY AS PROMISED AT THE BALLOT. WE HAVE TO KEEP THESE KINDS OF PROMISES WHEN THEY ARE MADE. AS FOR THE $1.4 MILLION FROM LAST YEAR SMALL SITES FUND, THE STAFF WAS PLANNING TO COME TO ASK FOR $500,000 TO BACKFILL SOME OF WHAT NONPROFIT DEVELOPER SPENT ON A BUILDING, THEY ARE DEEP IN THE HOLE, SO JUST SOMETHING TO KEEP IN MIND.

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>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS BLAIR BEEKMAN.

>> HI, BLAIR BEEKMAN. I WANTED TO TALK ABOUT, IF IT WAS POSSIBLE THE IDEA ABOUT TINY HOMES IN THE BUDGET ISSUES. IT'S POSSIBLE, I'M INTERESTED IN HOW THAT THE CITY, I DON'T MEAN, I WANT TO BE POLITE IN THIS KIND OF AWKWARD SITUATION AND GENTLE. THE CITY OF SAN JOSE, IN ALL THE GOOD WORK OAKLAND HAS DONE WITH THEIR FIRST TINY HOME PROJECT. THE CITY OF SAN JOSE NOTICED THE TINY HOME BUILDINGS WERE A BIT UNSOUND AND UNHEALTHY SO THEY DEVELOPED A DIFFERENT STYLE OF TINY HOMES IN SAN JOSE. I HOPE IN THIS GOOD PRACTICE YOU ARE DOING OF TINY HOMES FOR BERKELEY YOU ARE BETTER DEVELOPING AND ITS HEALTH ASPECTS FOR ITS COMMUNITY AND RESIDENTS. I WANT TO MENTION THAT AND I'M IMPRESSED HOW YOU TALK ABOUT YOUR BUDGET ISSUES HERE IN BERKELEY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS NINA WILSON. WILHELMENIA.

>> GOOD EVENING, COUNCILMEMBERS, I HAVE BEEN LISTENING AS YOU TALK ABOUT THE BUDGET ISSUES. I'M THE EXECUTIVE DIRECTOR FOR HEALTHY BLACK FAMILIES IN THE ADELINE CORRIDOR. WE ARE SPEARHEADING INITIATIVE BORNE OF THE MAYOR'S OFFICE FORMER ADMINISTRATION, EQUITY FOR BLACK BERKELEY. WE COALESCE DATA FROM SOME OF THE MOST VULNERABLE BLACK AND BROWN FAMILIES IN THE COMMUNITY. HOUSING IS THEIR FIRST PRIORITY. HOUSING IS THEIR

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FIRST PRIORITY. STABLE HOUSING MEANS LIFE AND DEATH FOR MANY IN OUR COMMUNITY. I ENCOURAGE YOU TO HOLD TRUE TO THE SOCIAL CONTRACT. WE HAVE TO BE ABLE TO TRUST THAT YOU WILL DO WHAT YOU SAY YOU ARE GOING TO DO, AND SPENDING THIS MONEY AS YOU AGREED IS THAT. AND THAT'S ALL IT IS, HAVING THE MORAL COURAGE TO DO JUST THAT. WE HAVE A WHOLE -- IS THAT IT?

>> MAYOR ISHII: YEP, SORRY, THAT'S A MINUTE. I APPRECIATE YOUR COMMENT.

>> CITY CLERK: NEXT IS JOCELYN ZORN.

>> MY NAME IS JOCELYN ZORN. I'M CALLING TO ADVOCATE FOR THE SMALL SITES PROGRAM. THERE'S NO REASON WE SHOULD CUT AFFORDABLE HOUSING FUNDING DURING A HOUSING CRISIS. I'M A BACLT RESIDENT AND AFFORDABLE HOUSING, I LIVE WITH MY PARTNER, OUR 10 MONTH OLD BABY AND TOGETHER WE LIVE $70K ANNUALLY. THESE ARE EXPERIENCES THAT NO ONE SHOULD HAVE TO SACRIFICE FOR RENT. WE HAVE NEIGHBORS LIVING IN BACLT PROPERTIES THAT HAVE DEMENTIA AND HAVE FALLEN SHORT ON MONTHS OF RENT, THE BACLT HAS BEEN COMPASSIONATE AND PATIENT CONNECTING WITH FAMILY MEMBERS AND SOCIAL WORKERS TO FIND A WAY TO HELP THEM ALONG. SO I THINK THIS IS JUST THE TYPE OF ORGANIZATIONS WE SHOULD BE INVESTING IN AS A CITY. LET BERKELEY BE THE PROGRESSIVE CITY IT WANTS TO BE AND INVEST IN COMPASSIONATE ORGANIZATIONS, THANK YOU.

>> MAYOR ISHII: THANK YOU.

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>> CITY CLERK: OKAY, NEXT IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> THANK YOU. YEAH, SMALL SITES, YOU SHOULD INVEST IN THAT, IF YOU REALLY CARE ABOUT HELPING YOUR COMMUNITY, YOUR RESIDENTS IN THE CITY OF BERKELEY, YOU SHOULD FUND THOSE THINGS. AND YOU CAN TAKE A BUNCH OF MONEY FROM THE POLICE BUDGETS. THEY ARE OVERSPENDING ON OVER TIME. I SEE FOLKS JUST STANDING AROUND, THEY COULD BE DOING SOMETHING ELSE. IT'S INTERESTING HOW MANY POLICE CARS COME TO ONE INCIDENT. AND THEN THEY HANG OUT ON FOURTH STREET. THEY ARE NOT REALLY NECESSARILY NEEDED THERE. IT'S JUST INTERESTING, THE OVER TIME. YOU SHOULD LOOK AT AREAS LIKE THAT AND SEE WHAT YOU CAN CUT FROM THAT BUDGET. YOU SHOULD ALSO STOP THE SWEEPS ON THE UNHOUSED, TRY TO FIND SOLUTIONS, SMALL SITES WOULD BE ONE OF THEM.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> CITY CLERK: THAT'S IT FOR ONLINE PUBLIC COMMENTERS.

>> MAYOR ISHII: OKAY, I JUST WANT TO CHECK ON THE COUNCIL. WE HAVE BEEN SITTING FOR A LONG TIME. DO WE WANT TO TAKE A BREAK BEFORE OR JUST FINISH THIS UP? OH. WE ARE OKAY. QUORUM-WISE. OKAY, SO YES. LET ME JUST, I THINK WE NEED TO CLOSE THE PUBLIC HEARING SO WE CAN TAKE PUBLIC COMMENT. I WILL ENTERTAIN A MOTION TO CLOSE THE PUBLIC HEARING.

>> I. TREGUB: SO MOVED.

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>> C. LUNAPARRA: I STILL HAVE A QUESTION FOR STAFF, IS THAT OKAY?

>> MAYOR ISHII: PLEASE ASK THAT FIRST.

>> C. LUNAPARRA: SORRY, I HAVE ANOTHER QUESTION. I'M TRYING TO UNDERSTAND THE NUMBERS HERE BETWEEN FY '26 AND ADOPTED AND UPDATED IN TERMS OF THE POLICE DEPARTMENT. IT'S ABOUT A $12 MILLION INCREASE, IS THAT MOSTLY OVERTIME. I'M WONDERING WHY IT'S SUCH A LARGE INCREASE, COMPARED TO FIRE ESPECIALLY.

>> FORGIVE ME IF THIS IS COMPLICATED, JUST FORCE ME TO EXPLAIN IT A COUPLE TIMES, THERE WERE A COUPLE ADJUSTMENTS THAT WERE IMPLEMENTED.

>> MAYOR ISHII: DAVE, JUST MOVE CLOSER TO THE MIC.

>> IT'S A LITTLE COMPLICATED SO JUST KEEP ASKING ME QUESTIONS SO I CAN GET IT, ALL OF US ON THE SAME PAGE. BETWEEN ADOPTED AND UPDATE, THEY AREN'T ENTIRELY APPLES-TO-APPLES COMPARISONS. WHEN YOU LOOK AT THE UPDATE NUMBER WE HAVE TO UNDERSTAND A FEW THINGS IMPLEMENTED. YOU HAVE THE CONTRACTS THAT WERE ADOPTED BY COUNCIL WERE BROUGHT INTO THE UPDATE NUMBERS. YOU ALSO HAVE IN THE FISCAL YEAR '26 ADOPTED BUDGET WE ASSUMED 8% VACANCY SAVINGS RATE, WHEREAS '26 UPDATE ASSUMES THE DEPARTMENT IS HOLDING 13-14 POSITIONS VACANT AND THERE'S NO VACANCY SAVINGS BUILT INTO IT, BECAUSE THAT NUMBER REPRESENTS WHAT THEY CAN HOLD VACANT AND STILL MEET THEIR OPERATIONAL REQUIREMENTS. SO IT'S NOT QUITE

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THAT EXPLAINS IT, BASICALLY, THE COST OF LABOR. AND THEN YOU ALSO HAVE POSITIONS THAT ARE HELD VACANT AND NO VACANCY SAVINGS.

>> C. LUNAPARRA: CAN YOU EXPLAIN AGAIN WHY THERE AREN'T VACANCY SAVINGS?

>> SORRY, TO HELP CLARIFY TOO. WHEN WE TALK ABOUT SAVINGS, TWOFOLD. SOMETIMES A SALARY SAVINGS TARGET, A PERCENTAGE OF THE OVERALL PAYROLL. AS THE DEPUTY CITY MANAGER MENTIONED IN FY '26 ADOPTED MOST DEPARTMENTS HAD 8-9% ASSUMED SALARY SAVINGS TARGET. BASED ON THEIR PAYROLL. WHEN WE REMODELED FOR THE UPDATE, PER THE RECOMMENDATIONS THAT WE ILLUSTRATED, WE ACTUALLY IDENTIFIED POSITIONS AND ATTRIBUTED THE SAVINGS FOR THOSE POSITIONS AND THEN WE PUT A 0% SALARY SAVINGS TARGET ON THE PAYROLL. INSTEAD OF TAKING ACROSS-THE-BOARD, HERE IS AN 8 PERCENT REDUCTION, WE MORE SYSTEMATICALLY LOOKED AT THE ACTUAL VACANT POSITIONS, IDENTIFIED WHICH COULD BE KEPT VACANT AND MODELED THE SAVINGS FROM THE VACANT POSITIONS. SO THERE IS STILL VACANCIES ASSUMED IN BOTH MODELS, JUST NOT TO THE SAME EXTENT. WE DEFINITELY REDUCED THE EXPECTATION DOWN FOR '26 BASED ON WHAT WE WERE SEEING WITH THE COST OF OVERTIME IN '25. THAT'S A FACTOR AND A BIG DRIVER. MORE GLOBALLY, FOR '26, FOR THE GENERAL FUND, SALARY SAVINGS WAS ABOUT $15 MILLION INITIALLY. WHEN WE RE-BUDGETED WE BROUGHT IT DOWN TO 7 AND AGAIN WE REWORKED IT TO GET TO THAT $9 MILLION FIGURE. I KNOW IT'S A NUANCED CONCEPT BUT THAT'S IT.

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ALSO THE CONTINUED IMPACT OF THE COLAS AND ADD PAYS AND MODELING THOSE OUT. WE ARE HAPPY TO TRY TO CLARIFY OR GO THROUGH THAT AGAIN TO MAKE IT A LITTLE CLEARER.

>> C. LUNAPARRA: THAT'S REALLY HELPFUL. THANK YOU. DURING THE HIRING FREEZE, WITH THE SALARY SAVINGS, ARE WE STILL SPENDING ON RECRUITMENT EFFORTS OR THAT CHUNK OF MONEY IN RECRUITMENT EFFORTS, WHERE IS THAT GOING?

>> YES, WE ARE STILL SPENDING MONEY ON RECRUITMENT EFFORTS AND THERE WILL BE AN ITEM COMING TO COUNCIL SOON ON THAT. AS THE CITY MANAGER EXPLAINED IT'S REALLY IMPORTANT WE KEEP THE HIRING GOING AND KEEP THAT MACHINE GOING FORWARD, ONCE IT STOPS IT HAS VERY PROFOUND IMPACTS ON THE DEPARTMENT'S ABILITY TO FILL THEIR VACANT POSITIONS. THAT RECRUITMENT AND HIRING WILL CONTINUE.

>> C. LUNAPARRA: THANK YOU.

>> MAYOR ISHII: THANK YOU. OKAY, SO THERE'S A MOTION, BUT THERE WAS NO SECOND TO CLOSE THE PUBLIC HEARING.

>> SECOND.

>> MAYOR ISHII: SECOND FROM COUNCILMEMBER BLACKABY. I WILL ASK THE CLERK TO TAKE ROLL TO CLOSE THE PUBLIC HEARING, PLEASE.

>> CITY CLERK: KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

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>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES. OKAY, SO THERE IS TIME FOR COMMENTS. DO YOU FOLKS HAVE COMMENTS? COUNCILMEMBER BLACKABY?

>> B. BLACKABY: VERY BRIEF COMMENT, THANK YOU TO THE STAFF FOR BRINGING THIS ALL TO US. I WANT TO SAY I LOOK FORWARD TO WORKING WITH YOU, I'M FORTUNATE TO ASK MY QUESTIONS IN COMMITTEE AND LOOK FORWARD TO THE BUDGET COMMITTEE ISSUE, REALLY DIGGING MORE INTO THE POLICE AND FIRE OVERTIME BECAUSE THOSE ARE BIG DOLLARS AND BIG OPPORTUNITIES THERE. I THINK WE ARE SOMEWHAT FORTUNATE THAT PREVIOUS COUNCILS AND PREVIOUS CITY LEADERSHIPS HAVE OVER INVESTED IN A SENSE, WE HAVE THE SECTION 115 TRUST, RIGHT? WE HAVE AN I.T. BUDGET WE HAVE ACTIVELY INVESTED IN THAT BUDGET. WE DO HAVE SOME PLACES TO TURN IN THE SHORT-TERM AND WE ARE

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FORTUNATE. BECAUSE IF WE DIDN'T HAVE THOSE THINGS THE DECISIONS WE WOULD BE FACED WITH WOULD BE EVEN MORE DIRE. IN A SENSE WE ARE LUCKY TO BE IN THE POSITION WE ARE IN, WE KNOW WE CAN'T SUSTAIN IT, WE ARE LUCKY TO HAVE ONE MORE YEAR TO DO THAT. LONG TERM, I AM THINKING AHEAD, I KNOW THE CITY MANAGER HAS BEEN THINKING ABOUT IT AS WELL, I DON'T THINK WE CAN CUT OUR WAY OUT OF THIS IN THE LONG TERM, I THINK GROWTH WILL BE KEY TO OUR SUCCESS OVER TIME. A LOT OF WHAT WE ARE DOING IS LOOKING AT THE COST SIDE. WE NEED TO LOOK AT REVENUE SIDE, I DON'T MEAN NEW TAXES AND FEES EXCLUSIVELY. THIS IS WHERE WE WILL BEAR FRUIT WHERE WE ARE MORE SUPPORTIVE AND NURTURING OF THE BUSINESS CLIMATE IN BERKELEY, INVESTING IN DOWNTOWN, SUPPORTING SMALL BUSINESS. JUST TO GROW THE TAX BASE, RIGHT? ARE BUSINESSES COMING HERE? ARE THEY INVESTING HERE? MORE COLLABORATION AND COOPERATION WITH U.C. BERKELEY SUPPORTING THE INNOVATION ECOSYSTEM AND START UP CLUSTER, A BIG GOAL OF THE MAYOR AND MINE AND OTHERS HERE. AND SEEKING MORE OF THE DEVELOPMENT PROJECTS KIND OF ON HOLD FOR THOSE THINGS TO COME ONLINE. ALL OF THOSE THINGS ARE REVENUE GENERATORS FOR THE CITY AND WILL MAKE A LOT OF DECISIONS WE HAVE TO MAKE TWO, THREE, FOUR YEARS FL NOW EASIER IF WE DO OUR WORK NOW TO SUPPORT THOSE EFFORTS. LASTLY, ON THE I.T. SIDE, THIS I KNOW IS SOMETHING COUNCILMEMBER O'KEEFE CARES ABOUT AS WELL, I THINK INVESTMENT IN THE I.T. BUDGET OVER

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TIME IS ALSO GOING TO BE REALLY HELPFUL. BECAUSE WE KNOW WE NEED TO GAIN MORE EFFICIENCY IN TERMS OF HOW WE DELIVER OUR SERVICES. WE WILL NEED TO STREAMLINE OPERATIONS, MORE AUTOMATION, LESS PAPER AND I.T. IS CRITICAL TO GET THOSE COST SAVINGS. WE AREN'T GOING TO REALIZE THEM RIGHT NOW BUT WE NEED TO MAKE INVEST MS IN OUT YEARS. I LOOK FORWARD TO CONTINUING THE CONVERSATION. THANK YOU FOR YOUR WORK TONIGHT AND LOOK FORWARD TO THE NEXT ONE, THANK YOU.

>> MAYOR ISHII: THANK YOU, YOU STILL HAVE TWO MINUTES LEFT. WHILE YOU HAVE THAT TWO MINUTES I WANT TO SAY, OBVIOUSLY WE TALKED ABOUT WE ARE IN A $20-ISH MILLION DEFICIT AND WE HAVE ABOUT $4 MILLION IN COUNCIL REFERRALS WHICH RE AREN'T GOING TO BE ABLE TO COVER EVERYTHING. WHILE YOU HAVE YOUR TIME SINCE WE ARE HERE IN PUBLIC, WOULD LOVE TO HEAR IF THERE ARE CERTAIN THINGS YOU WANT TO PRIORITIZE IF YOU CAN SHARE THAT NOW, IF YOU HAVE THINGS LATER YOU WANT TO SHARE, PLEASE SHARE THEM WITH PAUL. I WANT TO MAKE SURE AS WE ARE THINKING OF THE BUDGET THAT WE ALL HAVE A GOOD UNDERSTANDING WHAT PEOPLE'S PRIORITIES ARE, I KNOW DURING OUR COUNCIL RETREAT WE DISCUSSED THESE AS WELL. I WANT TO SAY THAT NOW SO IF YOU COUNCILMEMBERS ARE SHARING IF THERE ARE THINGS ON YOUR PRIORITY LIST YOU CAN SHARE.

>> B. BLACKABY: WE HAVE A WHOLE BUDGET COMMITTEE MEETING ON THE 12TH TO GO THROUGH THOSE REFERRALS SO PLEASE, LET ANY OF US

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KNOW, LET OTHER FOLKS KNOW.

>> MAYOR ISHII: WE HAVE TO BE CAREFUL BECAUSE OF THE BROWN ACT.

>> B. BLACKABY: COME TO THE MEETING. YES, I'M WITH YOU. I'M NOT PREPARED TO DO THAT TONIGHT, BUT I KNOW WE WILL HAVE A SESSION TO DO THAT.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: I'M PREPARED TO DO THAT TONIGHT. SO I WILL SAY THERE IS, OH WOW, OKAY. I THOUGHT MY NAME WAS ONLY ON ONE ITEM BUT THAT'S NOT TRUE. I SEE I AM ON INDEPENDENT CONSULTANT TO CONDUCT ANALYSIS OF HEALTH FOOD INSPECTION PROGRAM, ALSO A WORTHY CAUSE. BUT MY TOP ITEM, I TRY TO STRATEGICALLY LIMIT MY NAME TO WHAT I THINK IS THE MOST IMPORTANT THING, I KNEW THIS WAS GOING TO BE A VERY DIFFICULT BUDGET YEAR, I THINK EVEN IN THIS VERY DIFFICULT BUDGET I WOULD RESPECTFULLY REQUEST SERIOUS CONSIDERATION AND FUNDING OF THE OHLONE GREENWAY SAFETY IMPROVEMENTS. THIS $150,000 THAT WE ARE SHORT ON DESIGN FUNDING, IF WE PUT THIS MONEY IN WE WILL BE ABLE TO DRAW DOWN $5 MILLION OF COUNTY AND OTHER DOLLAR THAT'S HAVE ALREADY BEEN AWARDED TO THE CITY OF BERKELEY TO NOT JUST MAKE THIS GREENWAY NICER BUT MAKE IT SAFER. SO WIDEN IT WHERE IT C BE WIDENED, ADD LIGHTING. RIGHT NOW THESE INTERSECTIONS ARE IN OUR VISION ZERO ACTION PLAN AS UNSAFE INTERSECTIONS THAT WE CAN MAKE SAFER. THIS IS A ROUTE TO GET TO THE B.A.R.T. STATION WHICH IS CRITICAL WHERE WE CAN

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START BREAKING GROUND NEXT YEAR TO BUILD OUT THAT SITE. I REALLY THINK THIS IS A WORTHY BUDGET REFERRAL TO FUND. I ALSO THINK IT'S NOT JUST A DISTRICT ONE PRIORITY, THIS A GREENWAY USED BY MANY FOLKS ALL THROUGHOUT OUR CITY. SO I DID WANT TO SAY THAT, BUT I SAY THAT KNOWING THAT TO FUND THAT WE HAVE TO FIND MORE SAVINGS. THE MAYOR SAID WE WANT TO HAVE THE CHARTER OFFICES COME BACK. I THINK THE MAYOR HAS A MOTION FOR THAT, WHICH I SUPPORT. THAT'S ALL I HAVE FOR NOW. THANK YOU.

>> MAYOR ISHII: THANK YOU. ANY OTHER, SORRY, COUNCILMEMBER TAPLIN, I SEE YOUR HAND.

>> T. TAPLIN: THANK YOU, MADAM MAYOR. THANK YOU EVERYONE WHO SPOKE. MY PRIORITY IS CRITICAL REVENUE GENERATING CAPITAL IMPROVEMENT PROJECTS IN THE WATERFRONT, DOCKS F AND G, WHICH WILL HELP PUT IT BACK IN THE BLACK. AND MEASURE U1 WE SHOULD REFLECT THE TRUE AND HONEST NATURE, HOW AND WHERE IT LIVES, TRUST AND TRANSPARENCY, THE LIBRARY TAX OVER AND AGAINST [INDISCERNIBLE] BY 20 22 MEASURE L. AS A CITY, WE HAVE GOTTEN USED TO SPENDING PRACTICES AND BUDGET CONDITIONS THAT OUR FISCAL REALITY CAN NO LONGER SUSTAIN, NOR WILL CHOICES WE HAVE TO MAKE BE EASIER FROM HERE ON OUT. REMOVE PROPERTIES FROM THE TAX ROLLS HAVE MATERIAL CONSEQUENCES AND REPERCUSSIONS FOR KICKING HARD DECISIONS DOWN THE ROAD -- [READING RAPIDLY]

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TAPLIN. COUNCILMEMBER

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TREGUB?

>> I. TREGUB: THANK YOU, MADAM MAYOR. THANK YOU, STAFF AND SHARON, WE ARE REALLY GOING TO MISS YOU. THANK YOU FOR ALL OF YOUR SERVICE TO THE CITY. IN TERMS OF MY PRIORITIES, AND I WILL START WITH THAT FIRST, TO THE EXTEND FUNDING CAN BE IDENTIFIED, IT WILL BE DEPORTATION LEGAL SERVICES. AFTER-SCHOOL CARE AND THE TRAFFIC STUDY AND PEDESTRIAN SAFETY OPERATIONS ON SHATTUCK AND DELAWARE STREET, THAT THE ITEM #7, WHICH WE DID LAST YEAR. SO OBVIOUSLY, I THINK I SPEAK FOR EVERYONE ON THE DAIS ON THIS. NO ONE EVER RUNS FOR OFFICE TO TRY TO DECIDE WHAT BUDGET ITEMS WILL BE CUT. THIS IS NOT WHERE ANY OF US WANTED TO BE AND YET HERE WE ARE. AND I APPLAUD THE COUNCIL FOR THIS DISCUSSION AND ITS WILLINGNESS TO MAKE SOME TOUGH CHOICES, SUCH THAT WE CAN IMPROVE OUR READINESS TO RESPOND TO CURRENT AND FUTURE REALITIES. I HAVE A FEW NORTH STARS AROUND THESE CONVERSATIONS. ONE OF THEM, AND I APPLAUD STAFF FOR DOING THIS. AS FAR AS I CAN TELL, NOTHING WAS DONE ON THE BACKS OF POLICE, THE FULL-TIME EQUIVALENT STAFF THAT ARE REALLY THE BACKBONE OF OUR CITY. ANOTHER NORTH STAR THAT I HAVE IS MAKING SURE THAT WHEN WE PUT SOMETHING ON THE BALLOT AND WE CAMPAIGN FOR IT THAT WE ARE TRANSPARENT AND SHOULD THOSE BALLOT MEASURES BE APPROVED, WE FOLLOW THROUGH ON OUR WORD. SO, HAVING WORKED ON THE COMMITTEE THAT WROTE MEASURE U1, AND THEN CAMPAIGNED FOR MEASURE U1, AND THEN WORKED TO MAKE

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RECOMMENDATIONS FOR U1 ALLOCATIONS, I VERY MUCH RESONATE WITH WHAT SEVERAL MEMBERS OF THE PUBLIC SAID AROUND THIS NOT BEING THE PLACE WHERE WE SHOULD LOOK AT CUTS. AND I WOULD SUBMIT AND I WOULD ACTUALLY ASK STAFF TO DO THIS WHETHER FOR THE BUDGET COMMITTEE OR COUNCIL. IF WE LOOK AT OPTIONS AROUND ALTERNATIVES TO U1, LET'S LOOK AT THE COST OF TRYING TO FIND HOUSING FOR SOMEONE ONCE THEY ARE OUT ON THE STREET AND COMPARE THE TWO. BECAUSE I'M PRETTY SURE THAT IT COSTS LESS MONEY TO KEEP THEM HOUSED IN THE FIRST PLACE. SEVERAL OTHER COMMENTS, ON THE BUDGET, I THINK THE DELTAS WERE REALLY HELPFUL BETWEEN BUDGETED FOR AND CURRENT CONDITIONS. IT WOULD BE USEFUL, AT LEAST TO ME WHERE POSSIBLE TO IDENTIFY LINE ITEMS WHERE THEY CHANGE WITH PERCENT CHANGE DEMARCATIONS. AT LEAST FOR ME IT WOULD BE EASIER TO SEE WHAT ARE THE KEY FACTORS IN THE CHANGES. AND THAT'S REALLY, YEAH. I KNOW WE WILL HAVE TO MAKE SOME PAINFUL DECISIONS AND NO ONE IS LOOKING FORWARD TO THAT, I CERTAINLY AM NOT BUT I WOULD LOVE FOR US TO, IF WE ARE GOING TO TAKE A LOOK AT CUTTING SOMETHING, LET'S LOOK AT ALL THE POSSIBLE EXTERNALITIES AND OPPORTUNITY COSTS OF LOSING THOSE PROGRAMS. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. OTHER COMMENTS? COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. A COUPLE OF MY OFFICE'S PRIORITIES THAT I WANTED TO SHARE, DEFINITELY THE CURB MARKING AND

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PREVENTIVE INFRASTRUCTURE FOR HIGH-RISK INTERSECTIONS OUR PUBLIC WORKS DEPARTMENT IS WORKING ON THAT RIGHT NOW. BUT THIS IS, WE NEED TO BE ABLE TO COMPLY WITH STATE LAW AND NOT CONFUSE OUR RESIDENTS WHILE DOING SO. AS WELL AS THE DEPORTATION, LEGAL DEFENSE. AND THIS IS, I THINK, A TIER LOWER, BUT ANY PEDESTRIAN SAFETY AND CYCLIST INFRASTRUCTURE, SO THAT INCLUDES IN THIS LIST, OXFORD FOR ALL IN THE OHLONE GREENWAY SAFETY IMPROVEMENTS. I ALSO WANT TO; THIS IS A REALLY SMALL ASK. IN THIS BUDGET CYCLE, NOTHING IS A SMALL ASK BUT STREET SPIRIT OPERATIONAL AND PROGRAMMING COSTS WOULD REALLY AFFECT THEIR DAY-TO-DAY OPERATIONS. THEY PROVIDE SUCH AN INCREDIBLE SERVICE TO OUR COMMUNITY.

>> MAYOR ISHII: AND THE AMOUNT?

>> C. LUNAPARRA: SORRY? $25,000. YEAH. AND I ALSO WANTED TO TALK A LITTLE BIT ABOUT U1 AND THE SMALL SITES AND OTHER KIND OF AFFORDABLE HOUSING PROJECTS THAT WE HAVE. I WANT TO EMPHASIZE THAT THIS IS THE CHEAPEST WAY, AS COUNCILMEMBER TREGUB SAID, THE CHEAPEST WAY TO ADDRESS HOUSING ISSUES IN OUR CITY IS TO KEEP PEOPLE HOUSED. IT'S MUCH MORE EXPENSIVE TO HELP FOLKS ONCE THEY ARE HOMELESS. I KNOW THAT WE ALL ARE KEEPING THAT IN MIND, I WANTED TO SAY IT OUT LOUD AS WELL. THANKS.

>> MAYOR ISHII: YES, COUNCILMEMBER?

>> S. O'KEEFE: JUST REAL QUICK, I DON'T HAVE A LOT TO ADD. THIS

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IS OUTSIDE MY EXPERTISE IN GENERAL. I WANT TO GIVE PLUS ONE TO THE AFTER SCHOOL PROGRAM EXPANSION. IT MAKES AN INCREDIBLY HUGE DIFFERENCE IN FAMILIES AND FOR CHILDREN TO HAVE ACCESS TO SUCH HIGH-QUALITY AFTER SCHOOL CARE IT CAN REALLY CHANGE LIVES AND IT'S WORTH THE MONEY. I REALLY WANT TO SPEAK UP FOR THAT. I JUST WANT TO ECHO MANY OF THE COMMENTS THAT MY COLLEAGUES HERE HAVE SAID, THE LOSS OF FUNDING FOR SMALL SITES IS HEARTBREAKING. I REALLY, REALLY HOPE WE CAN FIND A WAY TO AVOID IT OR LESSEN IT. I UNDERSTAND THAT ASKING FOR THAT WITHOUT A SUGGESTION OF WHAT ELSE WE SHOULD CUT IS NOT HELPFUL BUT I DO HOPE, HOPE WE CAN FIGURE SOMETHING OUT BECAUSE IT'S REALLY A TRAGIC, TRAGIC LOSS. THANK YOU FOR YOUR WORK, I KNOW YOU ARE DOING YOUR BEST HOW TO MANAGE THE SITUATION. THANK YOU TO THE BUDGE THE COMMITTEE AS WELL.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER HUMBERT NEXT?

>> M. HUMBERT: YES, THANK YOU, MADAM MAYOR, I DON'T HAVE ANY SPECIFIC ASKS IN MIND, BUT MY PRIORITIES ARE STREET AND SIDEWALK SAFETY. THAT'S ALWAYS MONEY WELL-SPENT TO KEEP OUR RESIDENTS AND OUR VISITORS SAFE IN LIFE AND LIMB AND PUBLIC SAFETY IN GENERAL AND PROTECTING OUR INFRASTRUCTURE AND TRYING TO AVOID LETTING IT DETERIORATE. THANK YOU.

>> MAYOR ISHII: GO AHEAD, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: I REALLY APPRECIATE THE ROBUST DISCUSSION

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AROUND SMALL SITES. BUT YOU KNOW, I CAN'T LET IT GO UNCHALLENGED THIS IS CHEAP OR COST EFFECTIVE. IT'S JUST NOT. AND WE CAN HAVE A DISCUSSION AT BUDGET AND FINANCE COMMITTEE THE TOTAL, I WANT TO MAKE A REQUEST TO STAFF, WE CAN GET THE TOTAL AMOUNT PUT INTO EACH SMALL SITE PROJECT AND HOW MANY UNITS WERE PRESERVED. AND I WANT TO SAY IT'S IMPORTANT, WE DON'T WANT TO DISPLACE TENANTS, THERE'S A VALUE IN IT WHEN WE HAVE THE FUNDS AVAILABLE TO DO SO. WE DON'T HAVE IT THIS TIME. SO I'M JUST GOING TO SPEAK FROM MY KNOWLEDGE, DOING MY POLICY WORK IN SAN FRANCISCO AND OTHER PLACES. IT'S ABOUT $350,000 PER UNIT TO DO SMALL SITES. THAT'S NOT CHEAP. YOU KNOW, RAPID REHOUSING SUBSIDIES, A ONE-TIME RENTAL ASSISTANCE, SO THAT PEOPLE CAN MAKE THEIR RENT AND NOT GET EVICTED, THOSE ARE MORE COST-EFFECTIVE OPTIONS, ACTUALLY, WHEN YOU LOOK AT THE COST PER PERSON ASSISTED. AND ACTUALLY, IT'S NEW AFFORDABLE HOUSING THAT IS MOST COST EFFECTIVE FOR THE CITY, BECAUSE THE LOCAL PUBLIC SUBSIDY THAT WE PUT IN DRAWS DOWN FOUR OUTSIDE DOLLARS. IT'S THE STATE DOLLARS WE GET, THE FEDERAL TAX CREDITS THAT WE GET. SO YES, THOSE NEW AFFORDABLE HOUSING UNITS COST ROUGHLY $750,000, BUT GUESS WHAT WE ONLY PUT IN $200,000 AND WE GOT A NEW UNIT, IT'S NOT JUST A CONVERSION OF THE TYPE OF UNIT. SO I WANT TO REITERATE AGAIN THAT SMALL SITES HAS VALUE WHEN THE PROPERTY IS GOING TO BE SOLD AND THERE'S FEAR OF DISPLACEMENT FOR THOSE TENANTS. BUT WE HAVE TO MAKE TOUGH

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CHOICES. I SPOKE OUT AGAINST THE $10 MILLION SMALL SITE ALLOCATION LAST YEAR BECAUSE I DIDN'T THINK IT WAS A RESPONSIBLE USE OF OUR RESOURCES, AND NOW WE WERE ABLE TO GET AWAY WITH IT LAST YEAR BECAUSE WE DIDN'T HAVE A DEFICIT. BUT NOW WE DO. SO AGAIN, I CHALLENGE FOLKS WHO SAY THEY WANT TO PRESERVE IT, WHAT DO YOU WANT TO DO TO PUT $2.5 MILLION AND SPEND $350,000 PER UNIT? TELL ME WHAT YOU WANT TO DO, PULL $2.5 MILLION OUT OF THE SECTION 115 TRUST? DO YOU WANT TO DO OTHER MANEUVERS AND GIMMICKS AROUND WORKMAN'S COMP OR I.T. COST ALLOCATION OR ASK OUR STAFF TO COME UP WITH SOME OTHER ONE-TIME GIMMICK? THAT'S WHAT YOU HAVE TO FIGURE OUT AND PRESENT TO US TO CONVINCE ME THAT'S A GOOD INVESTMENT. AND I REALLY WANT US TO COME BACK TO THE BUDGET AND FINANCE COMMITTEE WITH THE NUMBERS SO WE CAN SEE WHAT IS THE TOTAL AMOUNT PUT INTO A PROJECT FOR ALL THE PROJECTS WE HAVE DONE FOR SMALL SITES AND HOW MANY UNITS WERE PRESERVED. SO WE ARE GOING TO SEE THE COST PER UNIT. THEN I WANT TO COMPARE, I WANT TO GET THE ANALYSIS OF A NEW AFFORDABLE HOUSING UNIT. AND WE CAN LOOK AT NORTH BERKELEY B.A.R.T. AS AN EXAMPLE AND LOOK AT LOCAL PUBLIC SUBSIDY PUT IN. HOW MANY DOLLAR THAT'S LEVERAGES AND HOW MANY NEW UNITS ARE CREATED FOR THE LOCAL PUBLIC SUBSIDY. AND WHEN WE TALK ABOUT MEASURE P, I WANT TO HEAR FROM PETER, I WANT TO HEAR HOW MANY PEOPLE GOT HOUSED WITH RAPID REHOUSING SUBSIDIES AND HOW MUCH THAT COSTS? OKAY. LET'S BRING

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ALL OUR DATA AND EVIDENCE TOGETHER AND FIGURE OUT HOW WE CAN HELP THE MOST PEOPLE IN THIS CITY STAY HOUSED. THANK YOU.

>> MAYOR ISHII: OKAY. THANK YOU. SO I THINK THAT WE HAVE FINISHED THE COMMENTS, I HAVE SOME COMMENTS BUT IT'S 10:46, SO I KNOW WE STILL HAVE ONE MORE ITEM ON THE AGENDA AND WE WILL NEED TO MAKE A MOTION TO EXTEND OUR TIME. I BELIEVE THAT JORDAN HAS SAID HE THINKS WITH COMMENTS AND EVERYTHING THAT IT MIGHT TAKE AN HOUR TOTAL FOR US TO COVER. SO I WOULD LIKE TO ASK THAT WE EXTEND OUR MEETING UNTIL MIDNIGHT. HOPING THAT WE DO NOT GO THAT LONG, BUT JUST THAT I WANT TO GIVE US WIGGLE ROOM.

>> I. TREGUB: SO MOVED.

>> T. TAPLIN: SO MOVED.

>> I. TREGUB: I'LL SECOND.

>> MAYOR ISHII: THANK YOU. CAN YOU TAKE THE ROLL, PLEASE, CLERK?

>> CITY CLERK: KESARWANI?

>> YES.

>> CITY CLERK: TAPLIN?

>> YES.

>> CITY CLERK: TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

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>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION PASSES.

>> MAYOR ISHII: I WANT TO SAY A HUGE THANK YOU TO FOLKS, STAFF, FOLKS OUT THERE WAITING FOR US, I KNOW THERE'S A LOT GOING ON TONIGHT AND THIS CONVERSATION IS REALLY IMPORTANT. I WANT TO THANK MY COLLEAGUES FOR SHARING THEIR PRIORITIES AND THOUGHTS ON THINGS. IT'S REALLY HELPFUL HOW WE CAN MOVE FORWARD AND FOLKS ARE WILLING TO SHARE THEIR THOUGHTS NOW. THANKS FOR THAT. I REALLY WANT TO THANK SHARON FOR HER SERVICE. I KNOW THIS IS YOUR LAST NIGHT. LET'S GIVE SHARON -- [APPLAUSE] SHE WILL UNFORTUNATELY BE LEAVING US FOR EMERYVILLE; I THINK EMERYVILLE AND BERKELEY HAS A TUG-OF-WAR GOING ON RIGHT NOW WITH STAFF. I WANT TO RECOGNIZE SHANNON, WE HAVEN'T ACKNOWLEDGED YOU, YOU WILL BE OUR ACTING BUDGET MANAGER, SO YOU WILL BE CARRYING ON THE TORCH FROM NOW ON, THAT IS INCREDIBLY IMPORTANT SINCE WE ARE IN THE MIDDLE OF OUR PROCESS, I WANT TO THANK YOU FOR STEPPING UP AND BEING HERE THIS EVENING, EVEN THOUGH YOU HAVEN'T HAD AN

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OPPORTUNITY TO SPEAK AT ALL. SO THANK YOU. [APPLAUSE] YEAH, THANK YOU. OKAY. AND THANK YOU, JUST GENERALLY, STAFF. AS I MENTIONED, AN INCREDIBLE AMOUNT OF WORK. I REALLY WANT TO SAY, I HAVE A LOT OF CONFIDENCE THAT COUNCIL IS TAKING THIS BUDGET DEFICIT VERY SERIOUSLY AND WORKING TO DRESS THE STRUCTURAL DEFICIT MOVING FORWARD. WE RECOGNIZE THERE ARE SOME THINGS WE ARE BEING ASKED TO DO WE ARE HOPING, WE RECOGNIZE ARE NOT LONG-TERM SOLUTIONS. JUST GENERALLY, THANK YOU TO STAFF FOR ALL THE ADDITIONAL INFORMATION. I KNOW WE HAVE ASKED A LOT OF YOU FROM THE BUDGET AND FINANCE COMMITTEE, I APPRECIATE YOU TAKING THE TIME TO ADD THE NOTES AT THE BOTTOM OF THE CHARTS. I JUST REALLY THINK MAKING THESE CHANGES MAKES THIS PROCESS A LOT MORE TRANSPARENT. I'M REALLY GRATEFUL BECAUSE THE I KNOW THE PUBLIC DOESN'T ALWAYS HAVE TIME TO LOOK THROUGH SUCH LARGE BUDGET DOCUMENTS, SO ANYTHING WE CAN DO TO MAKE THINGS A LITTLE MORE CLEAR, ESPECIALLY FOLKS WHO DON'T HAVE A BACKGROUND IN FINANCE OF ANY SORTS, I THINK THAT IS HELPFUL. I WANT TO APPLAUD YOU FOR ALL OF YOUR GREAT WORK THERE. AND LET'S SEE. I DON'T WANT TO LOSE TRACK. SO MANY THINGS. SO ANOTHER THING I WANT TO SAY IS A BIG THANK YOU BECAUSE I REALLY APPRECIATE THAT WE ARE PRIORITIZING PREVENTING LAY-OFFS, THAT IS MAJOR. I THINK THE FACT THAT WE HAVEN'T HAD CITY STAFF COME HERE BECAUSE THEY ARE WORRIED ABOUT LOSING THEIR JOBS THAT IS GREAT. AND I JUST WANT

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TO SAY THANK YOU SO MUCH, THAT'S A HUGE PRIORITY FOR ME, WE ARE ABLE TO MAINTAIN OUR CITY SERVICE BUSINESS PREVENTING LAY-OFFS. I UNDERSTAND THERE'S STILL AN IMPACT OF HOLDING POSITIONS OPEN. SO I WANT TO ACKNOWLEDGE THAT. I WANT TO ALSO MAKE SURE FOLKS UNDERSTAND THIS CURRENT BUDGET DEFICIT DOESN'T INCLUDE POTENTIAL FEDERAL FUNDING CUTS. I KNOW THAT'S KIND OF A SCARY THING TO SAY, BUT I WANT THIS TO COME IN WITH OUR EYES OPEN, AS A SANCTUARY CITY WE CAN LOSE SIMILAR TO THE AMOUNT WE ARE IN A DEFICIT, $26-$28 MILLION. THIS IS SOMETHING WE NEED TO BE AWARE OF FOR SURE. I WANT TO SHARE MY PRIORITY ISSUES ARE HOUSING AND HOMELESSNESS, PUBLIC SAFETY, AND INFRASTRUCTURE. I WANT TO MAKE SURE, I APPRECIATE COUNCILMEMBER BLACKABY'S COMMENTS, I ALSO WANT TO MAKE SURE WE CONTINUE TO FUND REVENUE-GENERATING ASPECTS OF OUR CITY. AND I WANT TO MAKE SOME COMMENTS ABOUT THE U1 AFFORDABLE. SO U1 WAS FOR AFFORDABLE HOUSING AND PROTECTING BERKELEY RESIDENTS FROM HOMELESSNESS. I THINK IT'S IMPORTANT TO HONOR THE INTEGRITY OF VOTER-APPROVED BALLOT MEASURES AND USING THE FUNDS THE WAY THEY ARE INTENDED FOR. CURRENTLY IT'S BEING RECOMMENDED WE USE THIS FOR ENCAMPMENT RESOLUTION, WHICH WHEN WE ARE TALKING ABOUT HOMELESSNESS PREVENTION AND AFFORDABLE HOUSING AND ENCAMPMENT RESOLUTION, I DON'T FEEL IS A MATCH. I AM CONCERNED ABOUT THE SMALL SITES. I HEAR WHAT YOU ARE SAYING, COUNCILMEMBER KESARWANI, I THINK THAT'S REALLY IMPORTANT WE ARE

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LOOKING AT THE BENEFITS AND HOW MANY DOLLARS WE ARE ACTUALLY SPENDING TO GO TOWARDS SOMETHING, HOW EFFECTIVE IS IT? AT THE SAME TIME IF WE ARE TALKING ABOUT THE PURPOSES OF FOR MEASURE U1 I'M NOT REALLY SEEING AN ENCAMPMENT RESOLUTION AS A PURPOSE THAT FALLS UNDER U1. THERE WAS A COMMENT ABOUT CAROL ABOUT ALTERNATE HOUSING SITES, WHAT COULD BE USED TO FUND THIS. I WANT TO MAKE A COMMENT MEASURE W FUNDS COULD BE USED POTENTIALLY TO FUND THIS, SO THAT'S SOMETHING I WANT TO FLAG. ALMOST THERE. JUST A FEW MORE THINGS. A REALLY BIG THANK YOU TO OUR CITY ATTORNEY FOR HOLDING A POSITION VACANT. AND I WANT TO MAKE A MOTION TO ASK FOR THE CITY MANAGER TO WORK WITH THE CHARTER OFFICES, TO DEVELOP A RECOMMENDATION FOR COUNCIL CONSIDERATION OF A HIRING FREEZE OF VACANT POSITIONS. AGAIN, THIS IS JUST, THIS IS SOMETHING THAT WOULD ALLOW US TO HAVE A CONVERSATION ABOUT SAVINGS IN THESE CHARTER OFFICES. I'M A BIG BELIEVER TOO, I CAN'T SAY LET'S NOT SPEND HERE BUT NOT COME UP WITH A SOLUTION. SO THIS IS PART OF THE SOLUTION. I SEE THIS IS PART OF THE SOLUTION. I ALSO WANT TO RECOGNIZE COUNCILMEMBER TREGUB MADE A COMMENT ABOUT LOOKING FOR OTHER POTENTIAL SOLUTIONS AS WELL. AND I WANT TO ALSO JUST MENTION THAT I WILL BE BRINGING MY, THE MAYOR'S BUDGET RECOMMENDATIONS TO THE JUNE 12TH BUDGET AND FINANCE COMMITTEE MEETING. SO IT'S VERY HELPFUL SOME OF YOU SHARED YOUR PRIORITIES. BECAUSE THAT IS SOMETHING I REALLY WANT

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TO TAKE INTO ACCOUNT AS WE ARE TALKING ABOUT THIS. AGAIN, TO REMIND FOLKS IF YOU HAVE OTHER THINGS YOU DIDN'T GET A CHANCE TO BRING UP TODAY YOU TALK TO OUR CITY MANAGER ABOUT THAT. I'M TRYING TO BE CAREFUL AND THOUGHTFUL ABOUT BROWN ACT VIOLATIONS HERE. I KNOW THERE'S A MOTION ON THE TABLE. THERE'S ALREADY A SECOND.

>> R. KESARWANI: DO WE NEED TO DO A MOTION ON ITEM. THIS ITEM.

>> MAYOR ISHII: WE CAN MAKE A MOTION ALSO ON THIS ITEM TO RECEIVE THE REPORT.

>> R. KESARWANI: IT'S NOT NECESSARY?

>> MAYOR ISHII: IT'S NOT NECESSARY.

>> R. KESARWANI: SO WE DON'T NEED TO?

>> MAYOR ISHII: NO.

>> R. KESARWANI: SO I THINK THE MOTION CAN STAND AS-IS.

>> MAYOR ISHII: WE CAN ALSO ADD, I'M HAPPY TO MAKE A FRIENDLY AMENDMENT TO ADD THAT WE ALSO RECEIVED THE MID-BIENNIAL BUDGET UPDATE AND PUBLIC HEARING.

>> R. KESARWANI: SURE. EITHER WAY, IT DOESN'T CHANGE ANYTHING MATERIALLY, SO YES, WE CAN ACCEPT THAT.

>> MAYOR ISHII: OKAY, CLERK? COUNCILMEMBER TAPLIN? DID YOU HAVE --

>> T. TAPLIN: YES, THANK YOU, POINT OF CLARITY, WHAT IS THE MOTION ON THE TABLE THAT WE ARE VOTING ON?

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>> MAYOR ISHII: SORRY, THE MOTION ON THE TABLE IS TO ASK THE CITY MANAGER TO WORK WITH THE CHARTER OFFICES TO DEVELOP A RECOMMENDATION FOR COUNCIL CONSIDERATION OF A HIRING FREEZE OF VACANT POSITIONS. AND ALSO, TO ACCEPT THE MID-BIENNIAL BUDGET UPDATE.

>> T. TAPLIN: JUST QUICK QUESTION FOR THE CITY ATTORNEY. DOES THE CHARTER PERMIT IF IT'S WITH THE OTHER CHARTER OFFICERS?

>> YES, AS LONG AS THE FINAL DECISION IS MADE BY THE CITY COUNCIL, I THINK THE IDEA IS TO INITIATE DISCUSSIONS, NOT FOR THE CITY MANAGER TO MAKE THE DECISION. BUT TO ENGAGE IN DISCUSSIONS AND BRING PROPOSALS BACK.

>> T. TAPLIN: WONDERFUL. THANK YOU VERY MUCH.

>> MAYOR ISHII: YEAH, THANK YOU FOR THE QUESTION AND FOR THE ANSWER AS WELL. CLERK, COULD YOU PLEASE TAKE THE ROLL

>> CITY CLERK: COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

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>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: OKAY, THANK YOU ALL SO MUCH, I WILL LET YOU GO HOME. THANK YOU FOR BEING HERE, I KNOW JORDAN WILL COME UP AND WE HAVE SOME OTHER FOLKS WHO NEED TO BE SHUFFLING IN HERE, THANK YOU ALL SO MUCH FOR YOUR PATIENCE FOR THIS FINAL ITEM. I WILL ASK YOU GIVE US LIKE TEN MINUTES TO DO OUR SHUFFLING AND SETTING UP AND STUFF. AND ALSO TO TAKE A QUICK STRETCH AND MAYBE SOME WATER AND STUFF. WE WILL BE BACK IN TEN. THANK YOU. [BREAK]

>> MAYOR ISHII: WE ARE COMING BACK TOGETHER. AND WE ARE MOVING ONTO OUR FINAL ITEM FOR THE EVENING, WHICH IS ITEM 31, THAT IS THE LANDMARKS PRESERVATION COMMISSION APPEAL, LPC APPEAL, 2500-2512 SAN PABLO AVENUE, LANDMARK APPLICATION, #LMIN2024-0004. WE WILL START WITH A PRESENTATION.

>> I'M JORDAN KLEIN AND WITH ME IS ANNE HIRSH AND SHE WILL BE PRESENTING ON BEHALF OF STAFF.

>> GOOD EVENING MADAM MAYOR AND CITY COUNCIL, BEFORE YOU IS AN

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APPLICATION FOR 2400-2512 SAN PABLO AVENUE. I WILL PRESENT THE SITE FEATURES, THE APPLICATION AND POINTS OF APPEAL. THE SUBJECT PROPERTY IS LOCATED AT THE SOUTHWEST CORNER OF SAN PABLO AND DWIGHT WAY, CONSTRUCTED IN 1912, ADDRESSES BOTH ON SAN PABLO AND DWIGHT WAY. EXISTING USES ARE GENERAL RETAIL AND CO-WORKING OFFICE AND FOOD SERVICE ESTABLISHMENT, THE APPLICANT IS LPC AND PROPERTY APPELLANT IS PROPERTY OWNER'S ATTORNEY. THE INITIATION OCCURRED ON SEPTEMBER 5TH LAST YEAR. AND THEN AT THE OCTOBER 7TH MEETING THE LANDMARKS PRESERVATION COMMISSION HEARING OPENED THE PUBLIC HEARING TO REVIEW THE REQUEST. AT THAT TIME A CONTINUANCE WAS REQUESTED BY THE PROPERTY OWNER. NOVEMBER 6TH APPLICATION WAS SUBMITTED, DECEMBER 5TH LPC INITIATED LANDMARKING AND CONDUCTED A PUBLIC HEARING, RESULTING AS A LANDMARK BEING ISSUED. AND JANUARY 31ST AN APPEAL WAS FILED AND THAT BRINGS US TO THIS EVENING. IT'S REGULATED THROUGH BMC3.24.110. CRITERIA FOR INITIATION INCLUDES ARCHITECTURAL, CULTURAL EDUCATIONAL HISTORIC OR NATIONAL ELIGIBILITY. THE SITE WAS ADDED TO THE INITIATION LIST IN 2021 AND ADDED IN 2024. THE REPORT PRESENTED TO THE LPC IDENTIFIED THE BUILDING AS AN ELIGIBLE RESOURCE BASED ON ARCHITECTURAL MERIT OF EARLY 20TH CENTURY ARCHITECTURAL DESIGN AND BUILDING'S ASSOCIATION WITH THE EAST BAY MUSIC ROW IN THE 1960 AND 70S. IN THE 60S IT WAS THE SITE OF THE CABLE, NAMED CABLE CREAMERY, A FOLK MUSIC VENUE. JERRY GARCIA MADE REGULAR

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VISITS IN THE VENUE. THE VENUE CHANGED NAMES SEVERAL TIMES AND ULTIMATELY BECAME THE LONG RANCH SALOON IN 1971. NOW I WILL MOVE ONTO THE POINTS OF THE APPEAL. APPEAL POINT ONE THE APPELLANT SAID LPC FAILED TO PROPERLY INITIATE AND NOTIFY THE CITY. STAFF ACKNOWLEDGES THERE WERE ERRORS BUT THEY WERE CORRECTED AND DATE WAS ACCOMMODATED AT THE REQUEST OF THE PROPERTY OWNER. APPELLANT SAID SUBSTANTIAL EVIDENCE IS LACKING FOR ARCHITECTURAL MERIT AND CULTURAL VALUE. IN THE EVIDENCE, INCLUDES APPLICATION, HISTORIC RESOURCES EVALUATION AND CITY RECORDS AND BAHA ARCHIVES. IT WAS DISCUSSED AT LENGTH BY LPC PRIOR TO THEIR ACTIONS IN DECEMBER. APPEAL POINT THREE APPELLANT STATES DESIGNATION REDUCES POTENTIAL AND LIMITS HEIGHT RENDERING INFEASIBLE. WORTH NOTING SB 330 APPLICATION HAS BEEN NOT BEEN FILED AND DEVELOPMENT IS NOT PROPOSED AT THIS TIME. THE SUBJECT PROPERTY IS ZONED CW, WHICH ALLOWS FOR MIXED USE BY RIGHT. THE LPC APPROPRIATELY EXERCISED THEIR AUTHORITY TO DESIGNATE THE SUBJECT PROPERTY PURSUANT TO REQUIREMENTS OF THE MUNICIPAL CODE. IT'S WORTH NOTING AN APPLICATION MAY BE FILED ANY TIME AND MAY BE SUBJECT TO OBJECTIVE DESIGN STANDARDS. RECENT EXAMPLE OF A LANDMARKED BUILDING APPROVED FOR RESIDENTIAL MIXED USE IS THE THEATER. AN APPEAL POINT FOR APPELLANT STATES IT INTERFERES WITH INVESTMENT-BACKED EXPECTATIONS AND ABILITY TO BE COMPETITIVE WITH OTHER LANDLORDS AND REDEVELOP THE SITE. CASE LAW HELD ORDINANCES DO

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NOT CONSTITUTE REGULATORY TAKINGS. AS I NOTED PREVIOUSLY MIXED USE ARE PERMITTED BY RIGHT. THE DESIGNATION OF THE PROPERTY AS A CITY OF BERKELEY LANDMARK DOESN'T ELIMINATE THE POSSIBILITY OF FUTURE DEVELOPMENT AND AS A LANDMARK ANY POTENTIAL FUTURE CHANGES TO THE PROPERTY WOULD BE EVALUATED THROUGH THE STRUCTURAL ALTERCATION PERMIT PROCESS REVIEW WITH THE LANDMARKS PRESERVATION COMMISSION. WITH THAT, STAFF RECOMMENDS THAT THE CITY COUNCIL CONDUCT A PUBLIC HEARING AND UPON CONCLUSION ADOPT A RESOLUTION AFFIRMING THE LPC'S DECISION TO LANDMARK THE BUILDING AT 2500-2512 SAN PABLO AND DISMISS THE APPEAL. BOTH THE APPLICANT AND APPELLANT ARE IN ATTENDANCE AND I'M AVAILABLE TO ANSWER ANY QUESTIONS YOU MAY HAVE.

>> MAYOR ISHII: THANK YOU FOR THE PRESENTATION. THE WAY THIS WORKS, BY THE WAY, WE ALREADY OPENED THE PUBLIC HEARING IF FOLKS MISSED THAT, BUT WE ALREADY OPENED THE PUBLIC HEARING BEFORE 10:00 P.M. HOW THIS WORKS WE WILL HAVE FIVE MINUTES TO HEAR FROM THE APPELLANT AND FIVE FROM THE APPLICANT WHICH IS THE LANDMARKS PRESERVATION COMMISSION. I WOULD ASK THE APPELLANT COME FORWARD. AND STAY NEARBY BECAUSE WE WILL HAVE QUESTIONS, OR WE MAY HAVE QUESTIONS.

>> GOOD EVENING, COUNCIL, THANK YOU FOR STAYING LATE FOR THIS MATTER. I REALLY APPRECIATE IT. HOPEFULLY I WILL BE SHORT AND QUICK. AS ALREADY STATED I REPRESENT THE LANDOWNER FOR THIS

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BUILDING, MY NAME IS LINDA KLEIN, I'M A LAND USE ATTORNEY. I'M ALSO A REFORMED ARCHITECT. I WANT TO CLARIFY A FEW POINTS THAT I HOPE CLARIFY WHAT THE OWNER WOULD LIKE AS WELL AS THE POINTS MADE IN MY LETTER. THE PROPERTY OWNER DOESN'T OBJECT TO LISTING THIS BUILDING AS A LANDMARK. THAT'S NOT THE OBJECTION. THE OBJECTION IS TO TWO OF THE CHARACTER-DEFINING FEATURES. THE REASON CHARACTER-DEFINING FEATURES ARE SO IMPORTANT IS BECAUSE TO DETERMINE WHETHER OR NOT A DEVELOPMENT PROJECT LIKE PUTTING HOUSING OVER THE STOREFRONT, WHICH IS WHAT THE CLIENT WANTS AND HAD HIRED AN ARCHITECT BUT HADN'T GOTTEN AROUND TO FILING AN APPLICATION. SO YOU ARE CORRECT, SB 330 DOESN'T KICK IN. BUT TO DETERMINE WHETHER OR NOT THAT PROPOSAL WOULD HAVE AN ADVERSE IMPACT ON A HISTORIC RESOURCE YOU HAVE TO LOOK WHETHER IT WOULD IMPACT ANY CHARACTER-DEFINING FEATURES. SO HERE, THE ONE-STORY MASSING AND THE EXISTING MODIFIED RECTANGULAR FOOTPRINT ARE CHARACTER-DEFINING FEATURES, MEANING YOU CANNOT TOUCH THEM WITHOUT HAVING A SIGNIFICANT AND UNAVOIDABLE IMPACT. WHICH MEANS THERE IS NO HOUSING OVER THIS ONE-STORY COMMERCIAL BUILDING WITHOUT A VERY LONG, EXPENSIVE E.I.R. PROCESS. AND THE COUNCIL'S WILLINGNESS TO OVERRIDE A SIGNIFICANT UNAVOIDABLE IMPACT ON A HISTORIC RESOURCE. AND I, IN MY 15 YEARS BEING A LAND USE ATTORNEY AND PRIOR CAREER AS AN ARCHITECT, FOR A PROJECT THIS SIZE AND SCOPE I HAVE RARELY SEEN THAT HAPPEN. SO IT JUST

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DOESN'T OFFER THE TYPE OF COMMUNITY BENEFITS THAT USUALLY A COUNCIL LIKE YOU WOULD WANT TO SEE TO OVERRIDE SIGNIFICANT AND UNAVOIDABLE IMPACTS. SO YOU KNOW, I THINK MY ASK HERE IS EITHER THAT THE COUNCIL REMAND THIS BACK TO LANDMARKS PRESERVATION BOARD TO TAKE A LOOK AT THE CHARACTER-DEFINING FEATURES AND SEE WHETHER THEY REALLY INTENDED TO CAP THIS BUILDING AT ONE STORY FOREVER. OR IF THE COUNCIL COULD DO SO, TO RECONSIDER THE CHARACTER-DEFINING FEATURES, THEY ARE ON PAGE 3 OF THE LANDMARKS FINDINGS IN YOUR PACKET. AND KIND OF CONSIDER WHAT MIGHT BE APPROPRIATE, WHETHER YOU MIGHT WANT TO DELETE THE ONE-STORY AND THE KIND OF THAT HAS TO BE THAT EXISTING FOOTPRINT. BECAUSE OF COURSE, IF WE DID HOUSING WE WOULD WANT TO DO FOUNDATIONS BEHIND IT AND EXPAND THAT FOOTPRINT A LITTLE BIT. OR WORD IT IN A DIFFERENT WAY, LIKE, THE COMMERCIAL NEEDS TO BE AT LEAST ONE STORY AND WELL-DEFINED FROM ANYTHING THAT MIGHT BE BUILT OVER IT. SOMETHING LIKE THAT. THAT JUST WOULD MAINTAIN, BASICALLY THEIR RIGHTS TO DO HOUSING IN THE CITY. THANK YOU.

>> MAYOR ISHII: THANK YOU. AND FOR THIS PARTICULAR SITUATION, OUR APPLICANT IS ACTUALLY THE LANDMARKS PRESERVATION COMMISSION, I KNOW THREE OF THE MEMBERS ARE HERE, I WOULD LIKE TO ASK THEM TO INTRODUCE THEMSELVES THAT WAY IF WE HAVE QUESTIONS FOR ANYONE WE KNOW WHO WE ARE SPEAKING TO. THANK YOU.

>> THANK YOU FOR BEING HERE. THANK YOU, STAFF FOR YOUR

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PRESENTATION, MY NAME IS DENISE MONTGOMERY AND I'M THE CHAIR OF THE LANDMARKS PRESERVATION COMMISSION. WE DON'T HAVE A PRESENTATION THIS EVENING BUT WE ARE HERE TO ANSWER YOUR QUESTIONS. I THINK OUR APPLICATION AND THE STAFF'S PRESENTATION TOUCHED ON WHAT WE WOULD TALK ABOUT ANYWAY, SO. IT'S LATE.

>> MAYOR ISHII: THANK YOU, APPRECIATE THAT.

>> HELLO, COUNCIL. I AM CHARLES ENCHEL, I'M ONE OF THE CO-AUTHORS OF THE LANDMARK APPLICATION FOR THE COMMISSION.

>> I'M SUSAN AUERBACH AND I'M ALSO A CO-AUTHOR; WE ARE HERE TO ANSWER ANY QUESTIONS.

>> MAYOR ISHII: THANK YOU. APPRECIATE THAT. DO WE HAVE ANY PUBLIC COMMENTS? ONLINE?

>> CITY CLERK: YES, SO THIS IS THE TIME FOR PUBLIC COMMENT ON THE LANDMARKS PRESERVATION COMMISSION APPEAL. SO IF YOU WANT TO TALK, PLEASE RAISE YOUR HAND ON ZOOM. WE HAVE TWO RAISED HANDS. FIRST IS PHONE NUMBER ENDING IN 191. THIS IS FOR THE LANDMARKS PRESERVATION COMMISSION APPEAL.

>> FOR ALL LANDMARK WE ARE LOSING AN AWFUL LOT. UNITED THEATER SHATTUCK, CALIFORNIA THEATER ON KITTRIDGE STREET AND SO ON. I WOULD ALSO LIKE TO EMPHASIZE THAT THE -- MARKET IS AWFUL. ONE LAST WISH, BEFORE YOU GO TO SLEEP TONIGHT, PLEASE THINK OF THE THOUSANDS OF KIDS THAT ARE GETTING EVISCERATED, KILLED BY 2,000 POUND BOMBS DROPPED BY OUR TAX MONEY. IT'S TIME TO PRAY FOR

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PEACE, STOP THIS HORRIBLE THING.

>> MAYOR ISHII: MAKE SURE WE ARE STAYING ON TOPIC HERE, THANK YOU.

>> CITY CLERK: OKAY, AND NEXT IS LEILA. ON THE LANDMARKS PRESERVATION COMMISSION APPEAL.

>> GOOD EVENING. I'M THE PRESIDENT OF BAHA AND I'M IN REAL LIFE A LAND USE ATTORNEY SINCE 1993. THE ONLY COMMENT THAT WE WOULD ADD IS THAT, YOU KNOW, #1 OUR OVER 1,000 MEMBERS REALLY ARE IMPRESSED BY THE AMOUNT OF WORK THAT WENT INTO THIS APPLICATION. THE ARGUMENT THAT IT SOMEHOW, THAT LANDMARKING IS PREVENTING THE PROPERTY'S USE IS TOTALLY SPECULATIVE, AND THAT'S JUST NOT HOW THE CITY OPERATES. IT DOESN'T NORMALLY TRY TO FIGURE OUT WHAT MIGHT HAPPEN IN THE FUTURE AND WHAT APPLICATION MAY COME FORWARD. AND THEN GO BACK AND REMOVE FEATURES TO PRESERVE. SO WE ARE ASKING THAT YOU DENY THE APPEAL AND THANK YOU FOR YOUR TIME.

>> MAYOR ISHII: THANK YOU. OTHER COMMENTS ONLINE?

>> CITY CLERK: THAT IS ALL.

>> MAYOR ISHII: OKAY, SO WE WILL TAKE COUNCIL QUESTIONS ONLY AND THEN CLOSE THE PUBLIC HEARING. COUNCIL QUESTIONS? COUNCILMEMBER HUMBERT? OH, SORRY, AND THEN COUNCILMEMBER TREGUB AFTERWARDS, I KNOW YOUR BUTTON IS NOT WORKING.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I HAVE A QUESTION OF JORDAN. IS IT CORRECT THAT THIS LANDMARKING WOULDN'T PRECLUDE

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CREATIVE REUSE, FOR EXAMPLE, MULTI-STORY HOUSING, SO LONG AS THE FACADE IS PRESERVED?

>> THAT'S CORRECT.

>> M. HUMBERT: EVEN WITH THE PROVISION WITH RESPECT TO SINGLE STORY AND HORIZONTAL MASSING?

>> YEAH, I THINK OUR READING OF THAT IS ONE STORY MASSING IS REFERENCED TO THE EXISTING BUILDING TO BE PRESERVED AND THAT DOESN'T PRECLUDE ADDITIONAL CONSTRUCTION ON THE SITE, EITHER ABOVE OR BEHIND THAT FACADE.

>> M. HUMBERT: OKAY. THANK YOU.

>> MAYOR ISHII: THANK YOU. THAT WAS MY QUESTION TOO. COUNCILMEMBER TREGUB?

>> I. TREGUB: THAT WAS MY QUESTION THREE.

>> MAYOR ISHII: OKAY, SORRY, ANYONE ELSE? COUNCILMEMBER BLACKABY?

>> B. BLACKABY: CAN I ASK THE QUESTION A SLIGHTLY DIFFERENT WAY? WHICH IS, WHAT WOULD THE IMPLICATION BE OF REMOVING THE REFERENCE TO ONE-STORY MASSING, IS THERE A PROBLEM WITH THAT?

>> NO, I THINK COUNCIL CAN STRIKE THAT BULLET OF LISTINGS TO BE PRESERVED.

>> B. BLACKABY: SO THEN THE BALANCE OF THE FEATURES TO BE PRESERVED DESCRIBE IN DETAIL THE VARIOUS ELEMENTS, RIGHT?

>> THAT'S RIGHT.

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>> B. BLACKABY: COULD I ASK THE LANDMARKS COMMISSION, WOULD THERE BE A REJECTION IF WE REMOVE THE ONE-STORY MASSING OF THE LIST OF FEATURES YOU ASKED TO BE PRESERVED?

>> WE WOULD NOT BE OPPOSED TO STRIKING THAT CHARACTER-DEFINING FEATURE.

>> MAYOR ISHII: OKAY. THANK YOU. THAT'S HELPFUL. OTHER QUESTIONS? OKAY. ALL RIGHT. THEN I WILL ENTERTAIN A MOTION TO CLOSE THE PUBLIC HEARING.

>> M. HUMBERT: SO MOVED.

>> MAYOR ISHII: CAN WE TAKE A ROLL, PLEASE?

>> CITY CLERK: IS THERE A SECOND?

>> MAYOR ISHII: THERE WAS A SECOND FROM COUNCILMEMBER LUNAPARRA.

>> CITY CLERK: OH. OKAY. TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI IN

>> YES.

>> TAPLIN?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YE. YES.

>> BLACKABY?

>> YES.

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>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY.

>> MAYOR ISHII: THANK YOU. I KNOW WE ARE REACHING THAT PART OF THE NIGHT WE ARE STARTING TO GET A LITTLE SILLY. I THINK WE SHOULD HAVE OUR COUNCIL DELIBERATIONS. WHO IS NEXT? ANY COMMENTS FROM FOLKS? YES, SORRY, COUNCILMEMBER TREGUB?

>> I. TREGUB: I MOVE THAT WE DENY THE APPEAL AND APPROVE THE RECOMMENDATION WITH THE ONE CHANGE BEING ON PAGE THREE, BULLET #2, REMOVAL OF THE BULLET THAT STATES "ONE STORY MASSING AND HORIZONTAL ORIENTATION WITH A MODIFIED RECTANGULAR FOOTPRINT".

>> M. HUMBERT: I SECOND.

>> MAYOR ISHII: ANY OTHER COMMENTS BEFORE? OH, SORRY, COUNCILMEMBER TAPLIN, THANK YOU.

>> T. TAPLIN: YES, I'M WONDERING IF YOU WOULD ENTERTAIN A FRIENDLY AMENDMENT TO ALSO STRIKE BULLET #5, THAT BEING THE SIX STOREFRONTS -- SORRY, THE 13 STOREFRONT BAYS, EIGHT ALONG SAN PABLO AND FIVE ALONG DWIGHT WAY.

>> MAYOR ISHII: SORRY, CAN YOU REPEAT THAT, PLEASE.

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>> T. TAPLIN: I'M WONDERING IF COUNCILMEMBER TREGUB AND HUMBERT WOULD ENTERTAIN A FRIENDLY AMENDMENT TO ALSO STRIKE BULLET #5. THAT BEING THE 13 STOREFRONT BAYS, 8 ALONG SAN PABLO AND 5 ALONG DWIGHT WAY.

>> I. TREGUB: I THINK WE JUST CLOSED THE PUBLIC HEARING. I WOULD BE CURIOUS IF THE LPC HAS A COMMENT ON THAT.

>> MAYOR ISHII: WE JUST CLOSED THE PUBLIC HEARING, SO I WANT TO CHECK IN WITH THE CITY CLERK.

>> CITY CLERK: YOU CAN REOPEN IT.

>> MAYOR ISHII: CAN WE REOPEN IT GIVEN IT'S AFTER 10:00 P.M..

>> JUST TO ASK A QUESTION?

>> YEAH, IT'S FINE TO ASK A QUESTION.

>> MAYOR ISHII: I WANT TO MAKE SURE. THE QUESTION IS HOW DOES THE LANDMARKS PRESERVATION COMMISSION FEEL ABOUT THAT FRIENDLY AMENDMENT, IS THAT CORRECT, COUNCILMEMBER TREGUB?

>> I. TREGUB: YES.

>> MAYOR ISHII: OKAY.

>> WE WOULD BE IN OBJECTION TO THAT TO STRIKING AN ADDITIONAL CHARACTER-DEFINING FEATURE RELATED TO THE BAYS, THE STOREFRONT BAYS.

>> I. TREGUB: YOU SAID IN OBJECTION?

>> YES, WE OBJECT TO THAT. THANK YOU.

>> MAYOR ISHII: CAN I ASK AN ADDITIONAL QUESTION OF OUR STAFF?

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SO IF THEY HAVE THESE DIFFERENT STOREFRONTS, DOES THAT MEAN THEY ALL NEED TO STAY BUSINESSES, THEN? HOW DOES THAT, WHAT DOES THAT MEAN FOR IF THERE WAS A FUTURE DEVELOPMENT THERE? OR LOBBY, DOES IT NEED TO STAY A DOOR, I GUESS IS MY POINT.

>> THE CHARACTER-DEFINING FEATURE IS THE BAYS. THAT DOESN'T NECESSARILY REQUIRE THAT, YEAH, THAT DOESN'T NECESSARILY REQUIRE THOSE BE ENTRANCES OR THAT THE SPACES THEMSELVES REMAIN AS UNIQUE SUB DIVIDED SPACES. IT'S JUST THE BAYS.

>> MAYOR ISHII: OKAY, THAT'S HELPFUL. THANK YOU. COUNCILMEMBER TAPLIN FIRST AND THEN COUNCILMEMBER KESARWANI.

>> T. TAPLIN: YEAH, MY QUESTION WAS WHETHER THE MOTION OR SECONDER OF THE FRIENDLY AMENDMENT, SO IF I COULD HAVE THAT ANSWERED I WOULD APPRECIATE IT.

>> I. TREGUB: YEAH, I'M AFRAID I DON'T FEEL COMFORTABLE DOING THAT, I'M SORRY.

>> MAYOR ISHII: AND I THINK THE SECONDER WAS ALSO --

>> M. HUMBERT: YEAH, I WOULD BUT --

>> MAYOR ISHII: BUT OUR MAIN MOTIONER, IS NOT. GO AHEAD, COUNCILMEMBER KESARWANI.

>> T. TAPLIN: I STILL HAVE THE FLOOR IF THAT'S OKAY. I WOULD LIKE TO MAKE A SUBSTITUTE MOTION DENYING AT THE APPEAL AND REAFFIRMING THE LPC'S DECISION BUT STRIKING BULLET POINT #5.

>> MAYOR ISHII: COUNCILMEMBER KESARWANI IS NEXT.

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>> R. KESARWANI: I WANT TO SEE IF I CAN BRING US TOGETHER. BECAUSE IT SEEMS LIKE COUNCILMEMBER TAPLIN IS INTERESTED IN DELETING, YOU ASKED FOR THE 13 STOREFRONT BAYS, IF IT'S JUST THE BAYS, THE 13 BAYS THAT ARE THE, I GUESS LANDMARK-WORTHY FEATURE CAN WE JUST GET RID OF THE WORD STOREFRONTS SO THERE'S FLEXIBILITY OF USE, BUT WE HAVE THE 13 BAYS? COULD THAT BE A WAY TO THREAD THIS? I GUESS I WOULD TURN TO PLANNING DIRECTOR KLEIN.

>> YEAH, I THINK THAT -- YOU KNOW, AS I SAID EARLIER, EVEN WITH THE TERM STOREFRONT BAYS, WE CAN'T -- THAT DOESN'T CONSTITUTE A REQUIREMENT THAT THERE BE UNIQUE STOREFRONTS IN EACH OF THOSE SPACES. I THINK STRIKING THE WORD STOREFRONT MAKES SENSE.

>> R. KESARWANI: AND WHAT ABOUT THE WORD 13? IS THERE SOMETHING SIGNIFICANT ABOUT HAVING 13? THIRTEEN BAYS?

>> I THINK THAT'S A REFERENCE TO THE EXISTING BAYS.

>> R. KESARWANI: WHICH ARE CONSIDERED A LANDMARK-DEFINING FEATURE. I GUESS, OKAY, WE HAVE THE TWO MOTIONS.

>> MAYOR ISHII: WOULD YOU LIKE TO MAKE A FRIENDLY AMENDMENT?

>> NO I THINK HE JUST SECONDED A SECOND ONE.

>> MAYOR ISHII: I GUESS I'M ASKING, WOULD YOU LIKE TO MAKE A FRIENDLY AMENDMENT?

>> R. KESARWANI: I GUESS I COULD MAKE A FRIENDLY AMENDMENT TO THE MAIN MOTION. COUNCILMEMBER TREGUB YOU HAD REJECTED WHOLESALE.

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>> I. TREGUB: I WOULD BE FINE WITH THAT.

>> R. KESARWANI: WITH THIRTEEN BAYS, YOU ARE OKAY WITH THAT.

>> T. TAPLIN: I TOO, WOULD BE FINE WITH THAT.

>> R. KESARWANI: I THINK THAT SOLVES IT. AND COUNCILMEMBER TAPLIN, DO YOU WANT TO WITHDRAW YOUR SUBSTITUTE MOTION THEN?

>> T. TAPLIN: NO I WANT TO KEEP IT.

>> R. KESARWANI: YOU WANT TO KEEP IT BUT THE DIFFERENCE IS YOU ARE COMPLETELY STRIKING THE 13 STOREFRONTS BAYS?

>> T. TAPLIN: I'M JUST STRIKING THE STOREFRONTS AND KEEPING THE BAYS.

>> R. KESARWANI: OKAY, I ALSO -- THAT'S WHAT COUNCILMEMBER TREGUB IS ACCEPTING. 13 BAYS AND NOT THE WORD STOREFRONTS, IS THAT WHAT YOU ALSO WANT, COUNCILMEMBER TREGUB? OR TAPLIN?

>> T. TAPLIN: I'M HAPPY TO MAKE THAT AMENDMENT.

>> MAYOR ISHII: OKAY, SORRY. JUST SO YOU ARE CLEAR, COUNCILMEMBER TAPLIN, I THINK COUNCILMEMBER KESARWANI MADE A FRIENDLY AMENDMENT TO COUNCILMEMBER TREGUB'S MOTION THAT WOULD BE EXACTLY WHAT WE JUST SAID. SO STRIKING THE WORD "STOREFRONTS" FROM THAT BULLET POINT. AND I THINK YOU SAID YOU WERE OKAY WITH THAT, BUT I WANT TO MAKE SURE I UNDERSTAND?

>> T. TAPLIN: YES, YOU WOULD JUST NEED THE SECONDER TO ACCEPT IT.

>> MAYOR ISHII: MARK ACCEPTS THAT.

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>> T. TAPLIN: OKAY, COOL. I CAN'T HEAR ON THE FLOOR, SO.

>> MAYOR ISHII: WOULD YOU LIKE TO WITHDRAW YOUR MOTION THEN? SINCE NOW THE ORIGINAL MOTION IS WHAT YOU ARE ALSO OKAY WITH?

>> T. TAPLIN: YES.

>> MAYOR ISHII: OKAY, GREAT, THANK YOU. THANK YOU VERY MUCH. SO WHERE ARE WE IN THE AGENDA? COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: WELL, I DON'T WANT TO DRAG THIS OUT. I WAS GOING TO ASK WHY COUNCILMEMBER TAPLIN WANTED TO DO THIS? THE JUSTIFICATION HASN'T BEEN PROVIDED AND I'M CURIOUS. BUT, BUT, IF EVERYONE IS COOL WITH WHAT'S HAPPENING --

>> T. TAPLIN: I'M HAPPY TO --

>> S. O'KEEFE: I AM CURIOUS, BUT IF YOU COULD MAYBE BRIEFLY TELL US AND I'M HAPPY TO SUPPORT THIS MOTION.

>> T. TAPLIN: THE PLANNING DIRECTOR CLARIFIED IT, BUT MY CONCERN IS IF ANY NEW DEVELOPMENT WOULD BE REQUIRED TO HAVE 13 STOREFRONTS, WE HAVE HAD VACANCIES ON THIS BLOCK FOR YEARS. TWO BUSINESSES CLOSED. AND IT TOOK YEARS TO REOPEN THEM, SO MY CONCERN IS WE WOULD END UP WITH MORE VACANT STOREFRONTS FOR LONGER.

>> MAYOR ISHII: TOTALLY FAIR. THANK YOU. I THINK MY QUESTION HAD ACTUALLY GONE TO THAT AS WELL. ARE THERE OTHER COMMENTS? YES, COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THIS MAKES A LOT OF SENSE AND I'M GLAD WE CAME

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TO THIS; I WANT TO DOUBLE CHECK THIS IS OKAY WITH THE COMMISSION. OKAY, THANK YOU.

>> MAYOR ISHII: SORRY, DID YOU WANT IT SAY ANYTHING ELSE?

>> JUST TO BE CLEAR, WHEN WE WENT THROUGH OUR LANDMARK DESIGNATION, WE USED THE TERM STOREFRONT, IT'S AN ARCHITECTURAL DESCRIPTION, IT'S NOT AN INTENDED RESTRICTION ON USES. IT'S JUST PURELY ARCHITECTURAL. SO WE DON'T MIND STRIKING "STOREFRONT" BUT IT'S NOT INTENDED TO, THANK YOU.

>> MAYOR ISHII: YEAH, WONDERFUL. I'M ALWAYS HAPPY WHEN WE ARE ALL HAPPY. THAT'S GREAT. IN THAT CASE, WE HAVE A MOTION ON THE FLOOR, WE HAVE A SECOND, WE HAVE A FRIENDLY AMENDMENT. CLERK, COULD YOU CALL THE ROLL?

>> B. BLACKABY: COULD YOU CLARIFY THE MOTION?

>> MAYOR ISHII: LET'S CLARIFY THE MOTION.

>> CITY CLERK: SO IT'S TO AFFIRM THE LANDMARKS PRESERVATION COMMISSION DECISION AND DISMISS THE APPEAL WITH THE AMENDMENT TO REMOVE BULLET #2 REGARDING ONE-STORY MASSING AND MODIFY BULLET #5 TO REMOVE THE WORD "STOREFRONTS" SO IT SAYS THIRTEEN BAYS.

>> MAYOR ISHII: GREAT.

>> B. BLACKABY: I THINK STOREFRONT APPEARS LATER. JUST TO BE CLEAR, STOREFRONT APPEARS TWICE IN THAT BULLET. SO THERE'S NO REFERENCE TO STOREFRONT. IT'S THIRTEEN BAYS. I WOULD SAY SIX OF THESE BAYS INCLUDE A CANTED CORNER, THERE'S A FEW STOREFRONT

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REFERENCES.

>> CITY CLERK: YES, WE CAN WORK WITH THE PLANNING STAFF TO MAKE THE WORDING BE CORRECT.

>> MAYOR ISHII: YES, THANK YOU. I APPRECIATE THAT. OKAY, SO IN THAT CASE, CLERK, COULD YOU PLEASE TAKE THE ROLL

>> CITY CLERK: YES. COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

>> MAYOR ISHII: OKAY, THANK YOU ALL SO MUCH. AND THANK YOU SO

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MUCH TO EVERYONE AGAIN FOR STAYING SO LATE. I APPRECIATE IT AND THANK YOU TO THE COMMISSION FOR YOUR SERVICE. I KNOW YOU ARE VOLUNTEERS, YOU ARE HERE OF YOUR OWN FREE WILL TO ALMOST MIDNIGHT AND STAFF, YOU ARE CHOOSING TO WORK HERE, SO THAT'S THAT. PUBLIC COMMENT ON ITEMS NOT LISTED ON THE AGENDA? ANYONE ONLINE?

>> CITY CLERK: LET'S SEE. NOPE.

>> MAYOR ISHII: OKAY, SO JUST A REMINDER WE ARE ADJOURNING IN MEMORY OF CHRISTINA MURPHY WHO IS ON THIS LOVELY SHIRT IN FRONT OF ME, A CITY OF BERKELEY EMPLOYEE AND FORMER RENT BOARD COMMISSIONER. I WANT TO REMIND FOLKS WE ARE ADJOURNING IN HER MEMORY AND ASK IF THERE'S A MOTION TO ADJOURN.

>> T. TAPLIN: SO MOVED.

>> SECOND.

>> MAYOR ISHII: OKAY, CLERK, COULD YOU PLEASE TAKE THE ROLL.

>> CITY CLERK: TO ADJOURN, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

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>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES. THANK YOU ALL SO MUCH.

>> CITY CLERK: MEETING ADJOURNED.

>> MAYOR ISHII: I REALLY APPRECIATE IT. [ADJOURNED 11:36 P.M.]

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